

TO RECONSTRUCT THE NATION

Learning from America's most
radical experiment

David W. Blight
Lonnie G. Bunch III
Drew Gilpin Faust
Eric Foner
Peniel E. Joseph
Vann R. Newkirk II

Plus This Ghost of
Slavery, a new play by
Anna Deavere
Smith



A

The Atlantic

EST. 1857

E

D



Installation view, 'Thomas J Price, Untitled (Icon) Series,' 2017 © Thomas J Price.
Courtesy the artist and Hauser & Wirth. Photo: Ken Adlard

A P O D C A S T

FEATURING:

ALLISON KATZ
NICOLAS PARTY
THOMAS J PRICE
CHRISTINA QUARLES
PIPILOTTI RIST
LORNA SIMPSON

R E A

G
O

E
F

AT THE CROSSROADS OF ARTISTIC INSIGHT
AND INTELLECTUAL CURIOSITY WE FIND
THE EDGE OF REASON—A LIMITED PODCAST
FEATURING GROUNDBREAKING ARTISTS
DISCUSSING THE CENTURIES-OLD ENLIGHTENMENT
PRINCIPLES THAT INFLUENCE THEIR WORK.

► LISTEN NOW ON
[THEATLANTIC.COM/EDGEOFREASON](https://theatlantic.com/edgeofreason)
ALSO AVAILABLE ON
SPOTIFY & APPLE PODCASTS



S
O
N



MAYBACH

WELCOME TO BEYOND.

Beyond extraordinary. Beyond luxury.
Beyond anything you have ever experienced.
The Mercedes-Maybach GLS SUV.

Discover more at MBUSA.com/Maybach



ON REC STR T N

The Atlantic

ON

RECONSTRUCTION

O

DECEMBER 2023

N

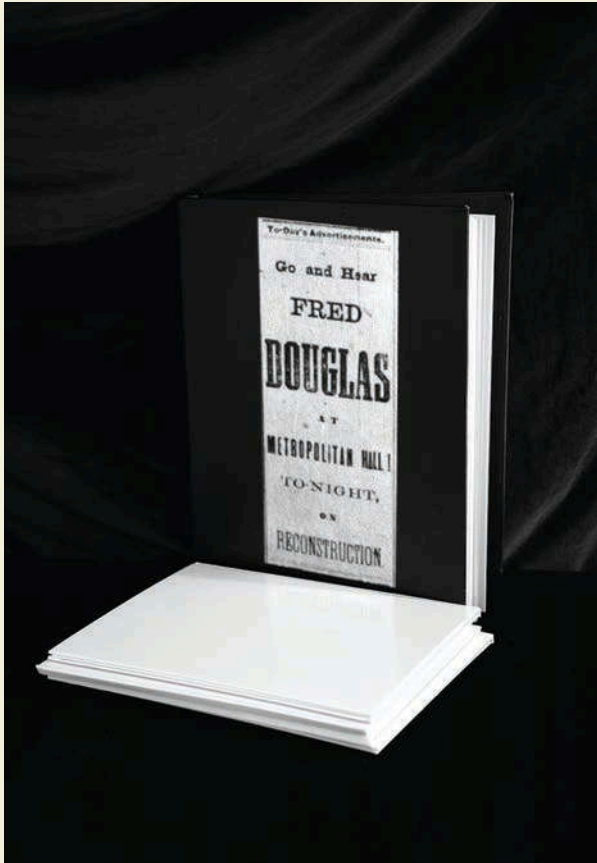
ON R C STR T

N

OF NO PARTY OR CLIQUE

ION

O RE S RUC



30

THE ANNOTATED FREDERICK DOUGLASS

In 1866, the famous abolitionist laid out his vision for radically reshaping America in the pages of The Atlantic.

Introduction and annotations
by David W. Blight

6

Editor's Note

By Jeffrey Goldberg

8

The Revolution Never Ended

The federal government abandoned Reconstruction in 1877, but Black people didn't give up on the moment's promise.

By Peniel E. Joseph

14

The Atlantic and Reconstruction

What we got wrong in 1901

By Yoni Appelbaum

18

The Archive of Emancipation

In the papers of the Freedmen's Bureau, I found the hopes and disappointments of a people on the cusp of freedom—including my own family's.

By Lonnie G. Bunch III

26

Freedmen's Town

Photographs by
Elbert D. Howze

41

This Ghost of Slavery

A play by Anna Deavere
Smith

74

The Years of Jubilee

In 1871, the choir of the struggling Fisk University engaged in a gambit to save the school: It decided to go on a singing tour of America. The choir achieved more than its members could have imagined.

By Vann R. Newkirk II

82

The Men Who Started the War

John Brown and the Secret Six—the abolitionists who funded the raid on Harpers Ferry—confronted a question as old as America: When is violence justified?

By Drew Gilpin Faust

90

Kennedy and the Lost Cause

In his 1956 book, Profiles in Courage, the future president promoted the southern mythology of Reconstruction. One Massachusetts grandmother wasn't having it.

By Jordan Virtue

96

The Black Roots of American Education

How freedpeople and their advocates persuaded the nation to embrace public schooling for all

By Adam Harris

102

A Traitor to the Traitors

The Confederate general James Longstreet became a champion of Reconstruction. Why?

By Eric Foner

107

Sitcom

A poem by Jericho Brown

108

Caleb's Inferno

A crossword by
Caleb Madison

On the Cover

ILLUSTRATION
BY JON KEY

Welcome to Now

Delivering innovation to any environment. Including yours.

Dell Technologies and Intel are supporting scientists as they tackle one of the biggest challenges in conservation—protecting the coral reef. We are also helping small businesses everywhere manage their challenges, big and small. With the power to collect critical data, reduce IT complexities and keep systems secure, technology is helping businesses protect many environments. See what we can do for yours.

Explore more at
Dell.com/WelcomeToNow



intel®

Intel® Innovation Built-in

The Questions That Most Need Asking



“Reconstruction,” by Frederick Douglass, appeared in the December 1866 issue of this magazine. It was the most important article that *The Atlantic* published in the immediate postwar era. It was also, for its time, unusually concise, coming in at a mere 2,703 words. By contrast, *The Atlantic’s* 1860 endorsement of Abraham Lincoln, written by James Russell Lowell, had run to 7,331 words, and Lincoln himself was not mentioned until the 1,747th word. (The editorial did succeed, of course. And yes, I’m taking credit on behalf of *The Atlantic* for Lincoln’s presidency.)

Douglass published his call for a radical reimagining of the American idea at an ambiguous but promising moment. Already, the infant project of Reconstruction—of the South, of the lives of newly liberated Black Americans, of the Constitution itself—was stimulating opposition that would, by 1877, prove shattering to the cause of equality. And yet Douglass was correct, as his biographer David W. Blight writes in this issue, in understanding that “the United States had been reinvented by war and by new egalitarian impulses rooted in emancipation.” Douglass’s essay, which Blight brilliantly annotates for us (p. 30), is “full of radical brimstone, cautious hope, and a thoroughly new vision of constitutional authority.”

The Reconstruction period has been a topic for *The Atlantic* across the centuries. This special issue, edited by our senior editor Vann R. Newkirk II, working alongside our editor-at-large, Cullen Murphy, and our managing editor John Swansburg, is meant to examine the enduring consequences of Reconstruction’s tragic fall at a moment—yet *another* moment—when the cause of racial progress faces sustained pressure. The idea for this issue emerged from a conversation I had not long ago with Lonnie G. Bunch III, the secretary of the Smithsonian Institution and the founding director of the Smithsonian’s National Museum of African American History and Culture. Bunch is, among other things, a stupendous builder, a conscientious American patriot, and an impresario of memory. He is also a scholar of the Freedmen’s Bureau archives, and the author of a moving article about the bureau’s work (p. 18).

Our conversation at first focused on the need to complete the exploration and digitization of the imperishably important archives, but then it ranged more widely. Both of us felt that, in this period of political and social reaction, revisiting the centrality of Reconstruction, and of promises made and broken, would be an apt subject for this magazine. Bunch writes in his article:

Librarians around the nation feel the chilling effects of book bans. Some individuals who seek to occupy the highest office in the land fear the effects of an Advanced Placement class that explores African American history—a history that, as education officials in Florida have maintained, “lacks educational value”; a history that does not deserve to be remembered.

As Newkirk, who has written a fascinating article about the Fisk University choir (p. 74), noted to me, “If the last seven years in this country have proven anything, it is to show just how unfinished, and fragile, the project of Reconstruction actually is.”

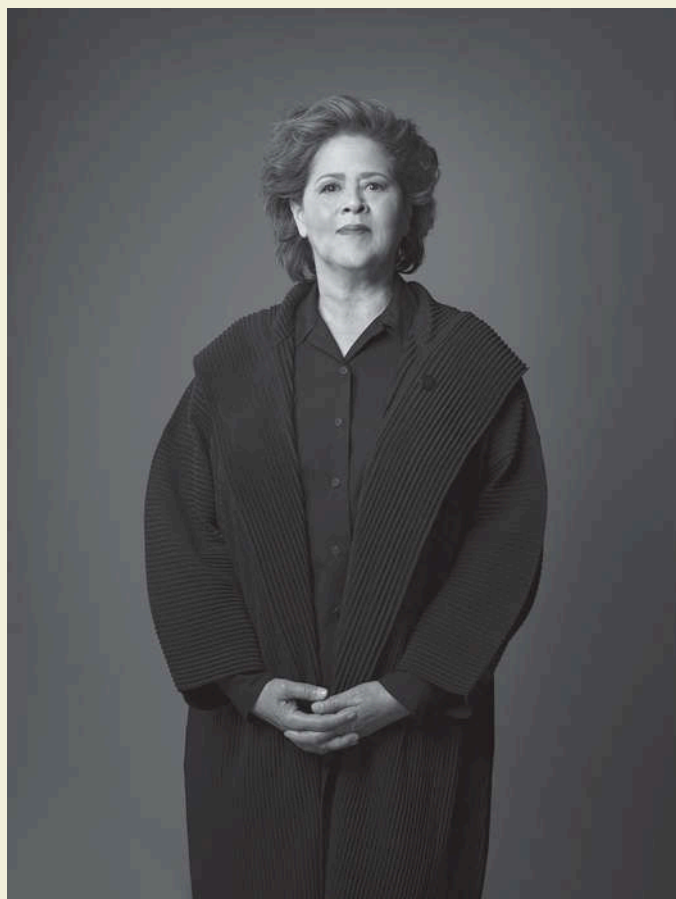
In the interest of memory, we asked our deputy editor Yoni Appelbaum, a historian by trade, to examine *The Atlantic's* mixed record on questions of Reconstruction (p. 14). I would prefer to tell you that Frederick Douglass spoke singularly for this magazine on the subject, but there is also the matter of Woodrow Wilson, a frequent contributor to *The Atlantic* in the years before he became president. Wilson was a prime contributor to a 1901 series in this magazine focused on Reconstruction. The series, which also featured

W. E. B. Du Bois (thank goodness), has too much of a “good people on both sides” air about it. As Appelbaum notes, Wilson’s critique of Reconstruction was appalling. “The negroes were exalted; the states were misgoverned and looted in their name,” Wilson wrote. This went on, he continued, until “the whites who were real citizens got control again.”

Illumination is the point of this issue. We have great scholars, including Peniel E. Joseph, whose article, “The Revolution Never Ended,” focuses on the Black Americans who continued the work of Reconstruction even after federal troops withdrew from the South (p. 8), and Drew Gilpin Faust, a former president of Harvard and a noted Civil War scholar, who writes about the Secret Six, the men exposed after the war for having funded John Brown’s raid on Harpers Ferry (p. 82). Eric Foner, in many ways the dean of Reconstruction scholarship, writes on James Longstreet, the Confederate general who accepted the Union’s victory and took up the cause of rebuilding the nation (p. 102).

At the center of this issue, spread across 32 pages, you will find something surprising and glorious: an original play by Anna Deavere Smith, a contributing writer at *The Atlantic* as well as a playwright, a performer, and an actual genius. I don’t doubt that you will one day see the play, *This Ghost of Slavery*, on Broadway. When I first started talking with Smith about writing for this issue, she had predictably brilliant ideas for a long exploration of juvenile justice and its roots in the slave system, but we soon realized that an essay couldn’t contain all that she was trying to achieve. So I suggested that she write a play. We recruited our national editor, Scott Stossel, to serve as her dramaturge. Spend time with this play. It will move you. Spend time with this whole issue, in fact: It asks, and answers, the questions that most need to be asked.

—Jeffrey Goldberg



The playwright
and actor Anna
Deavere Smith

EDITORIAL OFFICES & CORRESPONDENCE *The Atlantic* considers unsolicited manuscripts, fiction or nonfiction, and mail for the Letters column. Manuscripts will not be returned. For instructions on sending manuscripts via email, see theatlantic.com/faq. By submitting a letter, you agree to let us use it, as well as your full name, city, and state, in our magazine and/or on our website. We may edit for clarity. CUSTOMER SERVICE & REPRINTS Please direct all subscription queries and orders to: +1 855-940-0585. For expedited customer service, please call between 9 a.m. and 6 p.m. ET, Monday through Friday. You may also write to: *Atlantic* Customer Care, P.O. Box 37564, Boone, IA 50037-0564. Reprint requests should be made to Sisk at 410-754-8219 or atlanticbackissue@siskfs.com. A discount rate is available for students and educators. Please visit theatlantic.com/subscribe/academic. ADVERTISING OFFICES *The Atlantic*, 130 Prince Street 3rd Floor, New York, NY 10012, 646-539-6700.



*Painting by
Debra Cartwright*

The Revolution Never Ended

The federal government abandoned Reconstruction in 1877, but Black people didn't give up on the moment's promise.

By Peniel E. Joseph

THE CIVIL WAR produced two competing narratives, each an attempt to make sense of a conflict that had eradicated the pestilence of slavery.

Black Americans who believed in multiracial democracy extolled the emancipationist legacy of the war. These Reconstructionists envisioned a new America finally capable of safeguarding Black dignity and claims of citizenship. Black women and men created new civic, religious, political, educational, and economic institutions. They built thriving towns and districts, churches and schools. In so doing, they helped reimagine the purpose and promise of American democracy.

For a time after the war, Black Reconstructionists also shaped the American government. They found allies in the Republican Party, where white abolitionists hoped to honor freedpeople's demands and to create a progressive country in which all workers earned wages. Republicans in Congress pushed through amendments abolishing slavery, granting citizenship, and giving Black men the ballot. Congress also created the Freedmen's Bureau, which offered provisions, clothing, fuel, and medical assistance to the formerly enslaved, and negotiated contracts to protect their newly won rights. With backing from the Union army, millions of Black people in the South received education, performed paid labor, voted in presidential elections, and held some of the highest offices in the country—all for the first time.

Black Reconstructionists told the country a new story about itself. These were people who believed in freedom beyond emancipation. They shared an expansive vision of a compassionate nation with a true democratic ethos.

Those who longed for the days of antebellum slavery felt differently. Advocates of the Lost Cause—who believed that the South's defeat did nothing to diminish its moral superiority—sought to “redeem” their fellow white citizens from the scourge of “Negro rule.” Redemptionists did more than offer a different story about the nation. They demanded that their point of view be sanctified with blood. They threatened the nation's infrastructure and institutions, and backed up their threats with violence.

The Redemption campaign was astoundingly successful. Intimidation and lynchings of Black voters and politicians quickly

reversed gains in turnout. Reprisals against any white person who supported Black civil rights largely silenced dissent. This second rebellion hastened the national retreat from Reconstruction. Federal troops effectively withdrew from the Confederate states in 1877. White southerners soon dominated state legislatures once again, and passed Jim Crow laws designed to subjugate Black people and destroy their political power.

The official Reconstruction timeline usually ends there, in 1877. But this implies that the Reconstructionist vision of American democracy ceased to exist, or went dormant, without the backing of federal troops. Instead, we should consider a long Reconstruction—one that stretches well beyond 1877, and offers a view that transcends false binaries of political failure and success.

This view allows us to follow the travails of the Black activists and ordinary citizens who kept the struggle for freedom and dignity alive long after the Republican Party and white abolitionists had abandoned it. Black institutions, including the church, the schoolhouse, and the press, kept public vigil over promises made, broken, and, in some instances, renewed during the long march toward liberation. Their stories show that freedom's flame, once boldly lit, could not be extinguished by the specter of white violence.

The concept of a long Reconstruction recognizes that a nation can be two things at once. After 1877, freedom and repression journeyed along parallel paths. Black Americans preserved a vision of a truly free nation in an archipelago of communities and institutions. Many of them exist today, and continue their work. This, perhaps, is the most important reason to resist the idea that Reconstruction ended when the North withdrew from the South: In a sense, the work of Reconstruction never ended, because the goal of a multiracial democracy has never been fully realized. And America has made its greatest gains toward that goal when it has rejected the Redemptionist narrative.

THAT THE WORK of Reconstruction continued well after 1877 is illustrated

by the life of Ida B. Wells, a woman who witnessed the death of slavery and fought against the beginning of Jim Crow. Wells kept alive the radical ideals of the Reconstructionists and punctured, through her journalism, the virulent mythology peddled by the Redemptionists. When Wells was born—in Holly Springs, Mississippi, on July 16, 1862—her parents, Jim and Lizzie Wells, were enslaved. Later that year, the Union army took control of the town while staging an attack on Vicksburg. As they did elsewhere across the dying Confederacy, enslaved people in and around Holly Springs fled plantations for Union lines and emancipated themselves. But freedom proved contingent. Even when Union General Ulysses S. Grant made his headquarters in the town, Black refugees feared reprisals from their former enslavers. Their vulnerability to white violence, even under the watch of Union troops, foreshadowed the coming era.

After the war, Jim and Lizzie Wells chose to stay in Holly Springs. Jim joined the local Union League, which supported Republican Party politics and was committed to advancing Black male suffrage. In fall 1867, when Ida was 5 years old, her father cast his first ballot. Ida remembered her mother as an exemplar of domestic rectitude whose achievements were reflected in her children's perfect Sunday-school attendance and good manners.

Ida grew up in a Mississippi full of miraculous change. She attended the first "colored" school in Holly Springs, a remarkable opportunity in a state that had been considered the most inhospitable to Black education and aspiration in the entire Confederacy. As a young girl, Ida read the newspaper aloud to her father's admiring friends; just a few years earlier, it would have been illegal in Mississippi to teach her the alphabet.

In 1874, when Wells was 12, 69 Black men were serving in the Mississippi legislature, and a white governor, Adelbert Ames—placed in office partly by the votes of the formerly enslaved—promised to commit the state to equality for all. Around that time, Mississippi's secretary of state, superintendent of education, and speaker of the House were all Black men.

The world around Ida was full of fiercely independent and economically prosperous Black citizens. These attainments buoyed her optimism for the rest of her life.

But the idyll of her childhood was brief. Redemptionist forces in Mississippi struck back against Black political power with naked racist terror. In December 1874, a white mob in Vicksburg killed as many as 300 Black citizens after forcing the elected Black sheriff, Peter Crosby, to resign. Massacres and lynchings continued unabated across the state through 1875. By 1876, the number of Black men in the state legislature had fallen by more than half. Following the contested election that year, the new president, the Republican Rutherford B. Hayes, ordered the remaining active northern troops in the South to return to their barracks. Without the protection of federal troops, and with the symbolic abandonment by the president, Black people were on their own, completely vulnerable to voting restrictions, economic reprisals, and racial violence.

For Wells, the collapse of Reconstruction came at a moment of profound personal struggles. In 1878, her parents and one of her brothers died in a yellow-fever outbreak that killed hundreds in Holly Springs, leaving her, at 16, to care for five siblings, including her disabled sister, Eugenia. After Eugenia died, Wells moved to Memphis at the invitation of an aunt.

Wells's escape from Mississippi did not protect her from the indignities of racism. In 1883, after a visit to Holly Springs, Wells purchased a train ticket back to Memphis, riding first class on a segregated train. She moved to the first-class car for white ladies after being bothered by another passenger's smoking, and refused to go back to Black first class. Though barely five feet tall, Wells stood her ground until the white conductor physically removed her. She promptly filed suit and, initially at least, won \$700 in damages before her two cases were reversed on appeal by the Tennessee State Supreme Court.

The defeat spurred Wells to find another means of fighting Jim Crow.

She longed to attend Fisk University, and took summer classes there. By the end of the decade, she had become the editor and a co-owner of the *Memphis Free Speech and Headlight*, the newspaper founded by the Beale Street Church pastor Taylor Nightingale.

Wells took over editorial duties amid a surge of anti-Black violence, which had remained a feature of the South even after the Redemptionists achieved their goal of removing federal troops from the region. In the 1880s, the incidents began to intensify. In 1886, at least 13 Black citizens were lynched in a Mississippi courthouse, where free Black men were testifying against a white lawyer accused of assault. Attacks on Reconstructionists continued from there. The more that Black men and women engaged in political self-determination—choosing to own homes and businesses, to defend their families—the more thunderbolts of violence struck them. The bloodshed of Redemption was intended to touch the lives of all Black people in the South.

On March 9, 1892, that violence came to Wells's life, when a mob of 75 white men in Memphis kidnapped three Black men: Thomas Moss, Calvin McDowell, and Will Stewart. Moss was an owner of the People's Grocery, an upstart Black cooperative that competed with the local grocery owned by William Barrett, who was white. The rivalry between the stores had escalated into a larger racial conflict, and Moss, McDowell, and Stewart had been sent to jail after guns were fired at a white mob that had attacked the People's Grocery. Wells knew Moss and his wife, Betty, whom she considered one of her best friends. She was godmother to their daughter Maurine.

Moss, McDowell, and Stewart were given no due process or trial. Another mob took the men from jail and shot each to death, refusing Moss's plea to spare his life for the sake of his daughter and pregnant wife. Their bodies were left in the Chesapeake & Ohio rail yard. The white-owned *Memphis Appeal-Avalanche* documented the horrors as fair justice for the troublesome Black men who had dared to fight white men.

In the *Free Speech*, Wells wrote a series of editorials decrying the killings and the

constant threat of violence that Black Americans faced in the South, and urged northerners to renew their support for full Black citizenship. In one of those editorials, Wells called out the “threadbare lie that Negro men rape white women,” which was the justification for many lynchings. She filed the editorial shortly before a trip to the North. While she was gone, a group of men went to the *Free Speech*'s offices and destroyed the printing press, leaving a note warning that “anyone trying to publish the paper again would be punished with death.” She chose not to return to Memphis, and continued her campaign from New York.

That June, Wells wrote an essay, “The Truth About Lynching,” in the influential Black newspaper *The New York Age*. Wells reasoned that most anti-Black violence claimed its roots in economic competition, personal jealousy, and white supremacy. She also dispelled, again, the myth of Black-male sexual violence against white women. Wells pointed instead to the number of mixed-race children in the old Confederacy—evidence of the sexual violence that white men had inflicted on Black women.

Wells's activism was more than a crusade to end lynching. She traveled the country and Great Britain to describe her vision of multiracial democracy. Frederick Douglass, who had escaped slavery and become the foremost civil-rights activist and journalist of the antebellum and Reconstruction eras, admired Wells and characterized her contributions as a “service which can neither be weighed nor measured.”

Wells first met Douglass in the summer of 1892, when he was 74; Douglass had written a letter to her saying he was inspired by her courage. The two developed a close friendship. “There has been no word equal to it in convincing power,” Douglass wrote of *Southern Horrors*, a pamphlet Wells published in 1892 based on her groundbreaking anti-lynching essay. The pair corresponded and worked together for the rest of Douglass's life. With his death, in 1895, a torch was passed.

Wells's efforts, in a period of racial fatigue among white audiences, helped continue the central political struggle of

In a sense, the work of Reconstruction never ended, because the goal of a multiracial democracy has never been fully realized.

Reconstruction. She delivered hundreds of speeches, organized anti-lynching campaigns, and worked to galvanize the public against the Redemptionists. Wells told America a story it needed, but did not want, to hear.

Wells's work also intersected with that of W. E. B. Du Bois, the scholar, journalist, and civil-rights activist who took a forceful stand against lynching. Their relationship was sometimes collegial, sometimes contentious; Wells never found with Du Bois the same rapport she'd had with Douglass. But she supported Du Bois's then-radical view of the importance of Black liberal-arts education, and Du Bois was shaped by Wells's advocacy and critiques.

Du Bois viewed the legacy of Reconstruction as crucial to understanding America. At the behest of another Black intellectual and scholar, Anna Julia Cooper, he published in 1935 his monumental *Black Reconstruction*. The book traced the origins of the violence that Wells denounced. He wrote that "inter-racial sex jealousy and accompanying sadism" were the main basis of lynching, and echoed Wells's argument that white men's violence against Black women had been the true scourge of the South. Du Bois also wrote that the Reconstructionists were engaged in "abolition-democracy," which he defined as a broader movement for social equality that went beyond political rights.

Du Bois's scholarship paved the way for a reconsideration of the era. He challenged the Redemptionist narrative of venal corruption and Black men who were either in over their head or merely served white northern puppet masters and southern race traitors.

Du Bois's work is a starting point for contemporary histories. Eric Foner's magisterial *Reconstruction: America's Unfinished Revolution, 1863–1877*, published more than half a century after *Black Reconstruction*, added texture to the story of the period, then largely untold. Foner's work reframed the era as an unfinished experiment in multiracial democracy.

In this tradition of expansion, the historian Steven Hahn's Pulitzer Prize-winning *A Nation Under Our Feet*, published in

2003, widens earlier historical frameworks by looking beyond Reconstruction's constitutional reforms. Hahn sought out the Black men and women who shaped Reconstruction at the state and local levels. More recently, the historian Kidada E. Williams's *I Saw Death Coming* focuses on the daily lives of Black men and women during Reconstruction—witnesses to the violence of Redemption.

All of these works expand our conception of what Reconstruction was, and challenge the notion that the era came to an abrupt ending in 1877. They portray the era as a contested epic, where parallel movements for Reconstruction and Redemption rise, fall, and are recovered.

I FIRST LEARNED about Reconstruction from my late mother, Germaine Joseph, a Haitian immigrant turned American citizen whose love of history could be gauged by the crammed bookcases in our home in Queens, New York. My first lesson on Reconstruction came in the form of a story about Haiti's revolution. Mom proudly informed me that Haiti had been the key to unlocking freedom for Black Americans: The Haitian Revolution, she explained, led to revolts of the enslaved, frightened so-called masters, and inspired Frederick Douglass.

Later, I found my way back to Reconstruction through an interest in the Black radical tradition, especially post-World War II movements for racial justice and equality. My mentor, the late historian Manning Marable, described the civil-rights movement, and the age of Black Power that followed, as a second Reconstruction. During this time, with a renewed interest in slavery and its aftermath, scholars rediscovered Du Bois's work.

My research and writing of late has revolved around interpreting the past 15 years of American history, from Barack Obama's ascent to the White House in 2008, to the rise of the Black Lives Matter movement in 2013, to Donald Trump's 2016 presidential election, to the events that followed George Floyd's murder in 2020. In my 2022 book, *The Third Reconstruction*, I argued that we might be living through another era filled with the kind of dizzying possibility and intense

backlash that whipsawed the South during Wells's life.

Today's Reconstructionists have a vision for multiracial democracy that might astonish even Douglass, Wells, and Du Bois. Black women, queer folk, poor people, disabled people, prisoners, and formerly incarcerated people have adopted the term *abolition* from Du Bois's idea of abolition-democracy, and now use it to refer to a broad movement to dismantle interlocking systems of oppression—many of which originated in Redemption policy. They have achieved important victories in taking down Confederate monuments; sharing a more accurate telling of America's origin story and its relationship to slavery; and questioning systems of punishment, surveillance, and poverty.

But today's Redemptionists have had their victories as well. Their apocalyptic story of the present, one in which crime and moral decay threaten to destroy America, rationalizes a return to a past America and aims to dismantle the Reconstruction amendments that underpin fundamental civil rights. Redemptionists promote a regime of education that reverses the gains historians have made since the revival of *Black Reconstruction*.

The health of American democracy continues to rest upon whether we believe the Reconstructionist or Redemptionist version of history. Reconstruction, as a belief, as an ideal, outlasted the federal government's political commitments by decades. Black people, the country's most improbable architects, continued to make and shape history by preserving this rich legacy, and bequeathing it to their children. Their story has remained the heart of the American experiment both when the country has acknowledged them—and, most especially, when it has not. *A*

Peniel E. Joseph is the Barbara Jordan Chair in Ethics and Political Values and a history professor at the University of Texas at Austin. He is the author of The Third Reconstruction: America's Struggle for Racial Justice in the Twenty-First Century.

LUCID

Air

Designed in California
Assembled in the United States
Engineered for a better world

This is Lucid Air, the longest range electric car on the market.*
Experience a new standard of sustainable luxury.



LUCIDMOTORS.COM



*EPA est. range ratings when equipped with 19" wheels: 516 Grand Touring/425 Touring. Manufacturer's projected range for Pure equipped with 19" wheels is 410 miles; EPA est. range is 419. Actual results will vary.

THE KU KLUX MOVEMENT.

WHOEVER can remember Mr. Edwin Booth in the character of Richelieu will doubtless recall his expression of the sudden change which comes over the melodramatic cardinal toward the end of the scene in which his house is invaded by the conspirators. While he is ignorant of his danger, his helplessness in the grasp of his swarming enemies, Richelieu is all majesty, all tragedy. But when he learns that every avenue of escape is barred, that even Huguet is false, that no open force will avail him, his towering mood gives place, not indeed to any cringing fear, but to subtlety and swift contriving. His eyes no longer blaze, but twinkle; his finger is at his chin; there is a semblance of a grin about his lips.

"All? Then the lion's skin's too short to-night, —

Now for the fox's."

The simulated deathbed follows. The enemy, too powerful to be resisted, is outwitted and befooled.

Twenty-five years ago, when a negro inquired of his former master about "dem Ku Kluxes," the response he got was awe-inspiring. If a child of the household made the same inquiry of his elders, his question was put away with an unsatisfying answer and a look like Mr. Booth's in the play. Had the great cardinal lived south of Mason and Dixon's line in the late sixties, I fancy he would have found the Ku Klux Klan an instrument altogether to his liking.

The Southern child who, not content with the grin and the evasive answer of his father or his elder brother, sought further enlightenment from his fast friends of the kitchen and the quarters, heard such stories of the mysterious, sheeted brotherhood as eclipsed in his young fancy even the entrancing rivalry of Brer Fox and Brer Rabbit, and made

the journey back to the "big house" at bedtime a terrifying experience. Uncle Lewis would tell of a shrouded horseman who rode silently up to his door at midnight, begged a drink of water, and tossed off a whole bucketful at a draught. Uncle Lewis was sure he could hear it sizzling as it flowed down that monstrous gullet, and readily accepted the stranger's explanation that it was the first drop he had tasted since he was killed at Shiloh. Aunt Lou, coming home from the house of a neighboring auntie who was ill, and crossing a lonesome stretch near the graveyard, had distinctly seen a group of horsemen, motionless by the roadside, each with his head in his hand. Alec, a young mulatto who had once shown much interest in politics, had been stopped on his way from a meeting of his "ciety" by a masked horseman, at least eight feet tall, who insisted upon shaking hands; and when Alec grasped his hand, it was the hand of a skeleton. Darkies who, unlike Uncle Lewis and Aunt Lou and Alec, had turned against their own white people and taken up with the Yankees, had been more roughly handled.

Somehow, in one such Southern boy's memories there is always a dim association of these Ku Klux stories with other stories of the older negroes about "patterrollers." Through them all there jingles the refrain, —

"Run, nigger, run!

De patterrollers ketch you."

When that boy went to college and joined a society that had initiations, the mystery and horror of the Ku Klux stories waned; but it was not until he read an account of the patrol system of slavery times that he saw the connection between Ku Klux and "patterrollers."

An organization that could so mystify all but the grown-up white men of a

Southern household certainly lost none of its mystery in the confused account that filled the newspapers of that day, and citizens of the Northern states, already tired of the everlasting Southern question, could not be expected to understand it. Congress, when it undertook to enlighten them, swelled its records with much impassioned oratory, and through its committees of investigation put into print first one and then thirteen bulky volumes, from which he who lives long enough to read it all may learn much that is true but not particularly important, much that is important if true, and somewhat that is both true and important. From the mass of it the Republican majority got matter sufficient to sustain one set of conclusions, leaving unused enough to sustain quite as strongly the entirely different conclusions at which the minority arrived. There remained much upon which American novelists, whether humorously or sensationally inclined, have drawn; and may continue to draw. Dr. Conrad Doyle, seeking to "paint a horror skilfully," found the Klan a good nerve-racker, though it is to be hoped he did not attempt to digest the reports. Voluminous as they are, they need to be supplemented with material of a different sort — with such memories as the child of reconstruction times can summon up, with such written memoranda and cautious talk as can be won from Southern elders of an older generation, with such insight as one can get into Southern character and habits of thought and life — before one can begin to understand what the Klan was, or how it came into existence, or what its part was in that great confusion officially styled the Reconstruction of the Southern states.

Without attempting any elaborate argument, we may, I think, take it for granted that the Ku Klux movement was an outcome of the conditions that prevailed in the Southern states after the war. It was too widespread, too

The Atlantic and Reconstruction

Tux Movement.

635

spontaneous, too clearly a popular movement, to be attributed to any one man or to any conspiracy of a few men. Had it existed only in one corner of the South, or drawn its membership from a small and sharply defined class, some such explanation might serve. But we know enough of its extent, its composition, and the various forms it took, to feel sure that it was neither an accident nor a scheme. It was no man's contrivance, but an historical development. As such, it must be studied against its proper background of a disordered society and a bewildered people. Various elements of the disorder and causes of the bewilderment have been set forth in the previous papers of this series. It will be necessary here to emphasize only one feature of the general misgovernment; namely, that the evil was by no means confined to the state governments, where the bolder adventurers and the more stupendous blunders were at work. The itching and galling of the yoke was worst in the lesser communities, where government touches the lives of individual men and women most intimately.

The mismanagement—to use the mildest word—of state finances can be shown in figures with reasonable clearness. The oppression of counties and towns and school districts is less easily exhibited, though it was in this way the heaviest burdens of taxation were imposed. The total increase in the indebtedness of the smaller political units under carpet-bag rule was, as a matter of fact, even greater than in the case of the state governments; and the wrong was done in plainer view of the taxpayer, by acts more openly and vulgarly tyrannical. So far as the taxpayer's feelings were concerned, piling up state debts had the effect which the mismanagement of a bank has on the stockholders. The piling up of county and town and school taxes was like thrusting hands visibly and forcibly into his pockets. It

The last time *The Atlantic* decided to reckon with Reconstruction in a sustained way, its editor touted “a series of scholarly, unpartisan studies of the Reconstruction Period” as “the most important group of papers” it would publish in 1901.

That was true, as far as it went. The collection of essays assembled by Bliss Perry, the literature professor who had recently taken the magazine's reins, was a tribute to the editor's craft. The contributors were evenly split between northerners and southerners, and included Democrats and Republicans, participants and historians, professors and politicians. One had been a Confederate colonel, another a Union captain. The prose was as vivid as the perspectives seemed varied.

Yet “The Reconstruction Papers,” as they were billed, were equally an indictment of the journalistic conceit of balance. Perry prided himself on the diversity of the voices he featured in his magazine. “It is not to be expected that they will agree with one another,” he once wrote. “Perhaps they will not even, in successive articles, agree with themselves.” That was a noble vision, but the forum he convened fell well short of the ideal. Despite their disagreements, on the most crucial points, the authors of his Reconstruction studies shared the common views of the elite class to which nearly all of them belonged—and much of what they wrote was both morally and factually indefensible.

The first essay came from Perry's old Princeton colleague Woodrow Wilson—or “My dear Wilson,” as Perry addressed him. Wilson, then a prominent political scientist, focused on the constitutional legacies of the era—he believed Congress had overstepped its role by protecting civil rights—but slipped in a broad critique of the enterprise. “The negroes were exalted; the states were misgoverned and looted in their name,” he wrote, until “the whites who were real citizens got control again.”

“It's pretty much the plot of *The Birth of a Nation*,” Kate Masur, a historian at Northwestern University, told me. She meant that literally. D. W. Griffith's flamboyantly racist film adapted quotes from the future president's monumental *A History of the American People*, in which he expanded on the story he'd sketched in *The Atlantic*.

The last essay in the collection came from William A. Dunning, a Columbia University historian. The work of his students—who became known as the Dunning School—would promote the view that Black people were incapable of governing themselves, and that Reconstruction had been a colossal error. Dunning portrayed the end of Reconstruction as a reversion to the natural order, with Jim Crow enforcing “the same fact of racial inequality” that slavery had once encoded.

What came in between Wilson and Dunning was somehow even worse. One contributor lauded slavery for lifting “the Southern negro to a plane of civilization never before attained by any large body of his race” by teaching him to be “law-abiding and industrious,” and lamented that emancipation had encouraged idleness. Another wrote an apology for the Ku Klux Klan. Perhaps its murderous violence couldn't

What we got wrong in 1901

By Yoni Appelbaum

quite be excused, he allowed, but the restoration of white supremacy was still “clearly worth fighting for” and “unattainable by any good means.” How could a magazine founded on the eve of the Civil War by abolitionists, which had fervently championed Reconstruction as it unfolded, ever have published such tripe?

The simplest answer is that, by 1901, many elite Americans had soured on the messiness of democracy. In the North, they met the surge of immigrants into industrial cities with creative efforts—civil-service reforms, independent commissions—to take power out of voters’ hands. Out West, they persecuted Chinese immigrants and excluded them from citizenship. In the South, they were busily amending state constitutions to strip Black voters of their rights and to enshrine Jim Crow. And in the territories that America had just acquired in the Spanish-American War, they were building an empire by force of arms. The old sectional divides could be healed, they found, through a new consensus—that only well-educated, propertied white men were capable of governing themselves, and that it was folly to give anyone else the chance to try.

The essays on Reconstruction fit snugly within this consensus, finding that its fatal flaw had been an excess of democracy. To a man (and they were all men), their authors agreed that granting newly emancipated Black men the right to vote had been a terrible mistake, producing corrupt governments that took from the propertied classes to support the poor. The debate was limited to why the mistake had happened, and how it could best be undone.

Except, that is, for one extraordinary contribution. Perry selected a rising star in the world of sociology, W. E. B. Du Bois, to write about the Freedmen’s Bureau—the federal agency that had been charged with protecting the formerly enslaved. But Du Bois, the sole Black author invited to take part, had larger ambitions. The first and last lines of his essay were identical: “The problem of the twentieth century is the problem of the color line.” In between, he sketched a vision of Reconstruction as an incomplete revolution, one that had accomplished much before its untimely end left the work for future generations to complete.

Wilson and Dunning wrote their history as a just-so story, an explanation of why they deserved the privileges they enjoyed while others were better suited for subservient stations.

“Despite compromise, struggle, war, and struggle,” he wrote, “the Negro is not free.”

Not many magazines of the era, the historian Gregory Downs told me, would have given him the assignment. “It signals a surprising openness to engagement and argument,” he said. In fact, Du Bois failed to interest *The Century*, perhaps the nation’s preeminent magazine, in an ambitious article on Reconstruction. *The Atlantic* helped introduce him to a national audience, and although it was the first time he tackled the subject, it would not be the last. His 1935 opus, *Black Reconstruction*, became the foundation on which our modern understanding of the era is built.

After the last essay, Perry appended a dispirited note. The gravest error of Reconstruction, he conceded, had been “the indiscriminate bestowal of the franchise upon the newly liberated slaves.” But he hastened to add that, unlike most of his essayists, he objected only to the pace of enfranchisement, not to the ultimate goal. *The Atlantic*, Perry wrote, still believed “in the old-fashioned American doctrine of political equality, irrespective of race or color or station.”

Today, the essays Perry gathered are of interest mostly as windows into a distant era. If there is a useful lesson to take from the Wilsons and the Dunnings, it lies not in any insights they purported to offer, but in their delusions of objectivity. They wrote their history as a just-so story, an explanation of why they deserved the privileges they enjoyed while others were better suited for subservient stations. Du Bois, by contrast, looked to the past not to justify present-day hierarchies but to understand them, and to explore abandoned alternatives. The problem with America, he concluded, wasn’t that democracy and equality had gone too far, but that they had not gone nearly far enough.

Perry’s note closed by voicing his hope that “the old faith that the plain people, of whatever blood or creed, are capable of governing themselves” would eventually reassert itself. Today, at a moment when the old faith is faltering again, we might wish the same. *A*

Yoni Appelbaum is a deputy editor of The Atlantic.

PROMOTION

The Atlantic Festival



Hillary Rodham Clinton



Kerry Washington



Spike Lee



Joaquin Castro



Antony Blinken



Mira Murati

Thank you to all of our speakers, guests, underwriters, and partners.

CATCH UP ON WHAT YOU MISSED AND SIGN UP TO HEAR THE LATEST ON ATLANTICLIVE EVENTS AT
THEATLANTICFESTIVAL.COM

PRESENTING



SUPPORTING



CONTRIBUTING



EXCLUSIVE BROADCAST MEDIA PARTNER



The Archive

of

Emancipation

In the papers of the Freedmen's Bureau, I found
the hopes and disappointments of a people on the
cusp of freedom—including my own family's.



By Lonnie
G. Bunch III



Photo-illustration by
Khaleelah I. L. Harris



In all my years doing research at the National Archives, I had never cried. That day in fall 2012, I had simply planned to examine documentary material that might

help determine how the yet-to-be-built National Museum of African American History and Culture would explore and present the complicated history of American slavery and freedom.

As I read through the papers of the Bureau of Refugees, Freedmen, and Abandoned Lands—the Freedmen’s Bureau, as it’s usually called—I decided to see if I could find records from Wake County, North Carolina, where I knew some of my own enslaved ancestors had lived. I had few expectations because I knew so little about my family’s history. From a surviving wedding certificate for my paternal great-grandparents, I’d gotten the name of my earliest-known family member, an enslaved woman named Candis Bunch, my great-great-grandmother. But scrolling through rolls of microfilmed documents from the Raleigh office of the Freedmen’s Bureau, I realized the chances were remote that I would find my ancestor.

But when I turned my attention to a series of labor contracts—designed to give the newly freed some legal protections as they negotiated working relationships with their former enslavers—I found a single page documenting a contract between Fabius H. Perry, who owned the plantation next to the one where my ancestors had been enslaved, and Candis Bunch. That page not only filled a void in my knowledge of my family’s history, but also enriched my understanding of myself.

I was amazed at what a single piece of paper could reveal. For two days of farm work in 1866, Candis received \$1, and for 44 days of work in 1867, she received \$11. The contract also revealed that her daughter Dolly was paid \$3 for housework. As I read further, the contract delineated what Candis owed Perry for the purchase of cotton and soap.

What reduced me to tears was the fact that, out of her meager earnings, Candis had spent 60 cents on two “baker tins,” more than the payment she received for an entire day’s work. I remembered how my paternal grandmother, Leanna Bunch, who resided in Belleville, New Jersey, and died two weeks before my fifth birthday, used to bake cookies in the shape of hearts and crescent moons to

cajole me into napping. Did she use the very same tins that Candis had labored to buy? Had that been the beginning of a family tradition: No matter how difficult times may be, always help the children find some joy?

With this personal discovery came the realization that documents like these from the Freedmen’s Bureau—well over a million pages, created out of bureaucratic necessity—could help African Americans today better understand themselves and their enslaved ancestors. These records, if made more accessible, could help all of us grasp the challenges, the pain, the losses, the courage, and the resiliency of a people who had both powered and endured the transition from slavery to freedom. They could bring the grand narrative of Reconstruction to a more human scale.

The people we encounter in the records of the Freedmen’s Bureau call out to be remembered. Their lives, their sacrifices, are stories to be revealed and lauded. Stories such as these also provoke discomfort—and, in some quarters, resistance. Politicians have been elected by sowing fear about “divisive” history. Is it divisive to point out that African Americans believed in, and struggled toward, an aspirational America, an America that had made promises but had not yet delivered?

THE HOPE THAT freedom would transform a people and a nation was captured in a cartoon by Thomas Nast that appeared in *Harper’s Weekly* on January 24, 1863. Nast’s drawing celebrated the Emancipation Proclamation, issued by President Abraham Lincoln a few weeks earlier. The left side of the image depicts the horrific impact of slavery: slave auctions and the destruction of families; backbreaking labor in the cotton fields; a woman being whipped. On the right, the benefits of freedom: a country at peace, with formerly enslaved children attending school; a Black worker drawing fair wages; Black and white figures showing mutual respect toward each other. The centerpiece is an image of a Black family that has achieved middle-class status, with well-clothed children and elders sitting by the hearth. Nast’s cartoon looked forward to a future where fairness and freedom were the

norm. That was the hope of Reconstruction, and the engine of that hope was the Freedmen's Bureau.

On March 3, 1865, after nearly two years of debate, Congress passed "an Act to establish a Bureau for the Relief of Freedmen and Refugees." Lincoln signed it into law the same day. The bureau, embedded in the War Department, was one of the first federal forays into social engineering, in some ways anticipating the more activist government policies of the New Deal and the Great Society. Simply put, its charge was to protect the basic rights and help provide for the basic needs of the 4 million people who had been, until recently, enslaved.

The value and impact of the Freedmen's Bureau, from its inception until it was defunded, in 1872, cannot be overstated. At its peak, more than 900 bureau agents were located throughout the former Confederacy, in rural hamlets and urban centers. Among other things, these agents documented the violence that was at the core of white southern resistance to Reconstruction. They responded to and recorded the desire of the formerly enslaved to confirm their marital standing. They gave food to the poor and the indigent regardless of race. They helped establish Black educational institutions, from elementary "freedom schools" to colleges such as Shaw University, in North Carolina, and Howard University, in the nation's capital. More than 40 "freedmen's hospitals" served the sick, the malnourished, and those whose health had been damaged by the conditions of slavery. During a period when most in the South fought to violently overturn the changes implemented by Reconstruction, the Freedmen's Bureau was one of the few outlets where African Americans could address their needs, obtain legal assistance, and see some evidence that change was at hand. One could argue that the bureau was, in essence, a form of reparations.

Simply by virtue of doing its work, the Freedmen's Bureau amassed records of the stories, hopes, and disappointments of a people on the cusp of freedom. These documents reveal the agency of the newly emancipated: Freedom was

not given but was seized and created by people who "made a way out of no way." But the documents underscore how difficult the struggle was. Although they make the efforts of individuals and families visible and concrete, the records also reflect how the promise of Reconstruction was derailed by violence, northern apathy, and the rise of Jim Crow.

The documents unlock the names and experiences of people who are often invisible or silent in the conventional telling of history. A significant portion of the Freedmen's Bureau papers reflect the importance of family, of reconnecting with kin separated by the vagaries of slavery, of protecting children. With freedom came an unyielding desire to find oneself by finding those who'd been sold away. The Freedmen's Bureau, people hoped, could aid in restoring the bonds of family. In the documents, a freedwoman named Sina Smith described how her mother had been sold from Virginia to Tennessee "about eighteen years past ... by Colonel Marshall." Smith hoped that her mother, Eliza Williams, whom she was now able to "support ... in her old age," could be found, and noted that she was "a member of the Baptist Church" in Nashville.

Requests for assistance contained poignant details that might help locate a family member. A freedman named Hawkins Wilson wrote from Galveston, Texas, searching for his sisters, whom he had not seen in the 24 years since he'd been "sold at Sheriff's sale" in Virginia. "One of my sisters, Jane," he wrote, "belonged to Peter Coleman in Caroline County." Wilson's letter expressed a belief that the bureau could reconnect him with his family: "I am in hopes that they are still living ... and I have no other one to apply to but you." Wilson drafted an additional letter to be given to Jane. "Your little brother Hawkins is trying to find out where you are and where his poor old mother is ... I shall never forget the bag of biscuits you made for me the last night I spent with you." He continued by saying he had led a good life and had "learned to read, and write a little." He said that he hoped they might see each other, but added that if they did not

What reduced me to tears was the fact that my great-great-grandmother had spent 60 cents on two "baker tins," more than the payment she received for an entire day's work.

“meet on earth, we might indeed meet in heaven.” Given that the letter remained in the files of the Freedmen’s Bureau, it is unlikely that Wilson was ever reunited with his family.

Numerous letters and depositions describe the frequent terrorist attacks aimed at controlling, intimidating, and killing the formerly enslaved. Some of the violence was random: Jacob Carpenter, from Gaston, North Carolina, stated to an authority that “he had been hunted [through the] town,” dodging gunfire, and “that his life was not safe at any time.” Tobe Jones, of Wilkes County, Georgia, went to visit his wife. Two men assaulted him; one, he recounted, “caught me by the collar and struck me with his fist. Several blows in the face ... [He] then picked up a rock and ran after me, and said he would kill me.” White vigilantes also conducted organized raids, focusing their ire on Black teachers and ministers and those bold enough to vote. In Tennessee, churches were burned. In Arkansas, “the school house for colored children at Phillips Bayou was burned down” and a teacher was “ordered to leave.” Night riders—vigilantes intent on violently enforcing white supremacy—struck at those who worked to bring change to the South: On the night of April 18, 1868, 20 mounted men attacked the home of William Fleming, of Franklin, Tennessee; a few months later, in nearby Brownsville, “a party of freedmen were assaulted on their way home ... and four of their members shot.” The Freedmen’s Bureau agent stationed in Tennessee noted that “there is an organization ... who style themselves Ku, Klux and they are committing depredations on Colored people, property and outrages on their persons.”

The bureau papers highlight the role of women during Reconstruction. Throughout the documents, one encounters Black women demanding fair labor contracts, insisting on respect and common courtesy, seeking and providing educational opportunities, and fighting on behalf of their families. The paperwork exposes the violence and sexual abuse that were all too common in the lives of Black women. When Harriett Kilgore, of Chickasaw County, Mississippi, worked

for her former enslaver, Landon Kilgore, in 1865, she was punished for working too slowly. “I told him I had done nothing for him to whip me. He said he wanted to whip me for some time and that I thought that I was free.” In September 1866, Rhoda Ann Childs, of Henry County, Georgia, was beaten, tortured, “and ravished” by an ex-Confederate soldier, in part because her husband had served in “the God damned Yankee Army.” Amanda Willis was forced out of her mother’s home near Springfield, Tennessee, and taken by a white man who “brought me down into the woods and had forcible connection with me.” Women fought back. In Wilkes County, Georgia, in May 1866, Tempy Hill, a freedwoman, saw a white man strike another Black woman, her sister-in-law Lydia Hill. She left her work in the field and confronted him with the “intention of fighting him and to take up for her color.” She struck the assailant with “a chunk of wood.”

THE NOTION OF access—to education and to American history through an African American lens—was central to the creation of the National Museum of African American History and Culture, which opened in 2016. I was its founding director. The effort to create the museum ultimately led to a project to make Freedmen’s Bureau records available to the broader public.

To begin the process of creating the museum, it was essential to understand the knowledge base of future visitors. For two years, starting in 2005, the museum conducted surveys throughout the country; reviewed an array of specialized reports on America’s understanding of its past; and organized on-the-street interviews that focused on young, diverse participants.

The data revealed that respondents had strong and conflicting views about the role, impact, and continuing resonance of slavery in American life. Almost everyone believed that slavery was an important story. Many felt that the museum should focus on how slavery shaped the African American experience and the way that slavery, “America’s original sin,” was an essential element in the founding and evolution of the United

One can tell a great deal about a country by what it chooses to remember. One can tell even more by what a nation chooses to forget.

More than 60% of products sold come from independent sellers

Like Pawstruck

Kyle Goguen, owner of Pawstruck dog chews and dog treats is just one of the small businesses making it big on Amazon. "Now I have a warehouse and a team of 50 employees in Great Bend, Kansas."



See how Amazon
supports small businesses
across the country



States. An equal number felt that, although it was once important, slavery had little meaning and relevance for contemporary audiences. I remember vividly the day when a Black woman, returning from church, greeted me as we passed on the street. She thanked all those involved in building the museum. But as she hugged me, she whispered, “Whatever you do, don’t talk about slavery.” To her and others, the museum had a chance “to help folks get beyond slavery”—to no longer be constrained by a past that some felt was embarrassing.

What this divide made clear to the museum staff was the need to centralize slavery and freedom as forces that helped define and continue to influence American politics, culture, and economics. But that would not be enough. The museum needed to humanize slavery, so that visitors would recognize the strength and resiliency of the enslaved.

Besides slavery, members of the public were most interested in understanding their own family history. Today, programs like *Finding Your Roots*, on PBS, and commercial services like Ancestry.com have made personal history accessible and engaging. But in 2005, the way forward was less clear. In due course, the museum would establish the Robert Frederick Smith Explore Your Family History Center. As we considered the center’s role, the staff realized that the biggest contribution would be to help illuminate the lives and histories of the enslaved. The obstacles to families trying to recover the stories of enslaved ancestors were immense. For one thing, African Americans were not enumerated by name prior to the 1870 census.

The best way to get beyond this barrier lay in the Freedmen’s Bureau documents. Generations of scholars, including Ira Berlin, Thavolia Glymph, and Eric Foner, had researched the wealth of information that these papers contained and published scholarly monographs for academic audiences. But access to this trove was too important to be left in the hands of professional historians, or made possible only for those who could travel to the National Archives, in Washington, D.C., which owns and houses the original records.

This understanding led to the creation of the Freedmen’s Bureau Project, whose aim was to create a digital portal that would make the bureau documents searchable by name and subject. Suddenly, hundreds of thousands of personal histories would be available not only to scholars but also to families in search of their ancestors and, by extension, in search of themselves: helping people find not embarrassment but strength and inspiration in their enslaved ancestors.

That portal could not have been built without an effective collaboration involving the museum, the National Archives, and a pioneering genealogical resource, FamilySearch—an organization dedicated to helping all people discover their family history. One major challenge was the need to review and transcribe upwards of a million pages of documents. Transcription was essential, because the records—written in 19th-century cursive by many different hands—are difficult for contemporary audiences to read. For this portal to have the desired reach, the documents needed to be transcribed by hundreds if not thousands of individuals—an army of trained volunteers whose energy had the additional benefit of helping generate support and enthusiasm for the museum itself in the years before its opening.

Much of the success of this ongoing transcription effort can be credited to FamilySearch and the community that it nurtured. Steeped in the traditions of the Mormon Church, FamilySearch had developed technology and processes that proved essential. Quality control was built in. Following its lead, Freedmen’s Bureau transcriptions are subject to a two-step review—first by a volunteer, then by a member of the Smithsonian staff. If additional edits are required at the final stage of review, the process begins again. Today, people accessing the Freedmen’s Bureau Digital Collection can see the original document as well as the transcription.

ONE CAN TELL a great deal about a country by what it chooses to remember: by what graces the walls of its museums, by what monuments are venerated, and by what parts of its history are embraced. One can tell even more by what a nation

chooses to forget: what memories are erased and what aspects of its past are feared. This unwillingness to understand, accept, and embrace an accurate history, shaped by scholarship, reflects an unease with ambiguity and nuance—and with truth. One frequent casualty of such discomfort is any real appreciation of the importance of African American history and culture for all Americans.

Why should anyone fear a history that asks a country to live up to its highest ideals—to “make good to us the promises in your Constitution,” as Frederick Douglass put it? But too often, we are indeed fearful. State legislatures have passed laws restricting the teaching of critical race theory, preventing educators from discussing a history that “might make our children feel guilty” about the actions and attitudes of their ancestors. Librarians around the nation feel the chilling effects of book bans. Some individuals who seek to occupy the highest office in the land fear the effects of an Advanced Placement class that explores African American history—a history that, as education officials in Florida have maintained, “lacks educational value”; a history that does not deserve to be remembered.

There is no reason to fear a history that, while illuminating the dark corners of America’s past, also displays values and expectations that are central to America’s identity: resiliency, family, education, fairness. The voices within the Freedmen’s Bureau papers demonstrate how the African American fight for access to education, economic opportunity, and basic human rights created paths that benefited all Americans.

Rather than running from this history, we should find in it sustenance, understanding, and hope. In the end, we can’t escape the past anyway. What Joe Louis said of an opponent applies to the legacy of history: You can run, but you can’t hide. *A*

Lonnie G. Bunch III is the secretary of the Smithsonian Institution. He was the founding director of the National Museum of African American History and Culture.



FIND LOVE LIKE A CEO

No apps. No online profiles. Just strategic dating.
As the nation's leading luxury matchmaking firm, Selective Search
is revolutionizing how busy, successful people find love.

CUSTOMIZED

Our programs are expertly tailored by
our Matchmakers for every client.

CONFIDENTIAL

No online profiles, because your personal
life is exactly that, personal.

COMMITMENT MINDED

We are dedicated to building long-term
loving relationships.

SELECTIVE  SEARCH®
EXECUTIVE SEARCH MEETS PERSONAL MATCHMAKING

866.592.1200 selectivesearch.com







Freedmen's Town

Photographs by Elbert D. Howze

In 1984, Elbert D. Howze, a Black Vietnam War veteran in his 30s, was studying photography at the University of Houston. After class one day, he drove about 10 minutes northwest into Houston's Fourth Ward. He wondered at the narrow streets, the tumbledown houses, and the proud community that seemed forgotten by the city. Howze had found his way to Freedmen's Town, a once-bustling neighborhood settled by formerly enslaved people in 1866—one of many such enclaves founded in the Reconstruction era. Its streets were still paved with bricks that the newly free had laid in intricate patterns. Soon he was visiting the Fourth Ward with his camera “practically every day,” his widow, Barbara Howze, told me.

Howze arrived at a moment when the neighborhood was under threat. Since before World War II, the city of Houston had used eminent domain to capture land, making way for whites-only housing and later I-45. By the late 1970s, Houston was in the midst of an oil boom, and many landlords had sold their property to developers. Howze's photographs documented what was left of a disappearing landscape, including the ward's characteristic 19th-century shotgun cottages and the first Black public school in Houston, the Gregory School (bottom row, second from left). But above all, he let the neighborhood's remaining residents fill the frame with their personality. The texture of their lives offers a corrective to erasure.

“The Fourth Ward is more than just a place,” Howze wrote. “It is a state of mind, but more importantly, it is people.” His regard for his subjects is reflected in their unstudied poses, the smiles intimating camaraderie. A boy, flanked by his buddies, stares back at the photographer. Two women show off a baby, their arms akimbo.

Howze died in 2015. Today his photographs are held in the Fourth Ward at the Gregory School, now restored as an African American history center. They are an essential record of the historic neighborhood, where activists are still fighting to save the brick streets laid by the emancipated.

— *Dara T. Mathis*

IT'S TIME TO PUT ON YOUR SANTA HAT

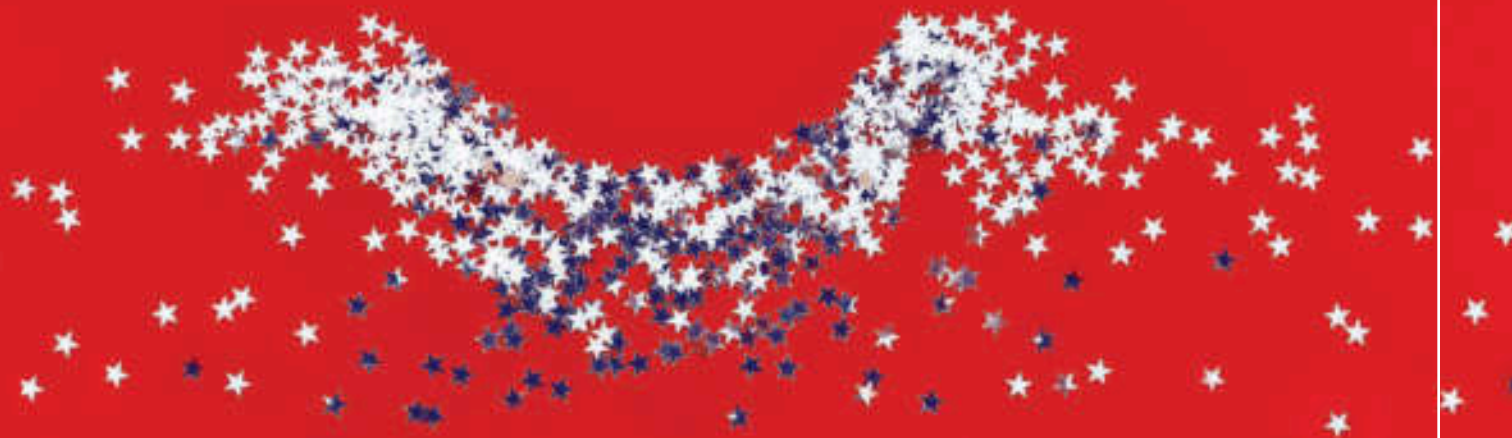
Christmas is a time of magic, hope and belief. Around the world, children anxiously create their wish lists.

While some wish for new doll houses and toy cars, others wish for necessities like food and water. This year, join an incredible team of everyday Santas and Heifer International to ensure these wishes come true.

*Right now, make twice as many wishes
come true with our special holiday match!*

**BE SOMEONE'S SANTA AT
[HEIFER.ORG/ATLANTIC](https://heifer.org/atlantic)**





Subekchay from Nepal
wants her parents to not
worry about money.



Misheck from Malawi
wants breakfast
every morning.



Samata from
Honduras wants
school supplies.

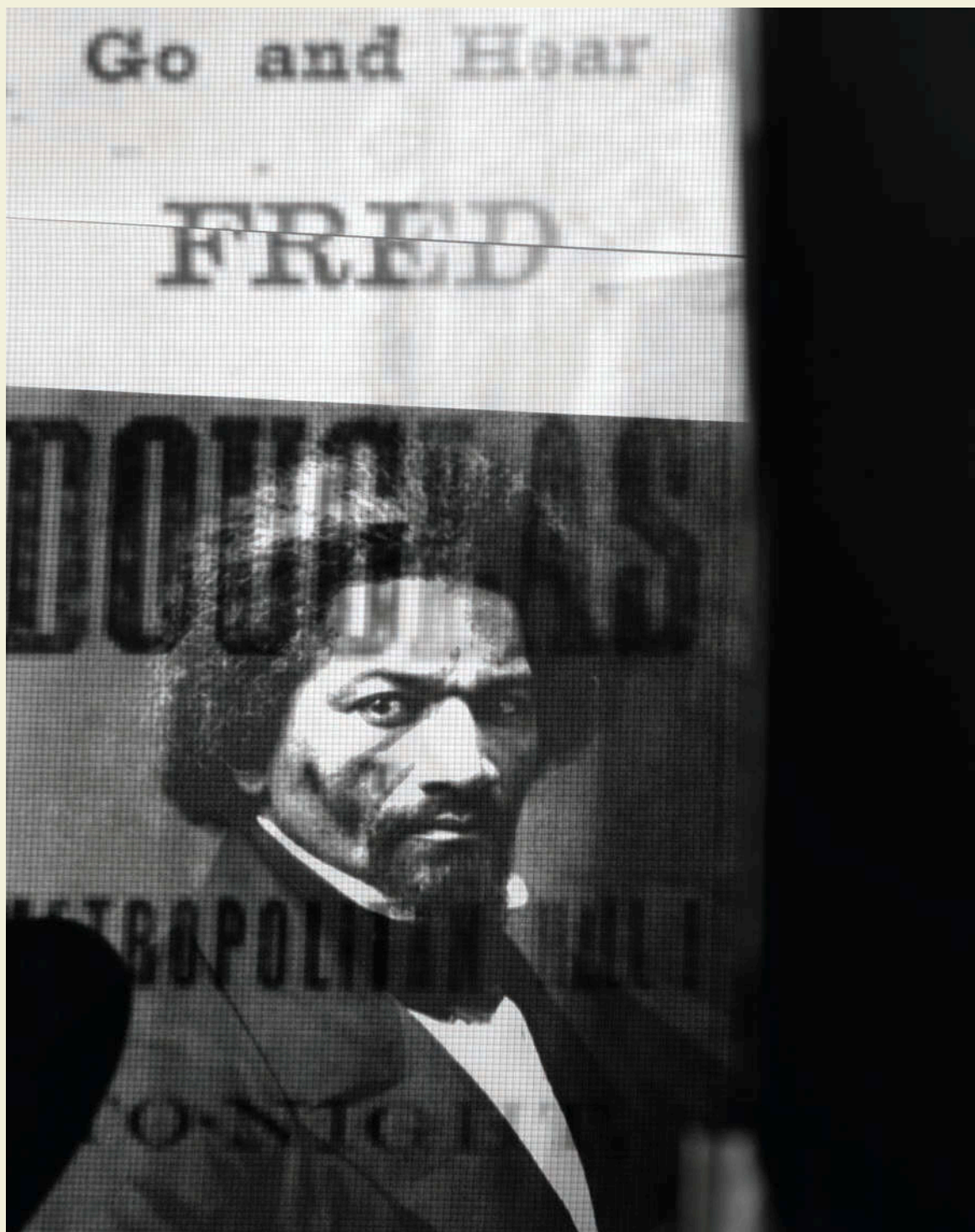


The Annotated

*In 1866, the famous abolitionist laid out
his vision for radically reshaping America
in the pages of The Atlantic.*

Introduction and annotations
by David W. Blight

Frederick Douglass



*Photograph by
Aaron Turner*

In his third autobiography, *Life and Times of Frederick Douglass*, while reflecting on the end of the Civil War, Douglass admitted that “a strange and, perhaps, perverse feeling came over me.” Great joy over the ending of slavery, he wrote, was at times “tinged with a feeling of sadness. I felt I had reached the end of the noblest and best part of my life; my school was broken up, my church disbanded, and the beloved congregation dispersed, never to come together again.” In recalling the postwar years, Douglass drew from a scene in a Shakespearean tragedy to express his memory of that moment: “Othello’s occupation was gone.” In *Othello*, Douglass perceived a character, the former high-ranking general and “moor of Venice,” who had lost authority and professional purpose. Douglass harbored a special affinity for this most famous Black character in Western literature, whose mental collapse and horrible end lingered as a warning in a famous speech: “O, now, for ever / Farewell the tranquil mind! Farewell content!”

In 1866, Douglass took up his pen to try to capture this moment of transformation, both for himself and for the United States. For the December issue of this magazine that year, in an essay simply titled “Reconstruction,” Douglass observed that “questions of vast moment” lay before Congress and the nation. Nothing less than the essential results of the “tremendous war,” he writes, were at stake. Would the war become “a miserable failure ... a scandalous and shocking waste of blood and treasure,” or a “victory over treason,” resulting in a newly reimagined nation “delivered from all contradictions and ... based upon loyalty, liberty, and equality”? In this inquiry, Douglass’s new role as a conscience of the country became clarified. His leadership had always been through words and persuasion, written and oratorical. How, now that the war was over, would he employ his incomparable voice?

From the beginning, Reconstruction had faced three paramount questions: Who would rule in the South (defeated ex-Confederates or the victorious North?); who would rule in Washington, D.C. (Congress or the president?); and what were the meanings and dimensions of Black freedom? As of his writing in December, Douglass declared that nothing could yet be “considered final.” After ferocious debates, Congress had enacted the Civil Rights Act of 1866 and passed the Fourteenth Amendment, the latter still subject to ratification by three-quarters of

the state legislatures. Violent anti-Black riots had occurred in Memphis and New Orleans that spring and summer, killing at least 48 people in the first city and at least 38 in the second. Much had been done to secure emancipation, but all remained in abeyance, awaiting legislation, human persuasion, and acts of political will.

As Douglass was writing, two visions of Reconstruction vied for national dominance in the fall elections. President Andrew Johnson, a Democrat from Tennessee, favored a policy of a lenient restoration, a plan that allowed for no Black civil and political rights and admitted the southern states back into the Union as quickly as possible. The Republican leadership of the House and the Senate, however, demanded a slower, harsher, and more transformative Reconstruction, a process that would establish state governments in the South that were more democratic. Black civil and political rights and enforcement mechanisms in federal law formed the backbone of these “Radical Republican” regimes.

Douglass was at this juncture a Radical Republican in the spirit of Thaddeus Stevens, the congressman from Pennsylvania who led the effort to impeach Johnson. Like Stevens, Douglass argued vehemently that Johnson had to be countered and thwarted by any legal means necessary or the promise of emancipation would fail. Douglass believed at the end of 1866 that, though only at its vulnerable beginning, the United States had been reinvented by war and by new egalitarian impulses rooted in emancipation. His essay is, therefore, full of radical brimstone, cautious hope, and a thoroughly new vision of constitutional authority. In careful but clear terms, he described Reconstruction as a revolution that would “cause Northern industry, Northern capital, and Northern civilization to flow into the South, and make a man from New England as much at home in Carolina as elsewhere in the Republic.” In short, he sought an overturning of history, the expansion of human rights forged from the fact of African American freedom—and from an idealism that soon would be sorely tested. Revolutions may or may not go backwards, but they surely give no rest to those who lead them.

David W. Blight is the Sterling Professor of American History at Yale and the author, most recently, of Frederick Douglass: Prophet of Freedom.

1. Douglass imagines here the coming of radical Reconstruction. The ascendant Radicals were a generation of politicians who had forged an antislavery party in the 1850s, created a stronger centralized national state in order to fight and win the Civil War, believed in energetic uses of federal power, felt themselves responsible for emancipation, and now sought to forge the remaking of the United States based on human equality and competitive capitalism. Their vision derived from years of advocacy for free labor and combined a mixture of idealism, pragmatism, and northern self-interest. The new nation-makers seized their historical moment. As Thaddeus Stevens put it, “The whole fabric of southern society must be changed, and never can it be done if this opportunity is lost.”

2. Here Douglass implicates the people put quickly back in power by President Johnson’s 1865 lenient plan of “restoration.” In southern whites’ choice to enact Black Codes, which restricted all elements of the freedmen’s lives, and to send numerous Confederates to be seated in Congress in December 1865, Douglass perceived the same “deadly hate” at the root of the proslavery revolution of 1861. To him, the risk in this pivotal crisis was losing the reality and meaning of emancipation.

RECONSTRUCTION

By FREDERICK DOUGLASS

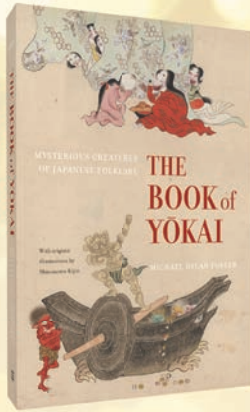
The assembling of the Second Session of the Thirty-ninth Congress may very properly be made the occasion of a few earnest words on the already much-worn topic of reconstruction.

Seldom has any legislative body been the subject of a solicitude more intense, or of aspirations more sincere and ardent. There are the best of reasons for this profound interest. Questions of vast moment, left undecided by the last session of Congress, must be manfully grappled with by this. No political skirmishing will avail. The occasion demands statesmanship.¹

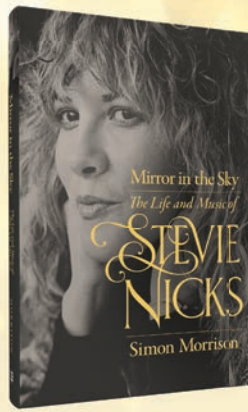
Whether the tremendous war so heroically fought and so victoriously ended shall pass into history a miserable failure, barren of permanent results,—a scandalous and shocking waste of blood and treasure,—a strife for empire, as Earl Russell characterized it, of no value to liberty or civilization,—an attempt to re-establish a Union by force, which must be the merest mockery of a Union,—an effort to bring under Federal authority States into which no loyal man from the North may safely enter, and to bring men into the national councils who deliberate with daggers and vote with revolvers, and who do not even conceal their deadly hate of the country that conquered them; or whether, on the other hand, we shall, as the rightful reward of victory over treason,² have a solid nation, entirely delivered from all contradictions and social antagonisms, based upon loyalty, liberty, and equality, must be determined one way or the other by the present session of Congress. The last session really did nothing which can be considered final as to these questions. The Civil Rights Bill and the Freedmen’s Bureau Bill and the proposed constitutional amendments, with the amendment already adopted and recognized as the law of the land, do not reach the difficulty, and cannot, unless the whole structure of the government is changed from a government by States to something like a despotic central government, with power to control even the municipal regulations of States, and to make them conform to its own despotic will. While there remains such an idea as the right of each State to control its own local affairs,—an idea, by the way, more deeply rooted in the minds of men of all sections of the country than perhaps any one other political idea,—no general assertion of human rights can be of any practical value. To change the character of the government at this point is neither possible nor desirable. All that is necessary to be done is to make the government consistent with itself, and render the rights of the States compatible with the sacred rights of human nature.³

The arm of the Federal government is long, but it is far too short to protect the rights of individuals in the interior of distant

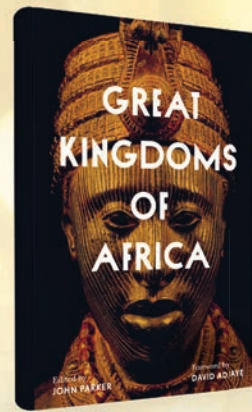
3. Throughout his public life, since his first days as an abolitionist in 1841, Douglass had been a fierce proponent of natural rights, here referred to as “human rights.” According to that tradition, all people drew from nature the rights to life, liberty, property, popular sovereignty, and revolution—rights enshrined in the Declaration of Independence. Douglass employs natural rights to launch his attack on the “states’ rights” doctrine. In his view, Americans had planted their ideas about rights so deeply in the notion of shared power and localism that they were too often helpless to advance the cause of increased liberty. Douglass all but prays here for the use of federal power to restrict—if not crush—the power of states.



A lively excursion into Japanese folklore and its ever-expanding influence on global popular culture through the concept of yokai.



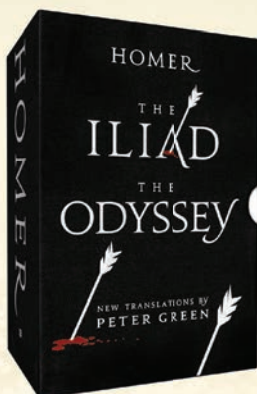
A stunning musical biography of Stevie Nicks that paints a portrait of an artist, not a caricature of a superstar.



A groundbreaking, sweeping overview of the great kingdoms in African history and their legacies.

GIFTS FOR DRIVING KNOWLEDGE

Books for Every Reader



A stunning boxed set of Homer's epics, brilliantly translated by a leading scholar of the classics.



Explore hidden city histories in this brilliant reinvention of the traditional atlas. "The maps themselves are things of beauty."—*New York Times*

4. Douglass saw speech, the written word, and the vote as equally sacred forms of human expression. He saw the franchise as a protector, a guardian of all other rights. He actually had wished for a more forceful occupation of the former Confederacy by federal troops, but because “despotic power, to blot out State authority” would never realistically work, he considered the vote the sacred mechanism of group and individual self-preservation. Douglass thus conceived of the vote not merely as an individual right, held in one’s conscience, but as a weapon of collective action that must be maximized and safeguarded above all other liberties.

5. This wonderful sentence captures Douglass’s conception of history itself. He believed that cataclysms and transformations could instruct humankind, even if they ruined us to a degree. To Douglass, the Civil War had been a lesson in blood, a conflict he saw in Christian apocalyptic terms, a crisis of destruction and remaking with meaning. In retrospect, he wrote in 1881 that nations “are taught less by theories than by facts and events.” The hope energizing this 1866 essay is the idea that the nation now confronted a great, if difficult, education.

States. They must have the power to protect themselves, or they will go unprotected, spite of all the laws the Federal government can put upon the national statute-book.

Slavery, like all other great systems of wrong, founded in the depths of human selfishness, and existing for ages, has not neglected its own conservation. It has steadily exerted an influence upon all around it favorable to its own continuance. And to-day it is so strong that it could exist, not only without law, but even against law. Custom, manners, morals, religion, are all on its side everywhere in the South; and when you add the ignorance and servility of the ex-slave to the intelligence and accustomed authority of the master, you have the conditions, not out of which slavery will again grow, but under which it is impossible for the Federal government to wholly destroy it, unless the Federal government be armed with despotic power, to blot out State authority, and to station a Federal officer at every cross-road. This, of course, cannot be done, and ought not even if it could. The true way and the easiest way is to make our government entirely consistent with itself, and give to every loyal citizen the elective franchise,—a right and power which will be ever present, and will form a wall of fire for his protection.⁴

One of the invaluable compensations of the late Rebellion is the highly instructive disclosure it made of the true source of danger to republican government. Whatever may be tolerated in monarchical and despotic governments, no republic is safe that tolerates a privileged class, or denies to any of its citizens equal rights and equal means to maintain them. What was theory before the war has been made fact by the war.

There is cause to be thankful even for rebellion. It is an impressive teacher, though a stern and terrible one. In both characters it has come to us, and it was perhaps needed in both. It is an instructor never a day before its time, for it comes only when all other means of progress and enlightenment have failed. Whether the oppressed and despairing bondman, no longer able to repress his deep yearnings for manhood, or the tyrant, in his pride and impatience, takes the initiative, and strikes the blow for a firmer hold and a longer lease of oppression, the result is the same,—society is instructed, or may be.⁵

Such are the limitations of the common mind, and so thoroughly engrossing are the cares of common life, that only the few among men can discern through the glitter and dazzle of present prosperity the dark outlines of approaching disasters, even though they may have come up to our very gates, and are already within striking distance. The yawning seam and corroded bolt conceal their defects from the mariner until the storm calls all hands to the pumps. Prophets, indeed, were abundant before the war; but who cares for prophets while their predictions remain unfulfilled, and the calamities of which they tell are masked behind a blinding blaze of national prosperity?⁶

It is asked, said Henry Clay, on a memorable occasion, Will slavery never come to an end? That question, said he, was asked fifty years ago, and it has been answered by fifty years of unprecedented prosperity. Spite of the eloquence of the earnest Abolitionists,—poured out against slavery during thirty years,—even they must confess, that, in all the probabilities

6. In his use of the maritime metaphor of unseen disaster at sea, and his suggestion that prophets are ignored or denounced until “calamities” strike, Douglass invites us into his thinking about history. It is waiting for us; it may break apart or flood the ship that has not been carefully inspected and repaired. And we usually never know which prophets are worth our attention until it is too late.

7. In a speech Douglass wrote in late 1863 and delivered throughout 1864, "The Mission of the War," he provided his fullest explanation of the meaning of the ongoing conflict. The challenge was to remake a "broken Constitution," in the throes of a holy war, driven by "Divine forces." The struggle had become an "Abolition war," not a "war for the Union," a fight to "reorganize the institutions of the country." The quest for "National regeneration" gave the conflict its "sacred significance." That speech even anticipated the purposes of radical Reconstruction. "We are in fact," Douglass declared, "and from absolute necessity, transplanting the whole South with the higher civilization of the North." And so here, in the 1866 essay, he employed an identical apocalyptic demands.

of the case, that system of barbarism would have continued its horrors far beyond the limits of the nineteenth century but for the Rebellion, and perhaps only have disappeared at last in a fiery conflict, even more fierce and bloody than that which has now been suppressed.

It is no disparagement to truth, that it can only prevail where reason prevails. War begins where reason ends. The thing worse than rebellion is the thing that causes rebellion. What that thing is, we have been taught to our cost. It remains now to be seen whether we have the needed courage to have that cause entirely removed from the Republic. At any rate, to this grand work of national regeneration and entire purification Congress must now address itself, with full purpose that the work shall this time be thoroughly done.⁷ The deadly upas, root and branch, leaf and fibre, body and sap, must be utterly destroyed. The country is evidently not in a condition to listen patiently to pleas for postponement, however plausible, nor will it permit the responsibility to be shifted to other shoulders. Authority and power are here commensurate with the duty imposed. There are no cloud-flung shadows to obscure the way. Truth shines with brighter light and intenser heat at every moment, and a country torn and rent and bleeding implores relief from its distress and agony.

If time was at first needed, Congress has now had time. All the requisite materials from which to form an intelligent judgment are now before it. Whether its members look at the origin, the progress, the termination of the war, or at the mockery of a peace now existing, they will find only one unbroken chain of argument in favor of a radical policy of reconstruction. For the omissions of the last session, some excuses may be allowed. A treacherous President stood in the way; and it can be easily seen how reluctant good men might be to admit an apostasy which involved so much of baseness and ingratitude.⁸ It was natural that they should seek to save him by bending to him even when he leaned to the side of error. But all is changed now. Congress knows now that it must go on without his aid, and even against his machinations. The advantage of the present session over the last is immense. Where that investigated, this has the facts. Where that walked by faith, this may walk by sight. Where that halted, this must go forward, and where that failed, this must succeed, giving the country whole measures where that gave us half-measures, merely as a means of saving the elections in a few doubtful districts. That Congress saw what was right, but distrusted the enlightenment of the loyal masses; but what was forbore in distrust of the people must now be done with a full knowledge that the people expect and require it. The members go to Washington fresh from the inspiring presence of the people. In every considerable public meeting, and in almost every conceivable way, whether at court-house, school-house, or cross-roads, in doors and out, the subject has been discussed, and the people have emphatically pronounced in favor of a radical policy. Listening to the doctrines of expediency and compromise with pity, impatience, and disgust, they have everywhere broken into demonstrations of the wildest enthusiasm when a brave word has been spoken in favor of

8. Douglass writes following the spectacular failure of President Johnson's "swing around the circle" campaign late that summer. For more than two weeks, Johnson made a whistle-stop tour of the Northeast and the Middle West, appealing to voters to reject Republicans as "traitors" and dangerous radicals, and demanding immediate "restoration" of the Union. Douglass accuses Johnson of attempting to steal the legislative powers of Congress and of soiling the meaning of the war. Thus, before Congress had even considered articles of impeachment for Johnson, Douglass here charted the broad path to that conclusion.

equal rights and impartial suffrage. Radicalism, so far from being odious, is now the popular passport to power. The men most bitterly charged with it go to Congress with the largest majorities, while the timid and doubtful are sent by lean majorities, or else left at home. The strange controversy between the President and Congress, at one time so threatening, is disposed of by the people. The high reconstructive powers which he so confidently, ostentatiously, and haughtily claimed, have been disallowed, denounced, and utterly repudiated; while those claimed by Congress have been confirmed.

Of the spirit and magnitude of the canvass nothing need be said. The appeal was to the people, and the verdict was worthy of the tribunal. Upon an occasion of his own selection, with the advice and approval of his astute Secretary, soon after the members of Congress had returned to their constituents, the President quitted the executive mansion, sandwiched himself between two recognized heroes,—men whom the whole country delighted to honor,—and, with all the advantage which such company could give him, stumped the country from the Atlantic to the Mississippi,⁹ advocating everywhere his policy as against that of Congress. It was a strange sight, and perhaps the most disgraceful exhibition ever made by any President; but, as no evil is entirely unmixed, good has come of this, as from many others. Ambitious, unscrupulous, energetic, indefatigable, voluble, and plausible,—a political gladiator, ready for a “set-to” in any crowd,—he is beaten in his own chosen field, and stands to-day before the country as a convicted usurper, a political criminal, guilty of a bold and persistent attempt to possess himself of the legislative powers solemnly secured to Congress by the Constitution. No vindication could be more complete, no condemnation could be more absolute and humiliating. Unless reopened by the sword, as recklessly threatened in some circles, this question is now closed for all time.

Without attempting to settle here the metaphysical and somewhat theological question (about which so much has already been said and written), whether once in the Union means always in the Union,—agreeably to the formula, Once in grace always in grace,—it is obvious to common sense that the rebellious States stand to-day, in point of law, precisely where they stood when, exhausted, beaten, conquered, they fell powerless at the feet of Federal authority.¹⁰ Their State governments were overthrown, and the lives and property of the leaders of the Rebellion were forfeited. In reconstructing the institutions of these shattered and overthrown States, Congress should begin with a clean slate, and make clean work of it. Let there be no hesitation. It would be a cowardly deference to a defeated and treacherous President, if any account were made of the illegitimate, one-sided, sham governments hurried into existence for a malign purpose in the absence of Congress. These pretended governments, which were never submitted to the people, and from participation in which four millions of the loyal people were excluded by Presidential order, should now be treated according to their true character, as shams and impositions, and supplanted by true and legitimate governments, in the formation of which loyal men, black and white, shall participate.

9. During Johnson's “swing around the circle,” the president flanked himself with Union officers while giving speeches, and embarrassed General Ulysses S. Grant by demanding that he appear with him on platforms.

10. The question of whether secession was constitutional was a central issue in determining the shape of Reconstruction. If, as President Abraham Lincoln stated during the war, the breaking of the Union was legally impossible, then the Confederate states had never really left. But Stevens and other Radical Republicans began to argue that the South had, in practice, formed a separate polity and engaged in insurrection—which meant that the North's right as conquerors to reshape state governments and laws was absolute. The decision by a grand jury in May 1866 to charge Confederate President Jefferson Davis with treason began the proceedings that many hoped would settle the question.

11. Already by late 1866, mob violence had become a shocking feature of Reconstruction in the South. Since the end of the war, southern whites had perpetrated both individual and mass murders of Black folk—especially those trying to exercise political or economic liberty. Black settlements were attacked; in Pine Bluff, Arkansas, 24 people were reportedly hanged from trees outside their cabins. In Texas alone, Freedmen’s Bureau agents estimated that of the nearly 1,000 people killed from 1865 to 1868, more than half of them were Black people who had been killed by white people. The violence was often “anarchical,” as Douglass indicates, but it was also highly organized at times, especially after the emergence of the Ku Klux Klan, in Tennessee in 1866. The toll of violence as a part of “normal politics” would grow even greater in the months before the election of 1868. Douglass’s essay is a frightful warning of violence in the future.

It is not, however, within the scope of this paper to point out the precise steps to be taken, and the means to be employed. The people are less concerned about these than the grand end to be attained. They demand such a reconstruction as shall put an end to the present anarchical state of things in the late rebellious States,—where frightful murders and wholesale massacres are perpetrated in the very presence of Federal soldiers. This horrible business they require shall cease.¹¹ They want a reconstruction such as will protect loyal men, black and white, in their persons and property; such a one as will cause Northern industry, Northern capital, and Northern civilization to flow into the South, and make a man from New England as much at home in Carolina as elsewhere in the Republic. No Chinese wall can now be tolerated. The South must be opened to the light of law and liberty, and this session of Congress is relied upon to accomplish this important work.

The plain, common-sense way of doing this work, as intimated at the beginning, is simply to establish in the South one law, one government, one administration of justice, one condition to the exercise of the elective franchise, for men of all races and colors alike. This great measure is sought as earnestly by loyal white men as by loyal blacks, and is needed alike by both. Let sound political prescience but take the place of an unreasoning prejudice, and this will be done.

Men denounce the negro for his prominence in this discussion; but it is no fault of his that in peace as in war, that in conquering Rebel armies as in reconstructing the rebellious States, the right of the negro is the true solution of our national troubles. The stern logic of events, which goes directly to the point, disdaining all concern for the color or features of men, has determined the interests of the country as identical with and inseparable from those of the negro.

The policy that emancipated and armed the negro—now seen to have been wise and proper by the dullest—was not certainly more sternly demanded than is now the policy of enfranchisement. If with the negro was success in war, and without him failure, so in peace it will be found that the nation must fall or flourish with the negro.¹²

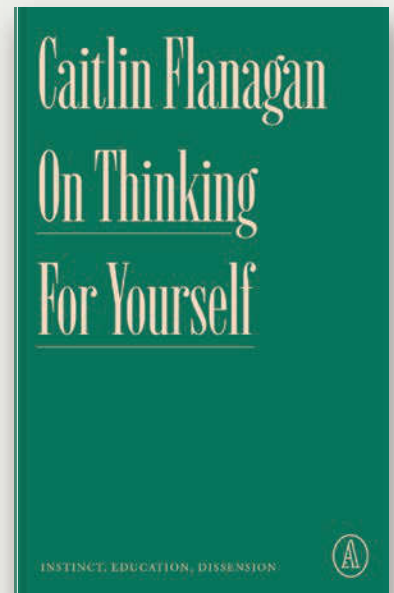
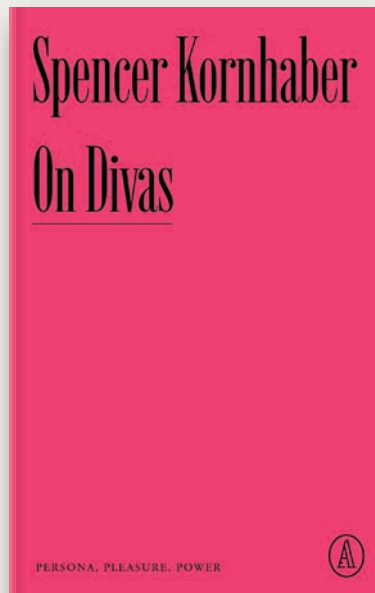
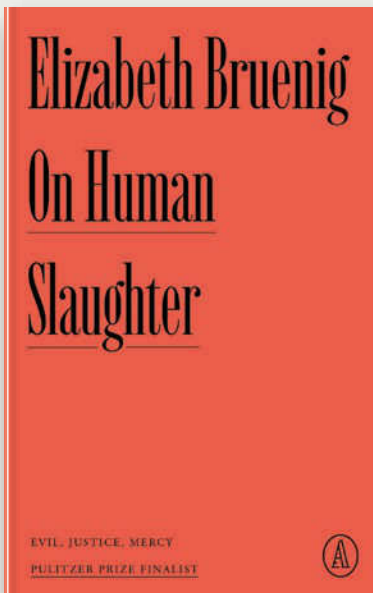
Fortunately, the Constitution of the United States knows no distinction between citizens on account of color. Neither does it know any difference between a citizen of a State and a citizen of the United States. Citizenship evidently includes all the rights of citizens, whether State or national. If the Constitution knows none, it is clearly no part of the duty of a Republican Congress now to institute one. The mistake of the last session was the attempt to do this very thing, by a renunciation of its power to secure political rights to any class of citizens, with the obvious purpose to allow the rebellious States to disfranchise, if they should see fit, their colored citizens. This unfortunate blunder must now be retrieved, and the emasculated citizenship given to the negro supplanted by that contemplated in the Constitution of the United States, which declares that the citizens of each State shall enjoy all the rights and immunities of citizens of the several States,—so that a legal voter in any State shall be a legal voter in all the States. *A*

12. For Douglass, Reconstruction was a revolution that must be sustained and codified in law. He makes a case here, as many times before, that the cause of Black freedom was the cause of the whole nation. For the next three years, Radicals like Douglass could fairly entertain that they were winning this revolution. But in the 1870s, a brutal reckoning ensued, in the form of the Democratic Party’s white-supremacist counterrevolution. Reconstruction, like so many other pivotal eras in history, became an arc of victory, retreat, and defeat.

PROMOTION

Atlantic Editions

Morality and compassion.
Sparkle and spectacle.
And more books from *Atlantic* writers.



Order at
TheAtlantic.com/atlantic-editions



zando

THIS GHOST of SLAVERY

A PLAY of PAST and PRESENT



By

ANNA DEAVERE SMITH

ILLUSTRATIONS BY DIANA EJAITA

For her work as an actor and a playwright, Anna Deavere Smith has been a Pulitzer Prize finalist, a two-time Tony Award nominee, a MacArthur-genius-grant honoree, and a recipient of the 2012 National Humanities Medal. She is known for her performances on popular TV series such as *The West Wing* and *Black-ish*, in movies such as *Philadelphia* and *The Human Stain*, and in stage plays and one-woman shows, on and off Broadway.

In the 1990s, Smith was credited with advancing a distinctive form of theater: She reports her story out, conducting scores of interviews, and then transforms the transcripts into dramatic art. For her play *Twilight*: Los Angeles, 1992, about the Rodney King riots, she interviewed more than 300 people, composing the script entirely out of material from those conversations.

With *This Ghost of Slavery*, Smith once again deploys her signature use of contemporary interviews, including with people who have been absorbed into the criminal-justice system, many of whom she has interviewed for her *Pipeline Girls Project*, which examines how proximity to the carceral system affects young women. She has also interviewed activists and social-justice workers, many of them associated with a nonprofit organization called *Chicago CRED*, which seeks to reduce gun violence and help young people ensnared in gangs or the juvenile-justice system. But this time she has also supplemented these interviews with primary-source historical materials. She has mined 19th-century archives, transcripts, and diaries, and woven dialogue from these sources into the play.

For this work, Smith's decision to blend her contemporary interviews with historical accounts of Maryland in the mid-1860s is apt. The echoes of history reverberate loudly, revealing the power of historical trauma to shape behavior in the present day.

To provide clarity for readers, we have footnoted all material drawn from Smith's interviews and from historical sources. Unless otherwise specified, any material not footnoted is invented (even when drawing on historical events). All contemporary characters are fictional, even those whose dialogue is drawn from Smith's interviews. (Some quotes have been lightly edited for clarity.) Daniel Rattner provided extensive research assistance for this project.

DRAMATIS PERSONAE (In Order of Appearance)

11-Year-Old Slave Girl	Our guide
Anas Ali	Aide-de-camp, Latitude
Dr. Carolina Nelson, a.k.a. "Doc"	Professor at Johns Hopkins; co-founder, Latitude
Tobias Midwinter	Co-founder and CEO, Latitude
Lindsay Brooks	Tobias's bodyguard; staff, Latitude
Zel Maxwell	Tobias's bodyguard; staff, Latitude
Dr. Carl Vogel, a.k.a. "Dr. V"	Psychiatrist and clinical director, Latitude
Jack Ross	Professor at Johns Hopkins
The Dean	Johns Hopkins dean of humanities
The Provost	Johns Hopkins provost
Jaxon	Inmate, New Beginnings Youth Development Center
Frederick Douglass	Abolitionist
Salmon Chase	Chief justice of the United States, 1864–73
General Lew Wallace	Civil War general, VIII Army Corps, Baltimore
Abraham Lincoln	United States president
Edwin Stanton	Secretary of war, Lincoln administration
Major William Este	Assistant to General Wallace
Nkosazana	Latitude client
Reverend Robert W. Todd	Delegate, Maryland Constitutional Convention, 1864
Archibald Stirling Jr.	Delegate, Maryland Constitutional Convention, 1864
Edwin A. Abbott	Delegate, Maryland Constitutional Convention, 1864
Ezekiel Forman Chambers	Delegate, Maryland Constitutional Convention, 1864
Joseph M. Cushing	Delegate, Maryland Constitutional Convention, 1864
Henry Stockbridge	Delegate, Maryland Constitutional Convention, 1864;
	attorney, Freedmen's Bureau
William T. Purnell	Delegate, Maryland Constitutional Convention, 1864
Joseph B. Pugh	Delegate, Maryland Constitutional Convention, 1864
James L. Ridgley	Delegate, Maryland Constitutional Convention, 1864
Frederick Schley	Delegate, Maryland Constitutional Convention, 1864
Young Coston	Child indentured as an apprentice, 1864–66
Elizabeth Turner	8-year-old slave girl
Philemon Hambleton	Owner of Elizabeth Turner
James Nelson	Carolina Nelson's uncle
Desmond Burns	Director of the study of slavery, Maryland State Archives
Farley McGibben	Research archivist, Maryland State Archives
Betsy Turner Minoky	Elizabeth Turner's mother
Maggy Toogood	Slave
Maggy Toogood's Master	Slave owner
Kate Chase Sprague	Salmon Chase's daughter
Charles Minoky	Elizabeth Turner's "next friend"
B.	James Nelson's partner

ACT I

This play will go back and forth in time and have many locations, some in the 1860s and others in the present. An imaginative theater-design team, and a sprinkle of theater magic, will help us move effortlessly from time to time and place to place.

An 11-YEAR-OLD SLAVE GIRL from the 1860s (mixed race, ill-clothed, bare feet) walks across the stage, pulling open a huge curtain, revealing a robust Black man (30s, T-shirt, black jeans) at a lectern in a modern-day classroom, mid-speech.

ANAS ALI: I didn't mean to kill him. I was just trying to scare him. He was a drug addict and I got him his drugs, and he was messin' with my money. But when you kill somebody, that's a heavy thing. When I went to court to be sentenced, the prosecutor asked to give me more time than I was taking a plea bargain for, and I asked the judge, "Can I speak to the family?" So I turned around, and one thing that stuck out to me was that I couldn't really identify who was there for him, who was there for me. Because our families looked so much alike. And I told the family that no matter how much time I get, the prosecutor wasn't there to support them. It was just another body that was dead, and another person being locked up in prison. But I promised the family that whenever I got out of prison, I would try my best to help young men not make the same decisions as I made. I said that at 17 years old, going into prison. Whatever you goin' through, it's so much better than being in a prison. When I got out, I was 24 years old, and I was just eager to talk to young guys and tell 'em what's on the other side and how it's just not worth it. If I had to walk miles, it's so much better than bein' in prison—standing outside in the cold. I shot a man and ... it's a heavy thing.¹

A CLASSROOM AT JOHNS HOPKINS UNIVERSITY, BALTIMORE,
MARYLAND, PRESENT DAY

Ambivalent applause. The STUDENTS are undergrads of different races, predominantly white and Asian. Notably, students of color do most of the talking. There are two BLACK FEMALE students, one BLACK MALE STUDENT, and one MIXED HERITAGE/LATINX NONBINARY STUDENT. Additionally, there is a WOKE WHITE MALE STUDENT.

In the back of the room stand CAROLINA NELSON, Ph.D. (Black, mid-30s, dressed in a low-key, hip way); TOBIAS MIDWINTER (Black, late 40s, wearing runway-style street fashion—think Isabel Marant, Wales Bonner); his bodyguards, LINDSAY BROOKS (20s, Black, gorgeous) and ZEL MAXWELL (20s, Black, charismatic, a jock); and CARL VOGEL (30s, white, a young Paul Farmer type with a warm demeanor), Latitude's staff psychiatrist. Nearby are JACK ROSS (white professor, early 30s) and THE DEAN (white, male, late 40s).

JACK: Well. This was a real gift. Thank you, Professor Nelson, for giving us your time in the very hour before your sabbatical begins. Grace us with a few closing words.

CAROLINA: I think after hearing from my collaborators—Anas Ali, Tobias, Lindsay, and Zel—you can imagine why I decided to

sit down with them and create Latitude. We will support, using a 360-degree approach—with our know-how, resources, and friendship—incarcerated, newly released, and never-incarcerated-but-vulnerable youth so that they can work toward substantive personal and societal change.

WOKE WHITE MALE STUDENT: Is this "evidence based"? And if so, what evidence do you have that your program works?

CAROLINA: We don't have hard evidence yet. It's early days. We are part practice, part experiment, but we have some anecdotes if that'll be helpful. Tobias, you want to take that?

TOBIAS steps up to answer the first question, but what ensues after that is the Latitude staff members answering questions in a seamless flow, continuing one another's sentences unbroken; it's almost athletic, like a basketball team passing the ball around.

TOBIAS: So, for example, I had a young man who came in poppin' seven, eight perc's, oxy's a day—whatever he can get his hands on—just trying to numb himself from the demons he has seen, what he has done, what he's experienced. Um, he's a shooter, so forth and so on. Well known. He finished his high-school diploma, got accepted into a union that would probably not have taken him had we not had him as part of the program. This is the Brotherhood of the Painters. You get up at 3 o'clock in the morning, 3:30, to get to a job at five. You paint, right? And you then are exposed to all these different cultures and people outside of the block, so forth and so on. Long story short, he has moved away from the neighborhood. He owns a townhome in the suburbs with his fiancée, and he's making \$50 an hour painting.²

BLACK FEMALE STUDENT NO. 1: I'm worried about an assumed pathology of Black teens—

TOBIAS: Zel, you got that?

ZEL: This is not about flaws specific to any race. This is about vulnerability to systemic racism. I think even when you feel ready and safe enough to be vulnerable enough to step outside the box, it's hard to be able to separate from a group that has been in a four-block radius.

LINDSAY: It's just so many things people are scared to let go of.

CARL: We have the push, the cognitive-behavioral-intervention things that we do—you know, the programming that we try to provide, the supports ...

CAROLINA: ... The ability for us to give them access to resources, to connections to people ...

CARL: ... Helps them to reintroduce themselves to a different part of themselves that the people in their immediate circle have never met or would have criticized ...

TOBIAS: ... And/or not been supportive of, because they haven't been there themselves.³

ANAS ALI: We're in juvenile hall ...

1. Verbatim excerpts from an interview with Kanoya Ali, a former gang member and violence-intervention worker at Chicago CRED, a nonprofit dedicated to reducing gun violence, March 27, 2021. (Some of the interviews with individuals from Chicago CRED were supported by a commission from the Lyric Opera of Chicago.)

2. Verbatim excerpts from an interview with Necole Muhammad, a social worker at Chicago CRED, January 7, 2021.

3. The dialogue here, starting with "I think even when you feel ready," is from the Necole Muhammad interview.

ZEL: ... Hospital wards ...

CARL: ... Emergency rooms ...

TOBIAS: ... Funeral homes, cemeteries ...

ANAS ALI: ... High-school graduations ...

CARL: ... And right nearby the school when we get word somebody's gettin' kicked out ...

ZEL: ... And at the basketball courts ...

ANAS ALI: ... And at Crazy Down Home Chicken and Seafood on Edmonson ...

ZEL: ... Laundromats ...

LINDSAY: ... And movin'. I'm the one always movin'. On the streets.

BLACK MALE STUDENT: Carolina, don't you feel that you are taking advantage of them—appropriating their stories?

BLACK FEMALE STUDENT NO. 2: When you put your work in writing, who will be lead author?

TOBIAS: Does that matter?

MIXED HERITAGE/LATINX NONBINARY STUDENT: We just don't think she should be exploiting you.

TOBIAS: "She"? Don't you refer to her as "Professor"?

WOKE WHITE MALE STUDENT: Not all of us believe in hierarchies.

TOBIAS: Okay, we gotta roll, so lemme just say this: Y'all tickle me. When I was growin' up, 'round Pennsylvania Avenue, we were "poor," then we were "indigent," then "disenfranchised," and now, I been checkin' out the classes with Dr. Nelson, and I have never heard half the words y'all use when you talk about "us" and about how we live. And yeah, Johns Hopkins has always been a part of our lives—

ZEL: My grandmama used to say, "In Baltimore, the Black women work at Hopkins and the Black men go to jail."

TOBIAS: And absolutely, Johns Hopkins University and the Hopkins Hospital folks have made a difference on many blocks in Baltimore and have done many good deeds. But Hopkins never happened to come to *my* block. And, as fate and my good luck would have it, while Dr. Carolina Nelson was in the hood, doing her style of research, she found me. I was left for dead—as in, just about dead physically, spittin'-on-my-grave dead societally, and flatlining-dead spiritually. She *found* me—

ANAS ALI: They found each other ...

TOBIAS: And we have talked and talked and talked—

ANAS ALI: I mean, they really talked! I saw it with my own eyes—

TOBIAS: —And we got this massively insane idea.

ANAS ALI: Dr. N got resources like—we don't have what she has. Jus' sayin'.

TOBIAS: I have resources she does not have, and before you know it, we're putting down on paper this outrageous proposition that together we might be able to suggest some ways to save lives.

BLACK FEMALE STUDENT NO. 2: No offense to you, Dr. Nelson, but you need to face the fact that they *use* you around here, and you need to face the fact that you are therefore being *branded* by Hopkins. You are part of their brand.

BLACK FEMALE STUDENT NO. 1: And so am I! And so are you!

WOKE WHITE MALE STUDENT: We all end up represented in the brochure ...

BLACK MALE STUDENT: Not in the same way.

SOUTH ASIAN STUDENT STUDYING ABROAD: Why is everything always related to the American Black-white binary?

All of the students start yelling at one another.

JACK: Civil conversation! Civil conversation!

MIXED HERITAGE/LATINX NONBINARY STUDENT: (*Speaking over the tumult.*) We just don't think she should take advantage of you!

TOBIAS: "She"? There's that "she" again. You talkin' about Dr. Nelson? And they say in the hood we disrespect teachers. Look. I am from the streets. If I don't know the difference between a friend and a parasite, well hey. If being friends with one of your professors and her being friends with me is getting taken advantage of and/or being appropriated, don't worry about me—worry 'bout her, about *me* taking advantage of *her*. 'Cause that is exactly what I plan to do while we build out Latitude: take advantage of her knowledge and her belief in us.

STUDENT: Why do you trust her?

ZEL: The question is, why does Dr. Nelson trust *us*?

ANAS ALI: It's mutual! Y'all cool with "mutual"?

CARL: "Mutual-ity"?

Some snap; some glance surreptitiously at one another as if they are about to start their own revolution. JACK steps quickly to the lectern.

JACK: Dr. Nelson, I can't thank you enough for introducing us to your new cohort. Okay, everybody—we're flipping the syllabus. Next week, G. Stanley Hall on "Storm and Stress." Not Genet's *The Criminal Child*.

THE STUDENTS split. TOBIAS, ANAS ALI, and CARL, flanked by ZEL and LINDSAY, start to head out. JACK goes to CAROLINA.

JACK: Wish they had been kinder. Wish they were less cynical. Wish they had less to prove. Wish they could spare a little benefit of the doubt! Oh my God, I am *so* going to miss you! With whom shall I continue to fail in my attempt to subvert the tragic academic-cynical-greed complex?

CAROLINA: Come work with us. We need your tireless hope and curiosity.

JACK: It'd be too depressing. I'd be comatose within the first week. (*He pauses.*) Alas, your biggest fan approaches.

THE PROVOST, a tall, white, imposing man with a twinkle in his eyes, enters and dashes toward CAROLINA with open arms.

THE PROVOST: I'd hug you goodbye, but that's not appropriate these days. How gracious of you to drop off a thank-you note. You're one of the few people under 40 who can still write cursive. But I should thank *you* for being—Oh! Are these your ... people, your, uh ...

CAROLINA: ... Collaborators.

THE PROVOST glances at ANAS ALI, TOBIAS, ZEL, LINDSAY, and CARL—hesitantly, as though they're cool and he's the nerd.

CAROLINA: They're friendly.

THE PROVOST rushes toward the group with open arms. They talk in the background as THE DEAN steps in to talk with CAROLINA.

THE DEAN: I'm worried about you.

CAROLINA: The women with us are armed—Tobias's bodyguards. I'm safe.

THE DEAN: I'm serious.

CAROLINA: So am I.

THE DEAN: The provost granted you this leave, but by the time you get back here, he might have left and you'll likely be met with a promotions committee that is tired of genuflecting to the VP of diversity and faculty advancement. As for that big heart of yours, you need to remember that you are an academic, not Mother Teresa. (*He pauses.*) Sorry, that comment was—I guess—disrespectful.

CAROLINA: To Mother Teresa, yes.

THE DEAN: You gotta get that second book done. Period, full stop.

CAROLINA: Who is the book for? Who's gonna read it? I went to a double funeral last week for a 12-year-old and a 13-year-old, both gunned down by a 14-year-old. I know you're masterful at fundraising, and it's blasphemous to say this, but ... why do we need another building? How about pouring those 10 digits into the community?

THE DEAN: Your arguments usually have more teeth than that.

ZEL slides up.

CAROLINA: (*With exasperation; her buttons have been pushed—there's a history here.*) Honestly, I don't get it. Wow. I'm almost out the door, and we've discussed this what? Ten times? Eleven? Twelve?

ZEL: 'Scuse me ... We gotta jump.

THE DEAN watches as they leave.

ZEL: Necessary distance—never lose your cool with a white dude. That's like fighting with a cop. You will lose, 'cause they still got the power. (*Beat.*) He a control-freak, dominating kinda cat?

CAROLINA: Not a cat at all. A dog.

MAYA ANGELOU ACADEMY, NEW BEGINNINGS YOUTH DEVELOPMENT CENTER, LAUREL, MARYLAND

A room that looks and smells brand new. On the brightly painted walls are inspirational quotations from Maya Angelou. Outside the window, we see what appears to be the manicured grounds of an upscale community-college campus.

CAROLINA, TOBIAS, ANAS ALI, ZEL, CARL, and LINDSAY sit in a circle with JAXON (Black, 17, supremely handsome, with a sincere face. He looks like a young Harry Belafonte, wearing not a prison-style jumpsuit but rather khakis and a polo shirt). He listens intently.

TOBIAS: 'Cause in your case, you could walk out the door with us—today.

ANAS ALI: Fast as you got arrested and your life changed? That's today; your life will change, in less than 40 minutes, with us—out that door.

JAXON: I just feel like—can I tell you how I feel on the ... committed thing?

CAROLINA: Absolutely.

JAXON: Once you get committed, they provide you with a job, provide you with all the services, but it's like, once your commitment expires, it's like they done with you, like Youth Services—they're not there for you no more. They don't provide you with no job again or ... no tutor, no mentor, and stuff. 'Cause you not—you're not under government. You're not a ward of the state anymore. Yeah. I'm worried about that. I mean, sometimes it makes me feel like I wish that I was committed until I was 21. Which is bad because if you get locked up, then you can be sent out, out anywhere they want to send you. They could send you out to Utah, Minnesota, Nebraska. But at the same time, I really feel like, to help me get through life, I need them services that they provide for me, 'cause it actually helps me. You get released from the jail, they not giving you none of these-type services. They not giving you no tutor, no mentor, all that type of stuff they give you right there.⁴

ANAS ALI: You're right—the system is flawed. They dump you right outside to make it on your own. But we got you. All those services you have in here? You gonna have all that ...

TOBIAS: ... Except you'll be free. That's the key word—*free*.

CARL: Mind, body, soul emancipation.

ANAS ALI: Out there in the free world, we will provide wrap-around services—life coaches, therapists, help with your GED, job placement—

LINDSAY: You look like you bodybuild ...

ZEL: ... You gonna need healthy food and a safe place to work out.

LINDSAY: We got all that. Brand-new gym. Nutrition classes.

4. Verbatim excerpts from an interview with an anonymous young man conducted at Maya Angelou Academy, on its campus at the New Beginnings Youth Development Center, a juvenile correctional facility, May 27, 2015.

ZEL: I'm in charge of strength training. You got any kids?

JAXON: Yeah. A son.

CARL: Have you ever spent a full day with your son?

JAXON: No.

CARL: You're gonna need parenting classes.

CAROLINA: And this is not a onetime thing. We will commit to you for five years ...

ANAS ALI: ... If you will commit to us.

TOBIAS: You have a way about you that would make a good leader. You can also move up in our organization, and get a job with us at the top level.

CARL: Leadership training ...

ANAS ALI: ... And no paperwork. Once we get on the other side of that door—that same door you walked through when you got incarcerated—someone will hand you one piece of paper to sign.

ZEL: ... One signature ...

LINDSAY: You look skeptical. What's up?

ANAS ALI: What's goin' on, Jaxon?

CARL: There's no judgment here.

JAXON: It's like ... now you back in the street, you tryin' to make money, you doin' all the things to get you right back in a place like this. Selling drugs, stealing, stealing cars, robbing people—they things that could lead you back into the same predicament, or even worse. I'd rather have a job in here and get money that way than to keep looking over my back, worryin' 'bout when the police gonna ride up and try to grab me or something like that.⁵

LINDSAY: You need somebody to move with you once you hit the streets. I was known for how I move in the streets. My daddy was a chief. That's how I learned to move. Movin' 10 steps behind my daddy—I saw everything ...

ANAS ALI: ... Ain't a street from here to Hong Kong where Lindsay can't move and stay safe and stay legal. Lindsay would hang with you for a good while.

JAXON: That would be amazing.

A SMALL BOY blasts in, enraged. ANOTHER BOY blasts in, and repeatedly throws the SMALL BOY up against the wall. Both boys are in khakis and polo shirts. (This facility strives to look like a school, not a prison.) The smaller boy breaks loose, gets a chair and starts hammering the other boy. A MALE GUARD in street clothes struts in without any visible urgency. He wordlessly guides CAROLINA, TOBIAS, ANAS ALI, LINDSAY, CARL, and ZEL into another room with a glass door and a window. JAXON, still in direct proximity to the violence, watches unfazed as blood explodes from these boys while they fight. A VERY LARGE BLACK FEMALE GUARD enters. She and the MALE GUARD stand by as the fight escalates. In a moment when



DIANA EJAÍTA

both boys are down on the ground, the FEMALE GUARD sits on top of them. The MALE GUARD handcuffs them and leads them out.

The door of the room holding CAROLINA, TOBIAS, ANAS ALI, ZEL, CARL, and LINDSAY automatically, soundlessly slides open. They return to JAXON and resume as though nothing out of the ordinary has happened.⁶

TOBIAS: So where were we?

JAXON: The judge talked to me. 'Bout all this y'all speakin' on.

ZEL: Judge came out here to talk to you?

JAXON: Nah.

ANAS ALI: Had 'em transpo you into town to her chambers?

JAXON: Nah. We talked on Zoom.

ZEL: On ... Zoom?

TOBIAS: Private, though? Just you and her?

JAXON: Nah. The probation dude was there.

ANAS ALI: Still, that's an honor, man. Means she's countin' on you.

The first long pause in the scene happens here.

JAXON: Yeah. Y'all basically the same type o' people out on the streets, just sober. 'Cept you. (He nods toward CAROLINA.) You a teacher?

CAROLINA: I am.

6. This incident is based directly on what unfolded during the author's interview with the youth at New Beginnings.

5. From the interview with the youth at New Beginnings.

JAXON: (*To TOBIAS.*) Tobias. Yeah. I just figured out who you are, man. People say you was underground. You a legend. You used to run the world from Lanvale Street clear to D.C. and up to Wilmington—the racetracks and stuff like that.

TOBIAS: But I wasn't free. Now I am free. And you can be too.

JAXON: I feel like laughin' but yet and still, I feel like cryin'. Y'all too good to be true. Anything too good to be true ... ain't true.

JAXON strolls, with a princely gait, to the door. It automatically opens. He leaves. It soundlessly shuts. A beat of deflated silence.

ZEL: The judge was supposed to invite him to her chambers for a personal meeting. *Personal.* Our whole thing is personal. Our whole thing is the system ain't personal. And here she meets the dude on Zoom with a probation officer there?

ANAS ALI: Maybe there was was a scheduling conflict.

ZEL: Man, this ain't time for your rose-colored shades. Only reason she signed on is to clean up her bad karma. And has the nerve to do it half-assed with us? I have stood before her. I told y'all she was full of shit. I told y'all we needed a judge with a heart. She ain't got no heart, and havin' the nerve to go half-ass with us! She is sabotaging our shit!

LINDSAY: Zel. You spinnin' out.

ZEL: Am I? It's Friday afternoon, and we endin' this particular week without a single recruit.

Beat.

CARL: They've put so many Maya Angelou quotes on these walls.

CAROLINA: They named the place after her: Maya Angelou Academy.

ZEL: Wonder if she would think this an honor. If I were Maya Angelou, I'd rather not have my name on a renovated juvie.

LINDSAY: If I were Maya Angelou, I'd rather not have my name on somethin' that got built with money from that chomo short eyes Jeffrey Epstein.⁷

ANAS ALI: Nobody knew what that dude was up to when they built this ...

CAROLINA: What will we do if we learn that any of *our* funders are dirty?

ZEL: If I was Maya Angelou, I would rather have a college named after me than a juvie.

TOBIAS: What's the point if the kids don't even believe they can be free? How did we get here?

7. In 2012, the Jeffrey Epstein VI Foundation announced that it was providing "substantial" financial support to the Maya Angelou Charter School in the Washington, D.C., area, which operates the Maya Angelou Academy at the New Beginnings Youth Development Center. (Both *chomo* and *short eyes* are prison slang for "child molester.")

TOBIAS'S LOFT, IMMEDIATELY FOLLOWING

A 2,000-square-foot loft in a converted 19th-century textile mill. Sink, microwave, espresso machine, workout bench, rack of weights, heavy bag, speed bag, gloves, mitts, a towel. A Sub-Zero fridge, but no other furniture except a pallet that serves as a bed in a corner. Sleek new hardwood floor.

ZEL and LINDSAY are by the window, eating takeout, on guard. TOBIAS, ANAS ALI, CARL, and CAROLINA eat around an old factory door on wooden carpenter's horses—a makeshift table. Chairs don't match. There's a whiteboard on wheels nearby. Everyone's barefoot because TOBIAS is a tyrant about his perfect floor.

LINDSAY: It's Friday at 4:33, and looks like don't nobody want to leave jail this week.

ANAS ALI: Seven meetings this week and not one signed up for Latitude, but this is the first time that happened. Sayin'.

TOBIAS: Like I said, *how did we get here?*

CARL: Good question.

CAROLINA jumps up, pulls over the whiteboard.

CAROLINA: How did we get here? Let's blast the idea wide open.

LINDSAY: Crack cocaine!

CAROLINA writes "Crack cocaine" on the whiteboard.

ANAS ALI: Crack. When money and bad intentions poured into the hoods like no tomorrow.

ZEL: Crack. Snatched the concept of tomorrow right out of our people's hands.

ANAS ALI: It was a lotta money.

CARL: I've read different data about how much actual money there is in the on-the-corner drug trade.

TOBIAS: Let's break it down. Let's just take cocaine. So if you think about a kilo of cocaine, right? It's 36 ounces. So we will go through that in a day, at \$1,000. So that's \$36,000 a day. And so it cost about 18. So that's half of that. So we were making about \$18,000 in profit a day. I can remember my friend who was killed having his million-dollar party, probably in '91 or '92, when I was about 19 years old, making this absurd amount of money. And throwin' it away.⁸

LINDSAY: 'Magine that, a million-dollar party! In the hood!

ZEL: That was before me and Lin was born. Y'all were crazy.

ANAS ALI: And I betchu right up the block from that million-dollar party? Somebody's house caught on fire 'cause they didn't have enough money to go to the laundromat, and they had to dry their clothes on a kitchen chair in front of the open oven.⁹

8. Verbatim excerpts from an interview with Curtis Toler, the former leader of one of Chicago's most notorious gangs, now the director of outreach for Chicago CRED, March 27, 2021. (Toler frequently asks "How did we get here?")

9. Kanoya Ali interview.

TOBIAS: And I just think about, like, again, if our Willie Lynch chip had been deactivated, you know, the things that we could have done with all the money that we were making that we didn't do.¹⁰

CAROLINA: Hold on. The what kind of chip?

LINDSAY: The Willie Lynch chip.

ANAS ALI: The Willie Lynch letter. History, man, history.

TOBIAS: Willie Lynch was coming up with something that would make us be against each other for at least 300 years after slavery.¹¹

CAROLINA: Wait. How to pit Black folks against one another? Are you talking about the so-called speech by a white slave owner named Willie Lynch, from the Caribbean, given to white slave owners in Virginia to tell them how to handle slaves? That was a hoax!¹²

ZEL: That's what I been tellin' them all along. There's stuff in that letter that wasn't even invented when it was so-called written.

CAROLINA: Look. Before I gave up the study of horror—that would be the study of American history—in favor of studying the horrors of contemporary life by switching to sociology, history was my religion. And I just cannot stand around and have y'all throwing faux facts. I need you to have real facts. Facts. Facts. Facts.

ANAS ALI: Facts change.

CARL: Facts? Things tend to be *relatively* true.

ZEL: Or relatively false.

CAROLINA: I'm talking about real facts. Proven facts.

ZEL: Provin' is false. 'Cause of this fact: Dudes lie. How many times has a dude lied to me?

TOBIAS: The fact is, Brother Jaxon is fine with lingering in prison, and he's not the only one.

ANAS ALI: Slavery, man, it has a pull on us, man. Tellin' you.

TOBIAS: "Slavery, slavery, slavery." We talk about slavery so much, it loses its horror. We should talk about *now*. Not then.

CAROLINA: But talk was one of the things that shut slavery down. I often wonder if modern talk is as effective as historical talk, because even though there are more people talking, we talk inside small groups.

CARL: We only talk to people with whom we agree.

10. Curtis Toler interview.

11. Curtis Toler interview.

12. Arguably one of the first instances of viral internet misinformation, in the early 1990s, the so-called Willie Lynch letter purported to be a transcription of a 1712 speech given by a Caribbean plantation owner to fellow enslavers in Virginia. In his speech, Lynch claimed that the secret to controlling the enslaved was pitting them against one another. Replete with anachronistic words and phrases, the letter has been widely debunked as a hoax.

CAROLINA: Let's break it open. Name somebody in history who talked a lot and made a difference.

Our 11-YEAR-OLD SLAVE GIRL enters the stage and uses an iPad to change the lighting and the mise-en-scène, with the help of an LED wall.

A PARLOR IN THE HOME OF SALMON CHASE, 1850

A WHITE MAID is pouring tea for FREDERICK DOUGLASS (played by the same actor who plays the BLACK MALE STUDENT) and SALMON CHASE¹³ (white, tall, played by the same actor who plays THE PROVOST).

CHASE: My own opinion has been that the Black & White races, adapted to different latitudes & countries by the influences of climate and other circumstances, operating through many generations, would never have been brought together in one community, except under the constraint of force, such as that of slavery. While, therefore, I have been utterly opposed to any discrimination in legislation against our colored population, and have uniformly maintained the equal rights of all men to life, liberty, & the pursuit of happiness, I have, always, looked forward to the separation of the races. I shall be pleased to know what you think of these matters.¹⁴

The MAID leaves.

DOUGLASS: Are you talking about colonizing? All the gold of California combined, would be insufficient to defray the expenses attending our colonization. We are, as laborers, too essential to the interests of our white fellow-countrymen, to make a very grand effort to drive us from this country among probable events. To imagine that we shall ever be eradicated is absurd and ridiculous.¹⁵

CHASE: But in practical terms, how will we ever get on? How shall—

DOUGLASS: The persecuted red man of the forest, the original owner of the soil, has, step by step, retreated from the Atlantic lakes and rivers; escaping, as it were, before the footsteps of the white man, and gradually disappearing from the face of the

13. Salmon Chase (1808–73) was a politician, a jurist, and an antislavery activist from Ohio. After challenging Abraham Lincoln for the newly formed Republican Party's nomination in advance of the 1860 election, Chase joined the president's "team of rivals," serving as Treasury secretary from 1861 to 1864 and working to finance the Union throughout the Civil War. After Chief Justice Roger Taney died on October 12, 1864, Lincoln nominated Chase to fill Taney's seat on the Supreme Court.

14. Adaptation of a letter from Salmon Chase to Frederick Douglass, May 4, 1850. Like many of his contemporaries, Chase opposed slavery, but was at this time in favor of the "colonization" programs supported by many in the antislavery movement, which called for American slaves to be repatriated to Africa or elsewhere. (This was how Liberia—populated in large part by former enslaved Americans—came into being, in 1847.) Chase would later come to oppose colonization policies.

15. Douglass's lines in this scene are adapted from Frederick Douglass, "The Destiny of Colored Americans," *The North Star* (Rochester, New York: November 16, 1849).

country. He looks upon the steamboats, the railroads, and canals, cutting and crossing his former hunting grounds; and upon the ploughshare, throwing up the bones of his venerable ancestors, and beholds his glory departing—and his heart sickens at the desolation. He spurns the civilization—he hates the race which has despoiled him, and unable to measure arms with his superior foe, he dies. Not so with the black man. More unlike the European in form, feature, and color—called to endure greater hardships, injuries and insults than those to which the Indians have been subjected, he yet lives and prospers under every disadvantage.

CHASE: I don't question the resilience of your race.

DOUGLASS: We deem it a settled point that the destiny of the colored man is bound up with that of the white people of this country: be the destiny of the latter what it may. We shall neither die out, nor be driven out; but shall go with this people, either as a testimony against them, or—

CHASE: Happy coexistence is unlikely.

DOUGLASS: It is idle—worse than idle, ever to think of our expatriation, or removal. The history of the colonization society must extinguish all such speculations.

CHASE: But we are *so* very different—

The MAID returns.

MAID: Your oyster tonger is here, sir.

CHASE: And Mr. Douglass loves oysters. You must stay for dinner. Will you?

DOUGLASS: I can't refuse oysters.

TOBIAS'S LOFT, PRESENT DAY

As before.

TOBIAS: What's the guy's name? Fish?

CAROLINA: Salmon.

TOBIAS: Fishy name.

ZEL: And how long ago was that?

CAROLINA: About 170 years.

TOBIAS: And we're still separate.

ZEL: Fish-man is right; we will always be separate.

ANAS ALI: "To imagine we shall ever be eradicated is ridiculous"? What was Frederick Douglass talkin' about? We *did* go into colonies. *Prisons* are the colonies we been sent to.

CARL: In fairness to Frederick Douglass, the carceral system as we experience it is not something he could have imagined. Most likely.

LINDSAY: We askin' "How did we get here?" and talking about slavery. But Baltimore isn't down South. *My* people lived here, and my great-grandma tol' me we wasn't slaves.

CAROLINA: Actually, Maryland was a southern state. They just fought the Civil War as if they were part of the North. Baltimore was part slave and part free, as was all of Maryland.

ZEL: I know my people *was* slaves down on the Eastern Shore, 'cause my great-granddaddy told me about his great-granddaddy.

CARL: That's a lot of *greats*. Doesn't that put us in the 1700s?

ZEL: Carl, I love you but, you live in different mathematics than me. Way my world is, a generation is 15 years, not 30. My mama had me when she was 15. So forth and so on going way back.

CAROLINA: Okay, when do you think your ancestors here in Maryland got freedom?

ZEL: January 1, 1863. Emancipation Proclamation.

CAROLINA: Hate to break it to you, but the Emancipation Proclamation did not free the slaves in Maryland. The Emancipation Proclamation was only for the states that seceded—and Maryland remained a part of the Union. Because it was part of the Union, and strategically important due to its proximity to Washington, Lincoln looked the other way about the slaves here.

TOBIAS: Old Abe was basically freeing slaves in territory where he had lost cred anyway.

CAROLINA: Slaves here in Maryland were not free 'til 1864.

CARL: Like Juneteenth?

On the whiteboard, CAROLINA writes "1864," "Emancipation," and "Mayhem."

CAROLINA: Different. Maryland: Part slave, part free, but the pot boiled over about this half-and-half situation, and the state's legislators were pushed to vote on a new state constitution. Slavery was a big part of the debate around the constitution. It was hot. The emotions were high. President Lincoln knew that whichever way the vote went, there was going to be mayhem.

CAROLINA writes "Lew Wallace" on the whiteboard.

Our 11-YEAR-OLD SLAVE GIRL walks onstage with the iPad and taps the screen. As CAROLINA continues to talk, the lights and scenography change to very realistic scenery of...

THE WAR DEPARTMENT, WHITE HOUSE GROUNDS, 1864

CAROLINA: (*Offstage.*) So Lincoln calls in a General Lew Wallace—

CARL: (*Offstage.*) Lew Wallace? He wrote the novel *Ben-Hur*.

CAROLINA: (*Offstage.*) He did. How do you know that?

CARL: (*Offstage.*) Random bits of information stick to me like lint.

LINDSAY: (*Offstage.*) One of my great-grandma's favorite movies. That was the only good thing about the court's moving us to her house. She loved old-school movies.

CARL: (*Offstage.*) Long before Charlton Heston starred in that movie, Wallace wrote the novel.

GENERAL LEW WALLACE (played by the same actor who plays JACK ROSS) is presented to President ABRAHAM LINCOLN (played by the same actor who plays THE DEAN). LINCOLN stands, towering over WALLACE, and puts his hand on WALLACE's shoulder.

CAROLINA: (Voice-over.) Wallace had messed up an important battle, or got blamed for it. He arrives in Washington, eager to fix his reputation. Lincoln knows about the battle he messed up—everybody knows about it—but ...¹⁶

LINCOLN: I believe it right to give you a second chance, Wallace. I've suggested you be assigned to the command of the VIII Army Corps.¹⁷

WALLACE: Thank you, Mr. President.

LINCOLN turns away. WALLACE figures out that the brief meeting is over and turns toward the door.

LINCOLN: Ah, Wallace! I came near forgetting; there is an election nearly due over in Maryland, but don't you forget it. Goodbye.

WALLACE: Yessir. Goodbye, sir.

OFFICE OF THE SECRETARY OF WAR, MARCH 1864

WALLACE enters the office of Secretary of War EDWIN STANTON (played by the same actor who plays THE PROVOST and SALMON CHASE. He's got a long beard, and some girth. He's grim).

STANTON: Well?

WALLACE: I am assigned to the Middle Department—¹⁸

STANTON: What do you know of Baltimore and the Middle Department?

WALLACE: Nothing, sir.

STANTON: That department has been a graveyard for commanders. You have seen the president?

WALLACE: Yes, sir.

STANTON: What did he tell you?

WALLACE: To come see you.

STANTON: Was that all?

WALLACE: He also said there was an election nearly at hand in Maryland, and he did not want me to forget it.

STANTON: Nor must you. The last Maryland legislature passed an act for an election, looking to abolish slavery in the state by constitutional amendment.¹⁹ The president has set his heart on abolition in that way, and mark, he does not want it to be said by anybody that the bayonet had anything to do with the election. He is a candidate for a second nomination. You understand?

WALLACE: I think so, sir.

STANTON: Have you a plan?

WALLACE: I've never heard of the business before.

STANTON: Well, then, it is a kindness saying that it will be your first trial.

STANTON immediately turns away from WALLACE and studies a document. WALLACE waits in vain for further instructions.

WALLACE: Uh. Good day? Sir?

The sound of a modern phone ringing brings us back to the present.

TOBIAS'S LOFT, PRESENT DAY

It is ZEL's phone that's ringing. ZEL jumps up and searches for it. She shows LINDSAY the face of the phone so she can see who's calling.

ZEL: Latitude, this is Zel.

LINDSAY: (Whispering.) It's Nkosazana.²⁰

ANAS ALI: Is it about the boy again?

ZEL nods, writes on the whiteboard amid the other written words—"Crack Cocaine," "1864," "Lew Wallace," "Emancipation," etc.—"Nokey sayin' she's gonna kill the mfucker. She's fixin' to gun him down at the Crazy Down Home Chicken and Seafood."

ZEL: (With her eyes on CARL, who is mouthing things to her.) Nokey. Where are you? (She pauses.) Speak slowly. I'm with you.

LINDSAY: Nokey found out the guy she was with before she went to juvie, and was with all during juvie, has another girl.

ANAS ALI: He had a lot of other girls.

ZEL: Nokey. Stay where you are. I'm coming.

CARL and ZEL grab their shoes, fling open the huge metal door, and run down the stairs, barefoot.

16. After the bloody Battle of Shiloh, in southwestern Tennessee, Wallace was blamed for the Union's high rate of casualties. Though the Union technically prevailed at Shiloh, Wallace spent the rest of his life attempting to vindicate his actions.

17. The dialogue in this scene is adapted from *Lew Wallace: An Autobiography*, published in 1906, after Wallace's death.

18. The Middle Department was an administrative military district headquartered in Baltimore that encompassed the middle-Atlantic states. In July 1862, it was renamed the VIII Corps. Wallace assumed command in March 1864.

19. Maryland's General Assembly actually passed an act calling for a constitutional convention, which took place from April to September 1864. Slavery would be abolished following an October referendum via the establishment of a new state constitution, not an amendment to the existing one.

20. Pronounced N'o-ka-sa-na.

CAROLINA: I'd like to go on this one. I have a good relationship with Nokey.

TOBIAS: You can't.

CAROLINA: If I am never on the streets with you during crisis moments, I won't be able to refine Latitude's design.

ANAS ALI: It ain't safe for you out there.

LINDSAY: How can I explain it? It's all about your LTO—license to operate. We have a lot of relationships because we been in the streets all our lives. I am the daughter of a former gang king. You know how some people, they get left inherited stuff: \$200,000, or buildings, or a business? I was left with the streets. My father had different relationships with different gang chiefs, you know, and they watched me grow up. So within different mobs, I have relationships with different people that's stemming from his relationships, you know, so that kind of put me in a better position than most, you know, because my arms can reach some more places that are kind of, like, underground.²¹

CAROLINA: Carl has no LTO and he's out there.

TOBIAS: Carl was a medic in Afghanistan, okay? He still addicted to adrenaline. I promised your Uncle James I would take care of you at all costs. And I do mean all costs. You not goin' on any runs. We best head to the office, 'cause who knows what could get kicked off tonight.

They split.

LATITUDE OFFICE, NIGHTTIME

CAROLINA and TOBIAS drink coffee. ANAS ALI and LINDSAY come in.

ANAS ALI: Damn, what's takin' Zel and Carl so long? I'm dozin'. It's 3:21 a.m.

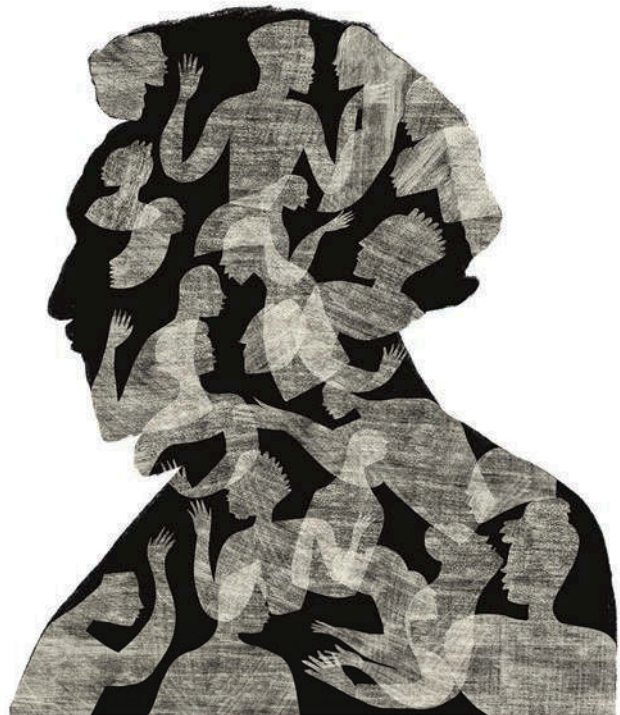
TOBIAS: Okay, wake us up, Doc. Finish telling us about this guy who wrote *Ben-Hur*. I'll make you one of my special triple espressos.

ANAS ALI: Toe may not let you go on a run, but now you know you special. 'Cause he never works his espresso machine for nobody but himself.

CAROLINA: Lew Wallace arrives in Baltimore, doesn't know a soul, learns about the Maryland Club—a private club wherein “city gentlemen” ate, drank, and made sure power stayed in a circle the size of a pinhead. Took a break from their “hectic” lifestyle of power brokering. Napoleon Bonaparte's nephew, Jerome “Bo” Bonaparte, was its first president. Johns Hopkins was a member. Maryland was in the Union, but this club became a hangout for Confederate sympathizers. By the way, Johns Hopkins wasn't a Confederate sympathizer—he was a Unionist—but the word today is that he did own slaves.

ANAS ALI: Facts change!

21. Verbatim excerpts from an interview with Shivone Camphor, a former outreach worker for Chicago CRED, March 13, 2021.



DIANA EJAITA

The lights fall on a very realistic scene of...

THE MARYLAND CLUB, 1864

A ballroom. An intense gaslit stage. WHITE WOMEN, and one BLACK WOMAN, Confederate bandannas in their bosoms, serve whiskey to the WHITE CLUB MEMBERS, which include no women.

CAROLINA: (Voice-over.) Wallace sends a Major William Este to the Maryland Club to inquire about he and his men getting access while in town, for meals, hospitality, etc.

MAJOR WILLIAM ESTE (white, 20s, energetic) walks in with a MARSHAL. He approaches a club member.

ESTE: Please lead me to the club secretary.

A show-stopping number cuts him off. A burst of banjo, drums, horns, as a WHITE MALE SINGER moves onstage.

WHITE MALE SINGER: Introducing... Lil'—Cotton—Pone!!!!!!

Our 11-YEAR-OLD SLAVE GIRL, with heavy brothel makeup, dressed in a sparkly, sexualized costume, dances over to a piano with choreographed moves. She plays the minstrel song “Miss Lucy Long” with the ease and energy of a prodigy, and a dazzling smile. LUCY LONG, a white man in drag and blackface, makes a splashy entrance and dances to the song.

WHITE MALE SINGER:

Oh! I jist come out afore you,
To sing a little song,
I plays it on de banjo,
And dey calls it Lucy Long.

At first, ESTE and the MARSHAL are enthralled—even some Unionists enjoy blackface.

The chorus is sung, with the band playing and our 11-YEAR-OLD SLAVE GIRL harmonizing.

Oh! take your time Miss Lucy,
Take your time Miss Lucy Long.
Oh! take your time Miss Lucy
Take your time Miss Lucy Long.

Miss Lucy she is handsome,
And Miss Lucy she is tall,
To see her dance Cachucha
Is death to niggers all.

Oh! Miss Lucy's teeth is grinning
Just like an ear ob corn,
And her eyes dey look so winning!
Oh! would I'd ne'er been born.

A WHITE WOMAN serving drinks gives the MARSHAL a whiskey. He enjoys a close look at her bosom—and then suddenly notices the Confederate bandanna.

MARSHAL: Major—

ESTE: Shh!

WHITE MALE SINGER:
I axed her for to marry
Myself de toder day,
She said she'd rather tarry
So I let her habe her way.

If she makes a scolding wife
As sure as she was born
I'll tote her down to Georgia ...

They reach the finale, again with the band playing and our 11-YEAR-OLD SLAVE GIRL harmonizing.

WHITE MALE SINGER:
And ... trade ... her ... off ... for ... CORN!²²

The MARSHAL yanks the bandanna from the WHITE WOMAN's bosom, thrusting it toward ESTE.

MARSHAL: Copperheads,²³ Major!

ESTE: Treason!!!!

WHITE MALE SINGER: Bluebellies!

22. According to *The Cambridge History of American Music*, "Miss Lucy Long" was one of the most frequently performed songs of the early minstrel-show age. The original authorship of the song is uncertain, but this version is based on an arrangement composed by George Willig in 1842.

23. The Copperheads, or Peace Democrats, were Democrats in the North who opposed the Civil War and advocated for an immediate settlement with the Confederacy. Republicans often accused Copperheads of conspiring with Confederate agents and fomenting draft resistance in the North; in 1864, several prominent Copperheads were tried for treason.

LUCY LONG: Why, Mercy! Bluebellies ain't 'lowed! This here Mr. Bo Bonaparte's clubhouse!

The WHITE MALE SINGER dives off the stage, grabbing ESTE by the collar. The MARSHAL throws the WHITE MALE SINGER to the floor. The BLACK WOMAN inches through the crowd toward our 11-YEAR-OLD SLAVE GIRL.

ESTE: This place is an outpost for the Confederacy! You're under arrest!

LUCY LONG: (*Grabbing our 11-YEAR-OLD SLAVE GIRL and holding her like a hostage.*) Lawd, Lawd! We's under 'rest, Lil' Cotton Pone, we's under 'rest! Oh, Lawdy!

A fight breaks out. The BLACK WOMAN grabs our 11-YEAR-OLD SLAVE GIRL and splits with her during the escalating violence. The MARSHAL handcuffs the WHITE MALE SINGER and LUCY LONG.

MARYLAND CLUB MEMBER: Major. Pardon us. All this talk about a vote that's comin' to end slavery—all of those niggers runnin' loose? Bucks naked, women chasin' ignorant pickaninnies in our streets? Little whiskey for medicine is all this means to be. We're scampered. Don't take it serious.

ESTE sees that they are outnumbered.

ESTE: Marshal, let 'em go. We'll be back.

LATITUDE OFFICE, PRESENT DAY, JUST BEFORE DAWN

ANAS ALI, CAROLINA, TOBIAS, and LINDSAY are all sipping espresso.

CAROLINA: Don't forget there's a full-fledged war on, and Maryland is about to vote for or against slavery. Este reports to Wallace that the Maryland Club is a hangout for Confederate sympathizers—

ZEL and CARL return—they look like warriors exhausted after battle.

ZEL: We gotta do something more about these young ladies, and stop thinking of them only as extensions of the young men.

CARL: Noke is out flyin' on her own. Her beef with Kevin is no joke. She wants to put together her own pack and kill him.

LINDSAY: No matter what we say, our program is male-centered.

TOBIAS: At the moment, I'm not worried about girls creating packs. We can't lose focus.

ZEL: Toe, straight up: You don't think a girl could be in the game, full-out, without a man, do you?

TOBIAS: (*Suppressing a giggle.*) Uh—I don't.

ANAS ALI: Shortsighted, man.

CAROLINA: Nobody is thinking about the impact that this street violence is having on young women, right? So, like all movements, right? If you grow up in something—

LINDSAY: —And somebody keeps telling you to siddown somewhere and goes to decide that you gonna do dis for us? Then you're like, "Well, I can do it too. I can do it better. I'ma show you."

CAROLINA: Right? 'Cause this—the gang life—is a movement of empowerment.²⁴

A loud doorbell rings. LINDSAY and ZEL are at the security screen in a flash.

ZEL: It's Nokey.

ANAS ALI pushes a button. Soon, NKOSAZANA, a.k.a. Nokey, enters. She is played by the same actor who plays our 11-YEAR-OLD SLAVE GIRL, whom we just saw in the burlesque. She's wearing makeup and modern clothes: tight jeans, Louboutins, and a blinged-out, fur-collared jacket. She's 14, acting like a 16-year-old, but she has the face of a baby.

ZEL and LINDSAY frisk her. LINDSAY takes a Glock out of NKOSAZANA's jacket. They sit.

ANAS ALI: Where'd you get the jacket?

NKOSAZANA: Same place I got my Loub's: Saks Fifth. My favorite store.

TOBIAS: Stealing is against the rules.

NKOSAZANA: That's why I come to say this program ain't for me.

TOBIAS: This program is not for you. Yet and still, Zel and Carl were out there just now keeping you from making your second huge mistake—the first one being what you did to get yourself incarcerated in the first place.

NKOSAZANA: I'm fixin' to leave Latitude.

TOBIAS: (*Playing the bad cop.*) You are not ready to leave Latitude. You are barely ready to be in it.

ANAS ALI: (*Playing the good cop.*) Whoa, whoa, Toe. Ease up.

TOBIAS: You messin' up, Noke. You messin' up.

NKOSAZANA: I'm the type who mess up. That's why I'm quittin'. I ain't got the potential to be one of y'all successes. It ain't smart of y'all to try to save me. I'm risky. I'll mess y'all's numbers up.

CAROLINA: Numbers? This isn't about numbers.

NKOSAZANA: Then how come in the *Sun* paper they got the numbers of how many people y'all "servin'" so far? Like we a chicken box or a court summons. How come the *Sun* had a picture of me? ... Ain't nobody been able to change me. Shit, my mama and them barely changed my diapers.

CARL: Are you afraid of—?

LINDSAY: What's your plan, Nokey baby?

TOBIAS: Considering you are a female without any male structure to work inside of ... or—

CARL: Are you working in a male organization?

ANAS ALI: There's no judgment here.

NKOSAZANA: I am a female and I know what my power is. I know what I could have done to somebody, or what I can make happen in the streets ... I can set you up. I can use my beauty to get you where I want you to be.²⁵

LINDSAY: Now, you are one of those real pretty children, so that is true, you certainly could. Now, I was a pretty chile too. Bein' pretty is like carryin' a gun: You really need a license, and some lessons, or you could get yourself in trouble.

NKOSAZANA: I could be so sweet that you believe in trusting me and show me where everyone in your houses is at. Females can make a lot of things happen. Females have brothers; they can run and get they brother and start a war. They can be anything ... Drive-by shooters ...²⁶

ZEL: Absolutely. Toe, you know darn well we got shooters that's females.

NKOSAZANA: When they go out, they always got the girls with them. And they girls is either the driver or the shooter. But you really wouldn't know this if you wasn't on the concrete with them.²⁷

TOBIAS: And who exactly are you on the concrete with?

ANAS ALI: Seems to me Nkosazana is talking about having her own splinter group. Is that what's happenin', Noke?

NKOSAZANA: I can be just as much of a shooter as you can. I can roll with you all. I can hold a gun. I can handle the pack. I can ... do this and do that. I can ... you know, I can have a group of young women followin' me.²⁸

LINDSAY: You fixin' to get some of your girls workin' the streets, and takin' a cut off the top?

ZEL: It's a lot of young ladies, they are going into strippin', and usin' Backpage.²⁹

CARL: Is that what you have in mind?

TOBIAS: I'm just trying to understand how you think you can handle a whole pack. You ain't tall enough to have your own pack; you still a shorty.

NKOSAZANA: I ain't no shorty. I'm almost 15.

25. Shivone Camphor interview.

26. Shivone Camphor interview.

27. Shivone Camphor interview.

28. Necole Muhammad interview.

29. Shivone Camphor interview. ("Backpage" refers to an online network that advertises escort services.)

24. The dialogue here, starting with "Nobody is thinking about the impact," is a verbatim excerpt from the interview with Necole Muhammad.

TOBIAS: You look like a shorty. You look like you are not even 12 yet. And you are planning on being a pimp?

ANAS ALI: Actually, that could work in her favor. Nobody would suspect a 12-year-old girl to be a pimp.

NKOSAZANA: A lot of the females I know don't even know they're being pimped; they just think we buddies and we hangin' out and this what we doing together.³⁰

LINDSAY: But then you might have that one smarter girlfriend that's with you that know how to line us up before we all make it, and she even got her chop off the top before y'all even get started on whatever you doing. And then a friend—still chopping.³¹

CARL: What's going on, Nokey? What is really going on? With you.

NKOSAZANA: (*Fighting tears.*) My mama is struggling. It's bad at home. My mama goin' through a depression. I just need money. And it's a lot a money out there, even more than before I went into juvie. I'm talkin' about money. Y'all talkin' 'bout freedom, and that ain't never gonna be.

NKOSAZANA gets up, grabs her gun, throws open the door, and splits.

ANAS ALI: She won't quit. When you fixin' to quit, you don't announce it; you just quit.

LINDSAY: Most of what she had to say, she's heard about in juvie. But the way she's talkin'? She hasn't done anything. Yet.

TOBIAS: Nothing new.

CAROLINA: Except the part about her mother.

TOBIAS: Shall we call it a night?

Lights down.

TOBIAS'S LOFT, MIDDAY

TOBIAS, ZEL, and LINDSAY are sparring at the far end of the loft. ANAS ALI and CAROLINA are at the worktable. CARL, with shoes on, is at the whiteboard, writing "Hyperarousal." Everyone else is in socks.

CAROLINA: To me, this has post-traumatic stress written all over it.

CARL: So soldiers coming back from war with PTSD, they have a very similar symptom picture in terms of extreme explosive anger and aggression. And so, um, you know, other things are sometimes—they don't experience positive emotions. But the thing about them is the trauma is not just in the past; the trauma is today and tomorrow, right? It's not completely the same as post-traumatic stress. Because they've got trauma today, trauma tomorrow.³²

30. Nkosazana's lines here, and Lindsay's next lines, are excerpts from the Shivone Camphor interview.

31. "Chop off the top" means skim profits from Noke's would-be prostitution ring.

32. Verbatim excerpt from an interview with Dr. Donald Tyler, director of clinical services at Chicago CRED, March 27, 2021.

ANAS ALI: ... It ain't historical, like "historical" trauma; we don't need historical trauma, right, 'cause we got enough trauma through poverty in the present?³³

LINDSAY and ZEL take off sparring equipment, get waters from the fridge.

ZEL: Why did you save up to buy this expensive Sub-Zero if you never gonna put food in it? I am starved.

TOBIAS: Food's messy.

ZEL: Nobody needs this much water.

TOBIAS: One hundred bottles. Y'all took two—that makes 98.

ZEL: There's wisdom in feeding your bodyguard, Toe.

CARL: Here, Zel, take my pretzel thins.

LINDSAY: Dr. V, Nokey sayin' recruits are just numbers for us; the kids don't trust us.

CARL: It's the system they don't trust. To them, we're the system—they don't see the nuance.

ZEL: Dr. N, no offense—you do look like you're with the system. Your clothes are what I'ma call "charity fashion." You look ... like a teacher.

CAROLINA: I *am* a teacher.

LINDSAY: Leave my girl alone.

ANAS ALI: That's not charity fashion; that's "academic chic."

ZEL: And yet, we don't have cred with the judges. Judge Morley—messin' with our plan, banking on us failing. She may even be takin' bets with the rest of them black robes.

ANAS ALI: Now you soundin' paranoid.

CARL: She's catastrophizing.

TOBIAS: Man, take your shoes off. You're scuffing my floor.

CARL slips his shoes off.

TOBIAS: We ain't this, we ain't that. I feel kinda sad. Could I have stayed involved with my gang more heavily, and worked on peace from inside of there, instead of kind of leaving them behind?³⁴ My daughter still kind of leans on that. She says I was more respected, from social media and her peers, as me being the legend I was—than me now bein' this anti-violence

33. This idea was explored in the author's play *Notes From the Field* (2015); the concept Anas Ali references here is drawn from interviews with Dr. Victor G. Carrión, professor and vice chair of psychiatry and behavioral sciences at Stanford University and the director of the Stanford Early Life Stress and Resilience Program.

34. This line ("Could I have stayed") is from the Curtis Toler interview on March 27, 2021.

guy, going into the community, you know, talking about peace, when all they been in is war. I'm not violent anymore, right? What I really want for my brothers and for myself—I want to be alive and free.³⁵ So sometimes I do think that if I had stayed the person with status, in authority, then I may have been able to do a lot more.

ZEL: Remember when our life was all about mayhem? I kind of miss it.

CARL: I sometimes miss the old me, the me who didn't have to worry about anything but sports, girls, pranks, and extravagant birthday parties. The me who idolized my fuckup brother. I didn't have to be my parents' problem. He was. One night he and his buddy got high and climbed the cable on the Golden Gate Bridge. He didn't even fall. The cops caught him. All they did was drive him home! I kept thinking he'd get kicked out of school. But no. The headmaster of the school came over to our house in Pacific Heights every morning, checked in to see if he got through his homework. Him, my mother, and the headmaster, kinda like a prayer meeting. But the only religion in the school was money. Everyone believed in money. My brother is very rich, a finance guy—on the board of a cathedral, pillar of his community, with what Zel would call a charity wife and three kids. He was so full of mischief and mayhem before. Our mayhem got classified as "mischief." Y'all got pathologized and incarcerated.

TOBIAS: Is that why he made a big donation to us—guilt?

CARL: Yeah.

ANAS ALI: Speaking of all this mayhem, Doc, you never told us about the "mayhem" that Abraham Lincoln was worried about.

CAROLINA: Okay, so mayhem in Annapolis, Maryland, the Old Statehouse, 1864.

Loud male shouting. We hear a gavel banging.

MARYLAND CONSTITUTIONAL CONVENTION, 1864

Our 11-YEAR-OLD SLAVE GIRL appears again, back as she was in the beginning, with the iPad, and as soon as the mise-en-scène appears, she leaves.

CAROLINA: *(Voice-over.)* Slavery did not end in Maryland by proclamation. It ended by vote. People talked for months and months and argued and argued and somewhere in all this a Christian minister entered a very important word into the discussion: *apprentice*.

THE OLD STATEHOUSE, ANNAPOLIS, MARYLAND

Lights up on full-out action: WHITE MEN in period clothing, in the midst of an impassioned debate.

REVEREND ROBERT W. TODD: Ordered: That the Committee on the Judicial Department be instructed to inquire into the expediency of incorporating into the constitution a provision making it the duty of the legislature to provide by law for the apprenticeship, by courts of competent jurisdiction, of

emancipated Negroes who are minors, so as to better provide for their welfare and preparation for freedom.³⁶

ARCHIBALD STIRLING JR.: *(Jumps to his feet.)* I am opposed to that article!

TODD: I think it is very desirable that some provision should be made so as to better prepare those emancipated Negroes who may be minors for the enjoyment of the freedom that we shall give them.

EDWIN A. ABBOTT: I would suggest to my friend that we better emancipate them first, and then provide for them afterward.

STIRLING: I do not wish to debate this question! The necessary effect of it will be to perpetuate slavery in Maryland for 10 years longer. This section provides absolutely for the binding out of an entire class of persons, without any reference to the condition of the emancipated parents of these children, without any regard to the age of the children, whether they are 8 or 18 years of age, whether they are competent to earn a livelihood or not. Even if the Orphans' Court thinks that they are able to support themselves, and will do so, they are a class to be bound out. This section is not so much to provide for the custody of these people as it is to compensate the masters by giving them an additional furlough upon the time of their slaves.

EZEKIEL FORMAN CHAMBERS: This exhibition of apprehension seems to be entertained by gentlemen, lest a dollar of compensation should be given to the masters who are stripped of their property. Is it to be a matter of regret that incidentally you should, to some small extent, remunerate these people? You have, by one fell swoop, manumitted men, women, and children, old and young, firm, infirm, and helpless; those who are as impotent as the child at the breast, and as incapable of maintaining themselves. We are about to turn loose upon the community every minor Negro in the state. Uneducated, unprepared for the condition of freedom, with no employment, no business, no vocation except that in which they must engage under the instruction of the white people, as general laborers, entirely and exclusively accustomed to farming operations—thousands upon thousands are to be turned loose.

JOSEPH M. CUSHING: The delegation of Baltimore City are all instructed by our constituents and are definitely pledged not to vote for any law for colored apprenticeship. And certainly in other parts of the state, delegates were sent here for the purpose of emancipating the slaves, and it could not have been the will of their constituents that after their emancipation, all persons under 21 years of age should be remanded to slavery.

HENRY STOCKBRIDGE: I move to amend by adding to the section the words: "And said court shall bind all masters to whom any such apprentice shall be indentured, to cause said apprentice to be taught to read and write; and any violation of which obligation on the part of any master shall cancel the indenture of apprenticeship."

WILLIAM T. PURNELL: The articles of apprenticeship, or the indentures, are not required to express that the Negro shall be educated. Does anyone profess upon this floor that the Negro will ever occupy the status of the white man? Is there any individual who can ever bring his mind to the conclusion that that degraded race will ever be raised to the degree of the white race? That they

35. These lines (from "My daughter still kind of leans" to "alive and free") are from another Curtis Toler interview, April 6, 2023.

36. The dialogue in this scene is adapted from Richard P. Bayly's record of Maryland's 1864 Constitutional Convention.

are inferior to the white race there is no doubt. The God of nature when he created, stamped upon their forehead the mark as broad and lasting as the mark upon Cain. Is there any man who would elevate them to the degree of the white man? The idea that the Negro can ever elevate himself to the condition of the white man is preposterous. But unfortunately, the white man can debase himself to the condition of the Negro. I cannot support a proposition to elevate the Negro to the sphere of the white man.

JOSEPH B. PUGH: I am astonished this morning! The impression might prevail that probably those of us who take a different view of this subject from what that gentleman does, that we were in favor of elevating the Negro race, were in favor of something like Negro equality; a rehash of that political, wishy-washy, meaningless talk. It is better to have educated labor than uneducated labor. It is perfectly proper to educate a horse . . .

CHAMBERS: To read and write?

PUGH: You can educate a horse in other ways than to read and write. If you could teach a horse to read and write, it would be a good thing; but you cannot do that. But you can teach the Negro to read and write.

CHAMBERS: Not all of them.

PUGH: Well, some of them, then. You cannot teach some white men to read and write. I am astonished that Mr. Purnell should see in that amendment some evidence that we acknowledge that the Negro is our equal. I have never had any such fear. Take two men, the one 6 feet high, and the other 5 feet high; that is their stature, so designed by the Almighty. Put them upon the same platform, the one by the side of the other; if they stand upright men, there is no way in which their two heads can be upon the same level, unless he who is the taller man should stoop. Now, other gentlemen may do as they please, but we do not intend to stoop.

STIRLING: Will anybody say that any Negro boy 16 years of age, or even 12 years of age, is not able to make his own living now?

JAMES L. RIDGLEY: What is the proposition? That the jurisdiction of the Orphans' Court touching free Negroes and mulattoes, as now exercised by law, shall be so extended as to authorize them to give the preference in apprenticing such Negroes and mulattoes, to their former masters. That is all it means, nothing more and nothing less. This ghost of slavery that has been invoked has the effect of intimidating those who, from convictions of duty, are seeking to emancipate the enslaved race in this state.

FREDERICK SCHLEY: The apology for restoring free colored minors to practical slavery, under the guise of benevolence to them, is abominable. Much stress has been laid upon the benevolence of this proposition, Mr. Todd, but I confess my surprise that a minister of the Gospel should never have said, in all his views of that unfortunate race, one word in advocacy of their being educated in this transition state. Not one word!

CUSHING: I submit that it is simply absurd that there should be a law of Maryland that forces a man abundantly able to maintain himself back into the condition of an apprentice, to serve a master and to receive no wages. A hundred thousand free Blacks in Maryland support themselves now. The experience of counties and of the city of Baltimore tells you that there is no more prosperous class of

labor in the state of Maryland today than the free Black labor. They are abundantly able to support themselves by their own exertions. There are no more of them in the almshouses than of white people.

TOBIAS'S LOFT, PRESENT DAY

TOBIAS: So you're saying that before they even got to determine if they are going to set the slaves free, they were in there arguing about taking children back to the plantations?

ZEL: It's built in! It's built in! They do not want us anywhere but plantations. They do not want us in the mix!!! Not then. Not now! It's built in!

CAROLINA: That's right. It is built in.

CARL: So did it pass? Did the apprenticeship clause make it into the constitution?

CAROLINA: It did not.

CARL: Good.

CAROLINA: But—

TOBIAS: Did I ever tell y'all how much I hate that word, *but*?

CAROLINA: Shall we stick with the good news first?

Whistles, a brass band, and cheers accompany CAROLINA's speech.

CAROLINA: *(Voice-over.)* On October 12 and 13, 1864, the votes were cast, and on October 29 the results were certified—and Maryland went for freeing the slaves! Festoons! Parades! Church choirs! Dancing in the streets!

EMANCIPATION DAY IN MARYLAND, NOVEMBER 1, 1864

Our 11-YEAR-OLD SLAVE GIRL runs across the stage, unfurling a beautiful banner. Upon it is written "Freedom." A MASS OF BLACK PEOPLE follows behind her in parade mode.

A big, choreographed theatrical number. An extravaganza. WHITE PEOPLE dancing, BLACK PEOPLE dancing. Jubilation. PREACHERS OF BOTH RACES are preaching on corners. The scene takes over the entire stage, including where TOBIAS, ANAS ALI, CAROLINA, LINDSAY, ZEL, and CARL are. They are surrounded by this joyous 360-degree "past."

Suddenly: A five-gun salute goes off. TOBIAS, ANAS ALI, LINDSAY, and ZEL drop to the floor as if they are being shot at.

CAROLINA: Oh, the guns weren't meant to kill anybody. That was a gun salute that Lew Wallace ordered! Everything's cool!

The party resumes. Church bells go off. Fireworks. Folks of all races are dancing.

TOBIAS: Hold on!

He signals and stops the music. Like a game of musical chairs, the entire cast freezes.

TOBIAS: Did white people actually celebrate this?

CAROLINA: I assumed they did, but that might be that irritating Pollyanna in me that won't let go—

CARL: Let's pretend they did. Let's imagine the best for once.

TOBIAS: Party on!

The party resumes, reaches a height, and then the adults leave. A CHORUS OF CHILD REVELERS—Black children of different ages, from toddlers to 20-year-olds—stays behind as the celebration subsides, playing with scraps from the party. CAROLINA, TOBIAS, ANAS ALI, ZEL, LINDSAY, and CARL stand onstage with the children.

CAROLINA: Maryland was very proud to have freed its slaves before the passage of an amendment to the U.S. Constitution requiring that. But ...

TOBIAS: But.

CAROLINA: ... One day after emancipation. One day. One day. November 2, 1864. One day.

The music resumes to full jubilation until a video projection appears on the wall behind the stage with the text: "Black-child-seizure day, Maryland, November 2, 1864." SLAVE CATCHERS swarm the stage and grab Black children, among them YOUNG COSTON (played by the same actor who plays JAXON).

Lights up on an oxcart full of Black children. An 8-YEAR-OLD GIRL (our 11-YEAR-OLD SLAVE GIRL, when she was three years younger) runs to get away. She is grabbed and thrown onto the oxcart. A WHITE MAN WITH A LIST and a MUSCULAR THUG stand by the cart. CARL watches the 8-YEAR-OLD GIRL. He will become PHILEMON HAMBLETON, a plantation owner.

WHITE MAN WITH A LIST: Coston!

The MUSCULAR THUG grabs YOUNG COSTON.

YOUNG COSTON: Where you takin' me?

WHITE MAN WITH A LIST: Back to your master ... Next, Elizabeth Turner!

TOBIAS: You said that that bullshit amendment or law or stipulation or whatever did not pass.

CAROLINA: I added "but."

CARL: This is unbelievable.

CAROLINA: Is it? Carl, imagine you have a way to keep your workforce—in fact, your most robust workforce, as you are not as interested in the slaves who are 50, 60, worn out like old cars. And they aren't like 11-, 12-, 13-year-old kids today, who supposedly have to be watched and have to have organized sports and other activities to fill the day; these are robust preteens who can haul water, dig ditches, take care of babies and will have more capacity in two years to butcher pigs, pick tobacco, and build things. And here's a girl, 8 years old. She can babysit, clean, and sew. And imagine what use she will be to you at 12, 13—whenever she gets her period—and can bear children. She can increase your slave population. In this case, the young lady in question is your property, one Elizabeth Turner.



DIANA EJAITA

Theater magic ensues wherein our cast steps from past to present and present to past.

CARL walks toward ELIZABETH TURNER. He takes her by the elbow and pulls her off the oxcart.

ELIZABETH: Where you taking me?

CARL/HAMBLETON: Home.

ELIZABETH: But, sir, your place ain't my home no more. My mama lookin' for a place to be, but she don't know where to go. We don't know where to go, but we ain't comin' back to you. We free.

CARL/HAMBLETON grabs her. She starts to scream. He deals with her not as though it's 1864 but as though she were a kid out of control in a mall today with everyone looking on.

CARL/HAMBLETON: Everything will be okay—

ELIZABETH breaks away.



DIANA EJAITA

PRESENT DAY

ANAS ALI: Carl, man, it's 1864 and the girl is your property. You ain't the man *now*; you the man *then*.

CARL/HAMBLETON grabs ELIZABETH and hauls her offstage. The oxcart sweeps around and then off the stage amid threatening lighting, leaving ANAS ALI, TOBIAS, LINDSAY, ZEL, and CAROLINA on what is now a bare stage.

CAROLINA: So, remember the argument about “apprenticeships”? Even though the legislators who were in favor of apprenticeships did not really win that argument on the Maryland House floor, they still forced Black kids into apprenticeships—girls until they were 18, boys until they were 21. They used a Black Code law written a few years before to do it.

ANAS ALI: This is a fact.

CAROLINA: Yes.

TOBIAS: A real fact?

CAROLINA: I can show you some things.

Music plays.

INTERMISSION

ACT II

TOBIAS'S LOFT, PRESENT DAY

Everyone is gathered around the whiteboard.

CAROLINA: So children are snatched up, taken back to the plantations.

TOBIAS: They set the scene for the whole system right there, right after emancipation.

ZEL: Juvie.

TOBIAS: Foster care.

ANAS ALI: Mental institutions, meds.

ZEL: Basically locked up, taken away from their mamas 'til they were 18?

ANAS ALI: Low-down.

ZEL: We all know 'bout gettin' locked up 'til we're 18 or 21.

TOBIAS: Yeah, but we *did* stuff to get locked up—these children didn't do anything but be Black!

CAROLINA: ... Taken back into slavery unless their parents could prove to the judge when they went to court that they could take care of them.

TOBIAS: Did everybody stand by and just let this go down?

CAROLINA: Course not. Everything about our history is about resistance, some of which included white folks. Which takes me back to Lew Wallace ...

LEW WALLACE'S HEADQUARTERS, NOVEMBER 1864

MAJOR WILLIAM ESTE is reading letters aloud to GENERAL LEW WALLACE.

CAROLINA: (*Offstage.*) There was an absolute groundswell of people actively trying to get their children back. They wrote letters ...

ANAS ALI: (*Offstage.*) But most of us couldn't read and write ...

CAROLINA: (*Offstage.*) They paid people to write letters for them ...

CARL: (*Offstage.*) Where'd they get the money for that?

WALLACE: Proceed.

ESTE: Here's one from a John Dennis. Snow Hill, Worcester County, Maryland. "I came down after my children, and found them bound out, so I went and asked him for them, and he told me I could not have them, and so I left him and went to Dr. Hubble, and he said that I would have to employ a lawyer to prove that the binding of the children were not right. I went then. He thought I could have them, and I asked the lawyer about it, and he said that he could get them for me if I would pay him ten dollars a case, which would be thirty dollars ... My two youngest was bound the day before the New Constitution, and the other one was bound on the same day of the New Constitution."¹

WALLACE: Continue.

ESTE: "I write to report to you a case of a little orphan girl now in her twelfth year of age, who formerly belonged to a man by the name of Franklin Newman, and he still holds her as his property refusing to let any one have her. There has been two or three persons who have asked him for the girl. He told them that he would not let any one have her unless I come for her, and if I did he would let me have her, so I happened to be here and heard what he had said. I went over there to get her. But when I got to Mr. Newman's and told him what my errand was, he became very angry, telling me that I could not have her and for me to get off of his farm as soon as I could, he said the court had bound her and that she was his property. He then went into the house and got his gun and sword and pursued me until I got off of his farm. He then went back to the house and sent word to me at church, that had not he to have been kept at home by some one coming into his house, that he intended to have come there and shot me, and that I had better leave there before the next morning, for the county was not large enough to hold us both, that he would shoot me the first place he came up with me." Samuel Elbert.

1. This and the subsequent quotation by Este are from letters sent to Lew Wallace while he served as commander of the VIII Corps in Baltimore.

WALLACE: How many of these children are being snatched up?

ESTE: Thousands.

TOBIAS'S LOFT, PRESENT DAY

As before.

CAROLINA: Thousands.

TOBIAS: How do we know this is real?

CAROLINA: Okay. I am going to show you just how real it is. My uncle can arrange for us to have a look at the archives—the Maryland State Archives. And we will look at actual—real—documents.

BALTIMORE INNER HARBOR, NIGHTTIME

ANAS ALI, CAROLINA, LINDSAY, TOBIAS, ZEL, and CARL walk down by the Inner Harbor, Baltimore's pride, and evidence that the place is a tale of two cities: fancy restaurants, lights reflected on the water, romantic. The group members carry knapsacks and suitcases as they approach a skipjack oyster boat, *The Carolina*. On it is JAMES NELSON, CAROLINA's uncle (Black, mid-50s, stately, but warm).

JAMES: Ahoy!

TOBIAS: Yo, James.

JAMES: Come aboard.

ANAS ALI: Where we goin'?

JAMES: Annapolis.

ZEL: I can't swim.

JAMES: No need to swim. That's what this boat is for.

LINDSAY notices the name *Carolina* on the boat.

LINDSAY: Damn, Doc, you got a boat named after you! Check it out, y'all.

ZEL: I'm scared of the water.

LINDSAY: I keep tellin' you to learn to swim. What if Toe get chased down to this harbor and you can't jump in and save him if he jump in?

ZEL: Where I'm supposed to learn to swim, huh? The pool around my way closed down right after World War II, I think. Besides, Black people don't float.

ALL: That is not a fact!

CARL puts his hand out to ZEL. She automatically takes it.

ZEL: Only 'cause you and me walk these streets together do I trust you with this, Carl.

JAMES: I can't tell you how tickled I am to take you personally to the Maryland State Archives, where we will have a meeting in the morning. I make a yearly donation. Apparently they are

grateful that some people are interested in more than personal genealogy. I have arranged for us to look at original documents from the “Orphans’ Court.”

INSIDE THE MARYLAND STATE ARCHIVES

ZEL, TOBIAS, LINDSAY, ANAS ALI, CARL, and CAROLINA are in a large conference room. There are carts with several large boxes. They take out crumbling papers and start looking through them.

On another part of the stage is WALLACE’s office, where ESTE and staff are poring over letters.

ZEL: Stuff’s falling apart in my hands.

LINDSAY: How old is this stuff?

CAROLINA: One hundred and seventy years old.

TOBIAS: These aren’t people listed on these bundles. It’s things: a vase, a rocking chair, a cup.

CAROLINA: Orphans’ Court referred to where the estates of anyone who died were considered: the items—

LINDSAY: *Orphans* was *items*?²

TOBIAS: They were little slaves, right? Property, right?

JAMES walks in with DESMOND BURNS (Black, early 40s) and FARLEY MCGIBBEN (a white librarian in his late 30s).

JAMES: Everyone, Desmond Burns and Farley McGibben.

FARLEY hands CAROLINA a large book.

CAROLINA: *(Reading.)* “The Negro Docket.”

CAROLINA gives the docket to ZEL, who opens it and stares at the first page, mystified by the old cursive.

FARLEY: You’ll see in that docket that in just one day, 27 people, mostly women, came to the court hoping to get their children back.

DESMOND: The “apprenticeships” went on for three full years after emancipation. Black folks started making it their business to fight this thing.

FARLEY: And the Freedmen’s Bureau had radical lawyers who bushwhacked it.

ZEL: *(Riffling through pages in the docket, she opens randomly to a page and stops short.)* Look here! On this court list I’m lookin’ at! “Elizabeth Turner!” Is this the same Elizabeth we was talkin’ about?

2. The Orphans’ Court is Maryland’s probate court, dealing with the administration of estates and with property disputes. Under the 1860 Maryland Code of Public General Laws—the so-called Black Codes—the Orphans’ Court was also the venue that would determine whether an emancipated Black parent was incapable of supporting their children and order the children apprenticed back into the custody of a former enslaver.

They all crowd around the docket.

FARLEY: Seriously? Is that Elizabeth Turner’s name?

DESMOND: I think it is ... That’s her mother’s name.

CAROLINA: Elizabeth’s mother, sometimes recorded as “Betty,” sometimes as “Betsy”—

ANAS ALI: They never get our names right.

DESMOND: This is the same Elizabeth Turner ...

CAROLINA: Elizabeth Turner is important because she’s basically the star of the case that puts an end to these so-called apprenticeships. Now, just imagine Elizabeth’s mother going back to the plantation to get her little girl back. We know from Wallace’s diaries and papers that people went directly to the plantations—

LINDSAY: Tryin’ to get your child back? I can imagine it.

Theater magic: LINDSAY and CARL move to another part of the stage. LINDSAY plays BETSY TURNER MINOKY, mother of ELIZABETH TURNER; CARL plays PHILEMON HAMBLETON.

A BARN ON HAMBLETON’S PLANTATION, NOVEMBER 1864

CARL as HAMBLETON is working in the barn. LINDSAY as BETSY approaches him.

LINDSAY/BETSY: I come to get my girl back.

CARL/HAMBLETON: In eight years, I will pay you \$10 for her ... I’ll take care of the girl.

LINDSAY/BETSY: No, sir, I can’t sell my baby. No.

CARL/HAMBLETON: I have to train her. Teach her. That’s what apprenticeship is—

LINDSAY/BETSY: I haven’t heard nothin’ about that.

CARL/HAMBLETON: It’s the law. Can’t have little niggers runnin’ around not knowin’ where to go, how to be, what to do. Law says we gotta train ’em before they get set free.

LINDSAY/BETSY: When do I get her?

CARL/HAMBLETON: When she’s 18.

LINDSAY/BETSY: Eighteen? That’s 10 years—a long time for her to be without her mama. She might birth my grandbabies by then.

CARL/HAMBLETON: She might. She might.

LINDSAY/BETSY: You keepin’ her here just to make more slaves.

CARL/HAMBLETON: I can’t make more slaves, even if I wanted to. Slavery’s over.

LINDSAY/BETSY: How can you take my girl, after I did everything you told me? Everything. Just like you wanted it done. I was one of your best niggers, sir.

CARL/HAMBLETON: You'll have to go to court.

LINDSAY/BETSY: Court? I can't read or write. What I'm s'posed to do in court? I want to kiss my baby cheek one more time. Hold her one more time.

CARL/HAMBLETON: It's out of my hands. It's the law. All the children are to be back with their masters to do their apprenticeships. If you want to see her, you will have to come to court.

A COURTHOUSE IN TALBOT COUNTY,
MARYLAND, NOVEMBER 3, 1864

There are MANY BLACK PEOPLE with CHILDREN, WHITE PLANTERS, and a JUDGE. It's a horrible, emotionally charged mess.

JUDGE: Elizabeth Turner!

CARL/HAMBLETON steps forward with ELIZABETH. LINDSAY/BETSY comes up beside them.

JUDGE: How do you plan to care for the child? Have you means?

LINDSAY/BETSY: We was just made free three, four days ago. Ain't no more slaves to do work, so there's a lotta work to be done, and I 'tend on takin' in laundry and mendin'.

JUDGE: In the meantime, your girl will have to court mischief to eat or go hungry. Philemon Hambleton, what do you intend?

CARL/HAMBLETON: Elizabeth Turner will be taught the art or calling of a house servant.

JUDGE: Mr. Hambleton shall pay to Betsy Turner, her mother, \$10 at the end of her 16th year. Will you agree?

LINDSAY/BETSY: But, sir, I can't sell my girl. With emancipation, she belong to the lawd. If'n I sell her then, for her to be rightful, I be havin' to buy her, but we free and she s'posed to come back to me, for me to care for 'til she care for me and the lawd take me and then take her. She ain't for sale one way t' the other.

JUDGE: Girl, this is a court of law, not a philosophical discussion. Will you accept the money? Ten dollars at the end of her 16th year, \$12.50 at the end of her 17th, and \$15 to the girl at the end of her term of service on October 8, 1874, at the time the child reaches 18. Yes or no?

LINDSAY/BETSY freezes.

JUDGE: You are in a court of law. Answer me or you will be in contempt—

LINDSAY/BETSY: Sir, I ...

JUDGE: Elizabeth Turner is hereby given to the care and guidance of Philemon Hambleton, who will teach her the art and mystery of the house servant.

The slam of a gavel.

ELIZABETH: Mamaaaaaa!!!!!!!!!!!!

"Mama" reverberates as CARL/HAMBLETON lifts ELIZABETH and carries her offstage. LINDSAY/BETSY looks on in horror.

JAMES'S BOAT, ANNAPOLIS HARBOR, PRESENT DAY

CAROLINA, ANAS ALI, ZEL, CARL, and TOBIAS are on the boat, cooling their feet in the water.

ANAS ALI: Taking us away, putting us in families the courts create. And just imagine what it was like for all those mamas.

ZEL: A child can keep a woman alive, you know that? I think that's how come a lot of my friends had they babies at 14, 15—gives a girl somethin' to live for, you know what I'm sayin'?

CAROLINA: You really think that?

LINDSAY steps onto the boat.

LINDSAY: That story is hard. Real hard for me. I think I was probably 'round about Elizabeth's age when they took me from my mother.

ZEL: 'Round 8, huh?

LINDSAY: I felt like my mother really tried a lot to build a very special, close connection with me, because I was her only girl. It felt like I had anything I wanted. Then the courts moved us in with my grandmother—actually, my great-grandmother.³

CAROLINA: What happened to your mother?

LINDSAY: She been through her own pain and trauma, stemming first from my father. He got killed in our house. My mom, all of us, was there. So she never really had time to grieve on him.

CARL: Wait, I thought your father was Big Coleman, a chief—

LINDSAY: He wasn't my biological father.

ZEL: How come you never told me this? So what happened to your real father?

LINDSAY: He passed before I turned 1, and his death is actually wrote about in *The Baltimore Sun*. He was just making a way for himself when he got killed. I never knew him, no pictures, no nothin'. I felt like everybody downplayed my mother's trauma, to make her look crazy. She actually was admitted into a psychiatric unit—she didn't admit herself; somebody called them on her. But at the time, my mother was fully homeless, and that's where I wanted to be, with her.

CAROLINA: Your mother was homeless, but at 7 years old, you preferred to be with her rather than in a home.

LINDSAY: She needed somebody. She had nobody! Like, we were in, like, literally in shelter, shelter from the streets, everything. Like the whole—whatever you can imagine. But I felt like she should not be alone. The courts, they saw a better fit. But, now, even now, you know, growing up without her for so long, like, I still—I long, that's something I long for, like ...

3. Lindsay's dialogue in this scene is from two interviews with Akira Smith, on June 23, 2022, and August 7, 2023. Smith is a graduate of Western High School, a predominantly Black all-girls public school in Baltimore.

ANAS ALI: When you look back on history, you don't think about all those feelings.

TOBIAS: Yeah, it's like every character in the story is a piece of information—not a feeling human.

CARL: Like an item—a rocking chair, a teacup, a candlestick.

THE PARLOR OF 134 PRINCE B&B,
ANNAPOLIS

JAMES, ANAS ALI, TOBIAS, CAROLINA, CARL, ZEL, and LINDSAY relax.

JAMES: Do they know about Lew Wallace?

CAROLINA: Of course. You can't tell the story of the apprenticeships without Wallace.

JAMES: Do they know what he did with the Maryland Club?

CAROLINA: Some.

JAMES: Carolina is parsimonious in shedding light on those white men who did move things in the right direction. She has an anxiety about celebrating the "white savior."

CAROLINA: That's not fair. Carl, don't I acknowledge *you*?

A HOUSEMAN of the 134 Prince B&B comes in.

HOUSEMAN: Have y'all taken advantage of our complimentary bourbon tasting?

ZEL: Now you're talking!

The HOUSEMAN leads ZEL to a cabinet. She proceeds to pour bourbon for everyone but TOBIAS and ANAS ALI, who don't drink.

JAMES: The archives are closed for the weekend. Let's go to Baltimore, come back on Monday to the archives. The Maryland Club has a curious and relevant history. I'll take you there. I'm a member.

CAROLINA: Uncle J, please do not embarrass me by insisting that my friends go there.

TOBIAS: What modern debauchery goes on there?

CAROLINA: Debauchery would be interesting. There's a dress code. No jeans, no sneakers, no hats. Forget about your kufi, Anas; gotta wear a jacket.

ZEL: We'll borrow some of your charity-lady clothes.

OUTSIDE THE MARYLAND CLUB, CHARLES AND EAST EAGER
STREETS, BALTIMORE

CAROLINA, TOBIAS, ZEL, ANAS ALI, LINDSAY, and CARL approach the building. As they ascend the short, worn, red-carpeted staircase, NKOSAZANA rushes up to them, looking like a shipwreck.

ZEL: Nokey!

LINDSAY: Where have you been?

ZEL: How long you been following us, Noke?

TOBIAS: What happened?

ANAS ALI: You can tell us.

CAROLINA: Whatever you did, whatever happened.

NKOSAZANA falls to the ground, sobbing, and presents her cellphone to ZEL, who is horrified by what she sees.

NKOSAZANA: My mama killed herself online.

ANAS ALI: You mean ... she hung herself?

NKOSAZANA: My mama killed herself online!!!!

ZEL: Her mother took her own life on Insta. It's right here.⁴

TOBIAS: You did the right thing, coming straight here to tell us. We got you.

TOBIAS holds her in his arms as ANAS ALI, CAROLINA, and LINDSAY look at the gruesome Instagram video. TOM, the club doorman (white, 70s, wearing a bow tie), steps out of the door.

TOM: Move along.

JAMES: *(Stepping out of the front door.)* Tom, these are my guests. And you know Carolina, my niece.

TOM: Yes, yes, of course. You've grown.

CAROLINA: I was here last month.

ANAS ALI sees a police car offstage.

ANAS ALI: And here come the Baltimore Police. Black folks on white property ...

JAMES: Come inside.

TOM: The girl is not in accordance with the dress code.

NKOSAZANA breaks away from TOBIAS and runs. CARL and ZEL take off after her.

MARYLAND CLUB DINING ROOM

JAMES, LINDSAY, TOBIAS, ANAS ALI, and CAROLINA are eating.

LINDSAY: *(To JAMES.)* Her mom killed herself online, right? So it was just like, *what*? She waited on Nokey to come home ...⁵

TOBIAS: From juvie.

LINDSAY: But I always knew something was wrong with her mother. I just assumed it because her daughter is out here in the

4. Based on a true story, recounted by Shivone Camphor, the former outreach worker for Chicago CRED.

5. This and Lindsay's subsequent dialogue are from the interview with Shivone Camphor.

streets like this. And I'm trying to help her, but I never met her mom. I would go to the door; her mother would never come. She would send her other daughter.

TOBIAS: The idea of a strong Black woman holding up the hood, holding up the family. That's an old idea.

ANAS ALI: Our mamas are suffering from depression ...

TOBIAS: The big mamas are gone.

JAMES: Is a big mama the same as a "hood mama"?

TOBIAS: I think about my grandmother, I think about all of my other friends' grandmothers, like, when we showed up or when my guys showed up on my porch, my grandmother knew that I was involved in some things, right? But there was still a level of respect that when the guys will be seeing her—they'd be hidin' their big guns. And it's something else that's been lost—spirituality. No matter how bad I was, no matter how bad my guys were, we thought we had to come to church on Sunday, and she was like, "Bring all the guys to church on Sunday. And I'm not taking no for an answer." So we still had some sense of spirituality. Right? They've gotten further away from this family aspect, right?⁶

JAMES: All right, so where are they? Where'd the big mamas, the hood mamas, go?

TOBIAS: The big mamas now want to be at the clubs.

LINDSAY: Depression. Our mamas and our big mamas ...

ANAS ALI: ... Are going through depression.⁷

JAMES: Nothing from Zel? Let me call my friends.

CAROLINA: No cops, J.

TOBIAS: Zel will have outrun her. She will talk her into listening to Carl. Carl will get her to go to the hospital.

CAROLINA: Whatever Carl thought he was getting into with us after his residency at Walter Reed—this is not armchair psychiatry he does. It's street therapy. Battlefield therapy.

ANAS ALI: Carl been through his own rocky road.

JAMES: A wounded healer.

ANAS ALI: Like all of us.

ZEL enters, dripping with sweat. JAMES stands immediately.

ZEL: Any place I can wash up?

CAROLINA takes ZEL by the arm.

JAMES: You're in luck. They finally finished building a women's locker room. Last week! This club is one of the last in America to admit women. Not 'til 2021. Where's Carl?

6. This and Tobias's next line are from a Curtis Toler interview on April 16, 2021.

7. Kanoya Ali interview.



DIANA EJAITA

ZEL: He's with Nokey at Mercy.

TOBIAS: Psych?

JAMES: She would be so much better off at Hopkins. The head of Child and Adolescent Psychiatry is my—

CAROLINA: J. It's cool. We got this.

A LONG, CARPETED HALLWAY WITH PAINTING AFTER
PAINTING OF WHITE MEN

JAMES, ZEL, LINDSAY, CAROLINA, ANAS ALI, and TOBIAS enter.

JAMES: This used to be the billiards room, where my paternal grandfather—Carolina's great-grandfather—worked.

CAROLINA: Racking up balls for white men, cleaning their spittoons.

JAMES: So back to General Wallace. He had quite the sense of humor. And not a small aptitude for revenge. When he arrived in town, looking for proper hospitality, he had sent his men to ...

WALLACE'S HEADQUARTERS, LATE 1864

ESTE: We have to get the Negroes off the street. Some are being beaten, killed, and some are causing trouble, and what about women and children? We have to get them somewhere safe to be. Women, sir, and children.

WALLACE: I know the perfect place.

MARYLAND CLUB, LATE 1864

The MEMBERS are no longer so festive.

MEMBER NO. 1: As far as I'm concerned, the vote's not legal. They didn't have the votes. They had to go get votes from soldiers in the field.

WALLACE and ESTE walk in with some SOLDIERS.

WALLACE: The city's under martial law. I'm closing this place down. (*To ESTE.*) Check the place for weapons. Don't leave a cabinet unsearched. Clear out or I'll clear you out.

SOLDIERS push men out of the way and search.

MEMBER NO. 2: I'm a Unionist.

MEMBER NO. 1: So am I.

WALLACE: But what were you last week?

WALLACE and ESTE move around, checking out the mansion.

WALLACE: Handsomely furnished.

They come upon the kitchen. WALLACE admires the cooking range.

WALLACE: You could cook for lots of people on this range. Major, the Maryland Club will now house emancipated Negro refugees.

ESTE: Negro refugees? Really, sir? Here?

WALLACE: I shall find a sturdy woman to take care of them and the place.

ESTE: But, sir, the town's aristocratic sort eat and drink here. Napoleon's nephew started this place. They won't mix well.

WALLACE: (*Helping himself to a handful of peanuts at the bar.*) They won't need to: I've shut the place down. The aristocrats will have to find dinner, drink, and camaraderie elsewhere.

ESTE: For how long, sir?

WALLACE: Long as we need to.

MARYLAND CLUB, PRESENT DAY

TOBIAS: Whoa. Whoa. He took over the place and turned it into a place for Black women and children?

CAROLINA: In fact, he instructed Este to find an—and I quote—"excellent lady" to act as a matron. Within a week, at least four or five hundred women and children were refugees in the club.

JAMES: Was called "Freedmen's Rest."

CAROLINA: But ...

TOBIAS: "But ..."

CAROLINA: It only lasted a few months. The governor protested to the War Department and Wallace had to rescind the order. But ...

TOBIAS: "But ..."

CAROLINA: In March of 1865, an official Freedmen's Bureau was opened in Baltimore, and if you ask me, Wallace's takeover probably hurried that along. And the Freedmen's Bureau that opened in March becomes relevant to what happens to Elizabeth Turner in a big way.



DIANA EJAITA

TOM arrives.

TOM: Chef says to tell you strawberries are real good now—he made shortcake the way you like it. Wants to know if you want some.

JAMES nods. ZEL is shivering.

CAROLINA: Are you cold?

ZEL: I ain't cold. I feel the ghosts in this place. I feel the badness.

JAMES: There were pockets of goodness, too. Did you tell them the story of Maggy?

They walk to the library and situate themselves there.

CAROLINA: I'm the lapsed historian; you're the raconteur.

JAMES: Let's see if you can sense the goodness even in a place like this, with a fraught history. Here is the story of a comely girl, a mulatto, Margaret Toogood, Maggy. Nineteen years old, who managed to escape to the Maryland Club. Her owner followed her to the city, accused her of larceny—

CAROLINA: This type of thing happened all the time, as you can imagine.

ZEL: I don't need to 'magine it. I know what they did to us.

She stands.

JAMES: This charge allows him to take her back to the plantation, where he then drops the charge. So now she's his slave again. He goes to a blacksmith, gets a chain, and puts it around her neck. Locks it. General Lew Wallace heard about this, sent the cavalry to the plantation to bring her to him.

A MAKESHIFT OFFICE IN FREEDMEN'S REST/
MARYLAND CLUB, 1864

ZEL steps in. An iron collar is around her neck, with a chain and lock. ZEL is now MAGGY TOOGOOD. MAGGY'S MASTER is beside her.

Lights up on WALLACE, ESTE, and a SOLDIER.

WALLACE: Take the collar off her.⁸

MAGGY'S MASTER: She is my property.

WALLACE: She's 19 years old. She's free.

MAGGY'S MASTER: She ran away. That gives me another year.

WALLACE: Take it off her.

MAGGY'S MASTER, with malice, takes the contraption off ZEL/MAGGY and throws it on the floor. WALLACE picks the collar up and tosses it to ESTE, who catches it, responding to the weight.

WALLACE: Este, how much do you suppose that weighs?

ESTE: I'd say four or five pounds, sir.

WALLACE: And how much do you suppose Maggy weighs.

ESTE: Not much more, sir.

WALLACE inspects ZEL/MAGGY, sees large callouses around her neck and collarbone.

WALLACE: How much did she bleed before these callouses formed? How much pus and infection poured out? How much?

MAGGY'S MASTER: I don't have time to nurse my niggers. I spend time takin' care of my horses.

WALLACE: Soldier, take her upstairs to be seen by a medic.

The SOLDIER takes ZEL/MAGGY away.

WALLACE: You must pay \$500 in trust for this girl. And you are providing the payment now, before you leave my sight.

MAGGY'S MASTER: I will rot before I pay a single dollar!

WALLACE: Este, take him to the city jail and keep him there 'til he changes his mind.

MAGGY'S MASTER: I will rot! You haven't won this war yet!

WALLACE: Are you with the Confederates? Traitor. Este, see to it that he's put to hard labor.

MAGGY'S MASTER is pulled away.

MARYLAND CLUB LIBRARY, PRESENT DAY

Our present-day group, except ZEL and CARL, eating strawberry shortcake.

JAMES: Now, Tobias, what is it you say? "How did we get here?"

TOBIAS: Can't go forward without going back. I've learned that in all aspects of my life.

ZEL enters.

ANAS ALI: We got a stumbling block right in the present. The judge in some cases has sent us kids who ain't really ready for our program.

JAMES: Which judge is it?

TOBIAS: Morely.

JAMES takes a fancy note card from his inside pocket. Jots a note.

CAROLINA: (To JAMES.) Are you still using those cards? They bit the dust with the horse and buggy. Save some trees. Start taking notes on your cell.

JAMES: (Mock self-pity.) Allow me one last gasp of my assimilation into patrician ways of old. I've had to give up so much. Where will I get these once there are no more proper stationers?

CAROLINA: You'll make your own out of cardboard shirt inserts.

ZEL: Why would you join a place like this?

TOBIAS: 'Cause that man who worked in the billiards room is looking down from heaven, tickled as can be 'bout this: Carolina and Mr. Nelson bein' served dessert at the Maryland Club—by a white dude—in the place where he cleaned spittoons.

CARL enters. TOBIAS stands. They hug.

CARL: They're keeping her for a few days.

ZEL: (To CAROLINA.) Hey, when you was fightin' with the skinny cat in the hallway back at the school, your dean? (She pauses.) You said you didn't see any value in books.

CAROLINA: Nope. I didn't. I asked *who* the books are for.

ZEL: I bet there's not a single book in this room about Maggy Toogood. Maggy's standin' there with an iron collar around her neck. We know what her master said and what the general said. What was goin' through *her* mind other than "My neck is bleedin' and pus is runnin' down my arm"?

JAMES takes cards from his inner jacket pocket and gives them to ZEL.

ZEL: (Stroking the stationery.) Ooh, feels nice.

JAMES: The beginning of your diary ... What time will you set sail?

CAROLINA: You're not coming with us?

8. The dialogue in this scene is adapted from Wallace's autobiography.

JAMES: Big meeting tomorrow.

ZEL: (*To CAROLINA.*) You know how to sail a boat?

JAMES: With the help of my one-man crew, yes. (*To ZEL.*) She'll teach you.

LINDSAY: She'll have to learn how to swim first.

TOBIAS walks around surveying the many portraits of old white male members across time.

TOBIAS: So they basically turned this place into a refugee camp, huh? "Freedmen's Rest," you say?

CARL: Sometimes I feel like Latitude is a refugee camp.

TOBIAS: You right about that—refugees from violence, bad schools ...

ZEL: From bad judges ...

CARL: From poverty ...

ANAS ALI: From prison, from—

LINDSAY: Childhood. I feel like a refugee from my childhood.

CONFERENCE ROOM, MARYLAND STATE ARCHIVES

FARLEY, DESMOND, CARL, TOBIAS, ANAS ALI, ZEL, LINDSAY, and CAROLINA are assembled, with various documents around them.

FARLEY: Salmon Chase ...

TOBIAS: Ah, the guy with the fishy name ...

FARLEY: ... Becomes governor of Ohio, he runs for president ...

DESMOND: Chase seeks the nomination for the presidency four times—1860, 1864, 1868, and 1872 ...

FARLEY: ... He becomes secretary of the Treasury.

TOBIAS: I knew that fishy name sounded familiar. Now it clicks—he is the dude on the \$10,000 bill!

FARLEY: You've seen one?!

DESMOND: To many Blacks, he was a hero. He was constantly defending runaway slaves.

FARLEY: Wasn't usually successful in his attempt to keep 'em up North—

CAROLINA: —But he was always trying to put the wrong of slavery into the consciousness of the nation, not just as a moral matter, but as a political matter.

DESMOND: Moral arguments only go so far.

CAROLINA: Long story short, Lincoln appoints Chase.

FARLEY: Even though Chase had tried to run against Lincoln.

DESMOND: Lincoln puts aside whatever feelings he might have had that Chase has surreptitiously tried to get the nomination for what turned out to be his second term—

CAROLINA: As chief justice, he swears Lincoln in on Inauguration Day for his second term, and guess who he invites to have tea at his home the night before inauguration?

TOBIAS: Frederick Douglass.

ANAS ALI: How did you know that?

TOBIAS: I could feel it in my bones.

WASHINGTON, D.C.,
MARCH 4, 1865

Theater magic: TOBIAS steps in as FREDERICK DOUGLASS. SALMON CHASE and CHASE's daughter KATE CHASE SPRAGUE, elegantly dressed, are in the parlor.

TOBIAS/DOUGLASS: (*Turning to address the audience directly.*) It was my good fortune to be present at President Lincoln's inauguration ... On the night previous, I took tea with Chief Justice Chase and assisted his beloved daughter, Mrs. Sprague, in placing over her honored father's shoulders the new robe then being made, in which he was to administer the oath of office to the reelected President. There was a dignity and grandeur about the Chief Justice which marked him as one born great. He had known me in early anti-slavery days and had welcomed me to his home and his table when to do so was a strange thing in Washington, and the fact was by no means an insignificant one.⁹

KATE: Mr. Douglass, help me with Father's robe.

KATE holds her father's judicial robe. TOBIAS/DOUGLASS helps her put the robe on CHASE.

CHASE: Fitting. It's all so very fitting.

CONFERENCE ROOM, MARYLAND
STATE ARCHIVES, PRESENT DAY

FARLEY: It's relevant that Salmon Chase is the chief justice when it comes time to try to shut down the child apprenticeships.

TOBIAS: How many children had been taken back to plantations in these mass arrests?

DESMOND: Numbers range from 2,500 to 10,000.

TOBIAS: When was this?

CAROLINA: 1864 to 1867.

FARLEY: In 1864, Elizabeth Turner was only 8 ...

CAROLINA: Sometime around then, Elizabeth's mother meets a man ...

9. From Frederick Douglass, *Life and Times of Frederick Douglass* (1892).

DESMOND: ... His name was Charles Minoky. And he has the wherewithal to get two of the best lawyers in the Freedmen's Bureau to try to get Elizabeth back.

FARLEY pushes a document toward TOBIAS.

FARLEY: He is recorded as the "next friend" of the girl—

CAROLINA: Someone who appears in court on behalf of someone who is not competent to do so.

LINDSAY: Were he and Betsy actually married?

FARLEY: They did marry, yes.

DESMOND: One of the lawyers at the Freedmen's Bureau—

CAROLINA: Henry Stockbridge. An abolitionist—

DESMOND: Was completely dedicated to bringing down the apprentice system.

FREEDMEN'S BUREAU, OFFICE OF STOCKBRIDGE, PUSEY, AND
STIRLING, BALTIMORE, JANUARY 1866

There's a long line outside the door. ANAS ALI steps in as CHARLES MINOKY; LINDSAY steps in again as BETSY. They enter. HENRY STOCKBRIDGE (late 30s, white, bedraggled, played by the same actor who plays JACK ROSS and GENERAL LEW WALLACE) looks up from the piles and piles of documents everywhere.

STOCKBRIDGE: On behalf of which child are you here?

ANAS ALI/MINOKY: Elizabeth Turner.

STOCKBRIDGE: Are you Elizabeth Turner's father?

ANAS ALI/MINOKY: No, sir. I'm 'lizabeth's next friend.

LINDSAY/BETSY: He and me's married.

STOCKBRIDGE: Does the real father know? We have so many cases lined up that we don't have time right now to take the case if the real father doesn't know. It causes too many problems later.

LINDSAY/BETSY: Mr. Hambleton her real father, sir.

CONFERENCE ROOM, MARYLAND STATE ARCHIVES, PRESENT DAY

As before, with LINDSAY and ANAS ALI back in the present.

CAROLINA: It's been implied but not proven, as far as I know, that Elizabeth was Hambleton's child.

FARLEY: That Betsy was his mistress.

LINDSAY: I don't call that "being a mistress." I call that bein' a victim of rape. She was his slave.

FARLEY: Point well taken. In 1866, they go to court, they come back empty-handed.

DESMOND: But they don't give up. And in 1867 ...

CAROLINA: Stockbridge has a lot more to work with.

DESMOND: That "lot more" is the Thirteenth Amendment, the Civil Rights Bill of 1866.

FARLEY: And the Fourteenth Amendment.

DESMOND: Well, the ink for the Fourteenth Amendment was still wet on the page.

CAROLINA: But it was in the air.

FARLEY: And Stockbridge has a Supreme Court justice—

DESMOND: By the way: Did this case actually go to the Supreme Court?

CAROLINA: No. In those days, Supreme Court justices rode circuit. So as part of his circuit, not in his role of chief justice, Chase presided in Baltimore over the trial.

Noise, people, a gavel banging, etc.

COURTROOM IN BALTIMORE, OCTOBER 15, 1867

The place is packed with WHITE ADULTS—farmers, former enslavers, etc.—with Black adolescents and preadolescents, and with BLACK ADULTS, primarily with babies and toddlers. Very noisy: babies crying, toddlers chattering. ANAS ALI/MINOKY and LINDSAY/BETSY are present. STOCKBRIDGE is looking through documents. A CLERK is presiding.

CARL/HAMBLETON enters with ELIZABETH, now 11. (She does resemble HAMBLETON.) Portraying NKOSAZANA has aged ELIZABETH's countenance.

CLERK: Children and babies must be kept quiet! Quiet!!!! The honorable chief justice of the Supreme Court, Salmon Chase!

SALMON CHASE walks in, stops to correct the CLERK.

CHASE: The honorable chief justice of the *United States*.

CLERK: But, sir.

CHASE: I had the name changed.

CLERK: The honorable chief justice of the United States!

CHASE climbs to the bench.

CAROLINA: (Voice-over.) In a move very typical of Chase, he got his title changed, to something he felt was more fitting, and that was the beginning of the Chief Justice being referred to as the Chief Justice of the United States.¹⁰

CHASE: (In a kind of regal, fast, but captivating monotone.) The petition alleged that Elizabeth Turner was the daughter of Elizabeth Minoky, formerly Elizabeth Turner; and that she was restrained of her liberty, and held in custody by Philemon T. Hambleton, of Saint Michael's, Talbot County, Maryland, in violation of the Constitution and the laws of the United States. Mr. Hambleton?¹¹

10. Walter Stahr, *Salmon P. Chase: Lincoln's Vital Rival* (2022).

11. The dialogue in this scene is from the federal court record for *In re Turner* (Case No. 14,247).

ELIZABETH is brought forward by CARL/HAMBLETON.

CARL/HAMBLETON: I hereby produce Elizabeth Turner. The indentures of apprenticeship that I filed said Elizabeth had to be taught to be a house servant, and that I will pay Betsy Turner, her mother, \$10 at the end of her 16th year, \$12.50 at another period, and \$15 to the girl at the end of her term of service on the 8th of October, 1874. She was born October 8, 1856. In the event of the death of her mother, the wages will go to Elizabeth. Her mother consented in court November 3, 1864.

CHASE: And the child and her mother were both formerly held as slaves by you.

CARL/HAMBLETON: Until November 1, 1864. Emancipation Day.

CHASE: And the child was bound back as an apprentice on November 3, 1864, two days after.

CARL/HAMBLETON: There was a general law of the state saying it was permissible to apprentice children previously held as slaves.

CHASE: Mr. Stockbridge, state the points upon which you claim a discharge.

STOCKBRIDGE: Under the law of Congress, the Civil Rights Bill of 1866.

CARL/HAMBLETON: Everybody told me that the law did not interfere with this case!

CHASE: Mr. Hambleton, be still. Mr. Stockbridge?

STOCKBRIDGE: Under the law, there can be no distinction between whites and Blacks. And in this case, Elizabeth Turner was not given the privileges that a white apprentice would have—

CHASE: Mr. Hambleton, you are not represented by counsel.

CARL/HAMBLETON: No, I'm not.

CHASE: The questions in the case are so important that I should prefer to be advised by the argument of counsel on the part of the claimant.

CARL/HAMBLETON shrugs.

CHASE: Very well then. Mr. Stockbridge, proceed.

STOCKBRIDGE: The sort of apprenticeship adopted in Maryland was an evasion of the constitutional amendment abolishing slavery and involuntary servitude, and the Constitution by its own powers executes itself. The Civil Rights Bill was passed to remedy existing wrongs, and was designed to extinguish all existing institutions, and diverse existing rights to hold persons to slavery in any form. Although the indentures were made in 1864, and the law was passed in 1866, it was retroactive to that extent that it would reach this case.

CHASE turns and faces CARL/HAMBLETON directly.

CHASE: Wait a moment, Mr. Stockbridge. Mr. Hambleton, you understand how serious this case is for yourself and for the state of Maryland and for all the colored apprentices and their masters. The decision of this case would affect the condition of thousands of

colored minors whose term of slavery had been protracted from five to 10 years by this illegal mode of apprenticing them.

CARL/HAMBLETON: I desire simply to submit the case to the judgment of the court.

CHASE: The questions in the case are grave: Is this indenture in conformity with the general law of the state? Is said general law consistent with the act of Congress to protect the colored people in their civil rights? Does said act of Congress apply to this case? Was the passage of said act a constitutional exercise of the power of Congress? Mr. Hambleton, do you desire to retain the girl, and if so, had you not better procure counsel?

CARL/HAMBLETON: I wish to retain the girl, but I do not feel sufficient interest in the case to spend any money on it.

CHASE: Mr. Hambleton, you really must reconsider your position. I will adjourn the court until tomorrow at 9 o'clock, in order to give the claimant or any person interested in the decision of the case an opportunity to appear. If no person appears, I will then dispose of the case. The child shall be retained in the custody of the court until tomorrow.

CONFERENCE ROOM, MARYLAND STATE ARCHIVES, PRESENT DAY

As before. LINDSAY, CARL, and ANAS ALI step from past to present. CARL is very unsettled, emotionally worked up.

CARL: I don't get it. "I don't want a lawyer; I don't want to spend money." If I don't care, what's it to the judge?

ANAS ALI: I do not trust judges who drag things on.

ZEL: I hate that shit.

LINDSAY: Let the little girl go to her mama!

FARLEY: Self-righteous, punctilious guy.

CAROLINA: One of his friends famously said, "Splendid man to look upon, but a poor man to lean upon." In one of his absolutely enraging moves, he is responsible for Jefferson Davis escaping the gallows. Lots of people wanted Davis to be hanged. Chase behaved in that acutely "impartial" way.

TOBIAS: "Impartial" is just plain passive.

CARL: Bottom line, he adjourns the court at a climactic moment. Hambleton might have changed his mind, or some racist lawyer could have stepped up to take the case for free. Pathetic.

JAMES'S BOAT, ANNAPOLIS HARBOR, DUSK

TOBIAS and CAROLINA are alone, cooling their feet over the side of the boat.

TOBIAS: Who are your heroes?

CAROLINA: I don't have any.

TOBIAS: Most activists have heroes. (*Beat.*) No offense, but I think it's kind of a luxury to go through life without needing a hero. When I was a kid, I had to have heroes to get from one day to the next.



DIANA EJAITA

CAROLINA: Oh, I completely get that. Completely.

TOBIAS: My mother was always in violent relationships, and then when she met my stepfather, he was this big, massive man, because she met him in the federal penitentiary. He was a bank robber and he was violent toward her, and me as well. And so I can remember probably being about 11 years old, and I saw a man, and he had guys around him that I assumed at that time were his bodyguards, and he was massive, so in my mind, I thought that if I joined his gang, he would be able to protect me and my mom from this violent man who she was with, who eventually killed her. I found my mom in the garage when I was 17.¹²

CAROLINA: That is ... awful.

TOBIAS: It's cool. There's so much other violence that was in my life to talk about. But what happened to your heroes?

CAROLINA: I have to take that back. I do have heroes. Uncle James is my hero. My mother had me when she was 14.

TOBIAS: Really? I thought you was from bourge stock.

CAROLINA: I am. Bein' a bourge did not keep my mother from getting pregnant when she was 14. Today, bourges put their daughters on birth-control pills when they first get their period. But back then, at least in Baltimore, a lot of Black bourges still used only two devices for avoiding pregnancy: fear and shame. My mother's mother, my grandma, was so deeply, generationally bourge that she had gone to a boarding school in New England. Yes. And Grandma's roommate from boarding school was a real liberal girl from California. So years later, when my mother got pregnant, Grandma sent my mother not to the South, where most Black bourges sent their knocked-up daughters, but to San Francisco, with the idea that I'd be born out there, be given up for adoption, and my mother would be back in Baltimore in plenty of time to start middle school at Roland Park Country, where she was one of just a few Black students. And she

would have two full years to prepare for the Black cotillion when she turned 16. And so I was born in San Francisco. But Grandma's son, Uncle James—the apple of her eye, 10 years older than my mother—had just graduated from Stanford Law School and was a radical. He had long before defected from Black bourge culture, much to Grandma and Grandpa's dismay.

TOBIAS: James was a radical?

CAROLINA: Very much so. Unbeknownst to Grandma, Uncle James talks my mother out of giving me up for adoption. My mother was only 14, and scared to death. So, long story short, without Grandma knowing, James adopts me. I then lived wherever he and B., his true love—who *adored* me—lived. And this is why I know that love is real. They raised me. They saved me. And this is why I should never have forgotten that I have heroes. As for my own blood mother? She comes and goes in my life. She never became what Grandma planned for her to become. She's a lost soul.

TOBIAS: Your father in your life in any kind of way?

CAROLINA: My father was Buddy Bells.

TOBIAS: Holy shit! *Bells*? Really? Bells was legendary. Damn! Really? I cannot imagine that. You? And Bells? What was he like?

CAROLINA: I never met him. Uncle James adopted me when I was an infant. They told me stuff in stages—"as soon as I was old enough to understand," that kind of thing. But they never got around to telling me about my father. Or at least telling me the truth about my father.

TOBIAS: Well, yeah, Bells was ...

CAROLINA: I was 4, at a progressive Sausalito preschool, making sand paintings, when my father was shot down in the Baltimore streets. Didn't learn about that until I came across it in my own research years later.

12. Curtis Toler interview, March 27, 2021.

TOBIAS: Damn, you are just like us.

CAROLINA: I hope so.

TOBIAS: Raggedy family and stuff. Teenage pregnancy and stuff.

CAROLINA: Let's head back.

They rise. TOBIAS links arms with CAROLINA and pulls her close to his side, walking with her.

CONFERENCE ROOM, MARYLAND STATE ARCHIVES,
THE NEXT MORNING

DESMOND: October 16, 1867, the next day, Elizabeth Turner is brought into the courtroom by the bailiff. Her mother and her "next friend," Minoky, wait anxiously. No Hambleton.

CAROLINA: So Chase ...

COURTROOM IN BALTIMORE, OCTOBER 16, 1867

ANAS ALI/MINOKY and LINDSAY/BETSY wait anxiously near STOCKBRIDGE.

CHASE: Counsel? Approach.

STOCKBRIDGE approaches the bench.

CHASE: Mr. Hambleton is not here. I feel fervently that he should be represented by counsel. I shall have him come in so that I can discuss this with him once more and impress upon him the gravity of the matter.

ANAS ALI/MINOKY steps out of the past into the present, bringing LINDSAY/BETSY with him.

CONFERENCE ROOM, MARYLAND STATE ARCHIVES, PRESENT DAY

As before.

ANAS ALI: Fish-man is about to drive me crazy! Hambleton did not show up in court!

CARL: The more I think about him, the angrier I get. Elizabeth was no more to him than just another farmhand, and having her meant so, so much to her mother—it's disgusting.

ANAS ALI: What's Fishy gonna do next? Send the cops to get him? Did they have cops then?

CAROLINA: They've had cops in Baltimore since the 1780s.

DESMOND: I believe Chase felt this should go further than the circuit court in Baltimore where he was presiding—that it should go all the way to the Supreme Court. And he believed that having it ruled on by the highest court could have made a considerable difference in how these events would be recorded in history.

CARL: And how *he* would wind up recorded in history.

LINDSAY/BETSY: All I want is my baby back!

LINDSAY/BETSY steps back into the past, pulling ANAS ALI/MINOKY with her.

COURTROOM IN BALTIMORE, OCTOBER 16, 1867

STOCKBRIDGE faces CHASE.

STOCKBRIDGE: (*Impassioned.*) Your honor, one doesn't know how long the Freedmen's Bureau will last. Once the bureau closes its doors, I won't be able to help the emancipated Negroes in the same way. No one will be here to help. I beg of you, Your Honor, and out of respect for everything you have done to bring integrity to every office you have held, out of respect for all you did to protect the runaway slave, out of respect for your moral rectitude: This case has the opportunity to rid us of apprenticeships. For the good of the Negro, for the good of this state, for the good of this country, do your part to rid us of these apprenticeships, to dismiss one of the last gasps of that despicable institution which has haunted this nation for centuries. Allow Elizabeth Turner to return to the arms of her mother.

STOCKBRIDGE goes back to his table and sits down. CHASE considers for more than a moment.

CHASE: Ordered by the court, this 16th day of October, A.D. 1867, that Elizabeth Turner be discharged from the custody of Philemon T. Hambleton, upon the ground that the detention and restraint complained of is in violation of the Constitution and laws of the United States, and it is further ordered that the costs of this proceeding be paid by the petitioner.

ELIZABETH runs to LINDSAY/BETSY and ANAS ALI/MINOKY, as does STOCKBRIDGE. Mixed reactions in the courthouse.

STOCKBRIDGE: This smashes every indenture that binds a Negro child other than as a white child should be bound! And you helped! Thank you! Thank you! You are great Americans today!

CONFERENCE ROOM, MARYLAND STATE ARCHIVES, PRESENT DAY

As before.

ZEL: So an 11-year-old mixed-race slave girl brought the system down.

DESMOND: That would have been great, but the apprentice system fell away in dribs and drabs.

FARLEY: Think of all the people who didn't know about the decision.

ZEL: There wasn't social media.

CAROLINA: Think of the slave owners who felt they were above the law. (*To DESMOND and FARLEY.*) Did y'all read Barbara Fields¹³ on this? Her position is that Black parents still had a very hard time getting their kids back, in part because of the complexities of Black families themselves.

13. Barbara Fields is an American-history professor at Columbia University. See, for instance, *Slavery and Freedom on the Middle Ground: Maryland During the Nineteenth Century* (1985).

TOBIAS: No doubt.

JAMES'S BOAT, ANNAPOLIS HARBOR

ANAS ALI, CAROLINA, LINDSAY, and CARL are cooling their feet in the water.

ANAS ALI: I feel like I been walkin' dusty roads. And all we been doin' is lookin' at old documents.

CARL sings the song "Thirsty Boots."¹⁴

CARL: "So, take off your thirsty boots and stay for a while / Your feet are hot and weary from a dusty mile / And maybe I can make you laugh, maybe I can try / I'm just lookin' for the evening, the morning in your eyes."

CAROLINA: I haven't heard that song in ages. B. used to sing me to sleep on that.

TOBIAS and ZEL come onto the boat. ZEL has a small shopping bag.

CARL: What's up with Noke? I've been doggin' 'em over at Mercy and I can't get a response. The nurses leave me on hold.

ZEL: She's been released from psych.

TOBIAS: She's an orphan now, so the courts will decide about custody, and in the meantime, they will put her with her grandmother.

LINDSAY: That'll be a disaster!

CARL: So then we're lookin' at a group home.

LINDSAY: Doc, you should see if Judge Morely will consider setting up emancipation for her.

CAROLINA: Juvenile emancipations are tough now—but I could try ...

ZEL: Are y'all out y'all's minds? Noke can't get emancipated! She been talkin' about havin' a pack!

TOBIAS: That's not a realistic concern—

ZEL: You need to step back. I am gettin' tired of your macho attitude about what these females can and cannot do, man!

LINDSAY: Knowing Noke, she'll probably form a pack while she's *in* the group home—or get some wisdom on how to do it ...

ZEL: I'd rather see her in a group home than runnin' the streets.

ANAS ALI: And I was gettin' used to 1864—

ZEL: I'll take the present anytime. I woulda been a real bad slave. I wouldna been like Elizabeth Turner. Sittin' on that plantation, sewin', babysittin' master's other children by his wife who most likely looked just like her—her half sisters and brothers. And I

wouldna been all "Yessir" about Hambleton's dinner guests. If one of 'em put his hands on me, I would have hauled off and slapped the shit out of him. I woulda got lashed.

CARL: Did the story bring up anything for you—any triggers?

ANAS ALI: The part about them grabbin' the little children the day after Emancipation Day. Made me think about when I was in prison: Every Wednesday or Tuesday, it's like, a bus that comes into prison, every week—you guarantee 10, 20 guys comin' into prison. And I just remember looking like, it seem like every Wednesday, if it's 20 guys, it's 16 Black guys. Like clockwork.¹⁵

CARL: Zel?

ZEL: Me? Shit. My trigger been pulled so much, the striker got wore down. Ain't nothing gonna fire. Y'all know my tale. Catholic school. Nuns tried to rescue me from the hood. Found out I could run fast, focused me on track. I was a star. A hood star. College scholarship. Off to New Mexico. What is this place? Shit, my roommate owned a *wolf* and wanted to bring it to spend the weekend in our room.

CARL: Africans Americans are only 2.7 percent of the population of New Mexico.

ZEL: Well, I met one of the 2.7 percent and it was the wrong one. He was from the hood too—in Oklahoma—and he was violent. I pissed him off, 'cause I did not want to help him sell jackpot.¹⁶ He threw me off a cliff.¹⁷ I could have broke my legs. I didn't. Just a few bruises and a couple bangs on my head. I didn't tell nobody what happened. But my mind got messed up. Got kicked off the track team, kicked outta school. Went back home. Hit the streets. Sellin' dope and guns. Judge Morely threw my ass in prison. I do not like authority. If I had been Maggy Toogood, standin' there in chains, a steel collar 'round my neck, pus runnin' down my back? I wouldna just stood there all quiet, like a slavery exhibit in the wax museum. I woulda ran my mouth so loud, they woulda come and found me, free or not, taken me back to the plantation, and shot me in front of everybody, execution style, or by firing squad.

CARL: You were triggered by Maggy.

ZEL: Okay, cool: I was triggered.

A VOICE OFFSTAGE: Ahoy!

It's JAMES and BENJAMIN, a.k.a. B. (white, 50s), with picnic baskets.

JAMES: It's about time you had some oysters on this oyster boat! I don't imagine Carolina's been feeding you. She is not domestic.

CAROLINA: Y'all know Uncle James, and this is his partner, Benjamin. He goes by "B."

JAMES and B. start organizing the food. ANAS ALI and LINDSAY help.

15. Kanoya Ali interview.

16. "Jackpot" is one of the many slang terms for fentanyl.

17. The details of Zel's backstory here were inspired by biographical information shared by a member of the Chicago CRED team during a conversation with the author.

14. "Thirsty Boots" was a civil-rights-era folk song by the singer-songwriter Eric Andersen, who says the song was written for "a civil-rights worker friend" who had returned from Mississippi.

JAMES : I have been thinking about your situation with Judge Morely. I called her.

CAROLINA : No, J. No.

JAMES : When's the last time you met with her?

CAROLINA : We're in constant touch with her.

JAMES : Email or in person?

TOBIAS : Email.

B. : She doesn't understand what you are doing.

ZEL : That's why she thinks it is okay to meet with folks we tryin' to recruit on Zoom when she *agreed* that she would meet the youngsters in her chambers, away from juvie, human-to-human.

JAMES : Judges love lunch.

CAROLINA : No, J. No lunch.

ZEL : Sitting across from Morely? I won't have no appetite.

B. : But before you go to lunch, you'll need to make a detailed list.

CAROLINA : B.! Don't start with the lists.

ANAS ALI : Toe had lists, when he had his organization in the streets—

TOBIAS : You're right, man! What happened to my lists?

CAROLINA : "You cannot take down the master's house ..."

JAMES : "... With the master's tools." My niece is quoting the great poet Audre Lorde, but Ms. Lorde, though prophetic, wasn't running a nonprofit. She was polishing metaphors.

B. : You need a better board.

JAMES : Right now, you've got me, some academic friends, a couple lawyers. Your funders are in California and New York ...

B. : Baltimore's a provincial southern town—you are going to have to make yourselves known to more people with connections.

ZEL : You talkin' about charity people?

CAROLINA : Yes, that's exactly what they are talking about. The people who think social change comes from cocktail parties and catered breakfast gatherings at the Four Seasons. Like my grandmother.

B. : You have to work the churches—

JAMES : —The old-time Black churches, and the megachurches.

ANAS ALI : What about the mosques?

B. : Exactly! And the synagogues.

LINDSAY : Mr. J is right.

JAMES : Connections: *Ka-ching, ka-ching.*

CAROLINA : We have enough money—

B. : There's no such thing as "enough money."

JAMES : I'm not asking you to start a hedge fund; I'm asking you to have lunch with Judge Morely.

Our 11-YEAR-OLD SLAVE GIRL, looking exactly as she did at the beginning of the play, walks toward them. They cannot see her. As they continue to talk, she climbs onto the boat.

CAROLINA : J, you are asking us to work with the manners and gestures of a poison-drenched system?

Our 11-YEAR-OLD SLAVE GIRL notices ZEL's shopping bag and looks inside.

TOBIAS : I know more about the darkest parts of this system than you ever will. I been watchin' how the system works since I was a tot—welfare, foster care, mandatory psychotropic drugs in elementary school. Back in the day, at the beginning of gang culture, some of it was actually tied up with tryin' to take down the system, like revolution. The Black Panthers got a whole cultural thing kicked off and made folks think the system could fall. And what happened to 'em? They got caught up in their drama, or ended up dead from offin' each other, or canceled out by the FBI. So yeah, this system is poison, and it is hard to change the system. Lunch is not the system. But if lunch is what it takes to pull in the kinda connections we need to save lives, let's go to lunch. I agree with B. There's never enough money.

CARL : We could use a full-fledged clinic—full-time medical staff.

Our 11-YEAR-OLD SLAVE GIRL takes a box out of the shopping bag and hands it to ZEL.

ZEL : Anyway, we have a present for you. Doc, you are *definitely* not a charity lady.

LINDSAY : So we can't have you lookin' like a charity case.

ZEL hands CAROLINA the box. In it are Onitsuka Tiger Mexico 66 silver sneakers. CAROLINA looks at the sneakers, moved.

ANAS ALI : I'm down with lunch—

LINDSAY : And I have always loved church, just so long as it's good music.

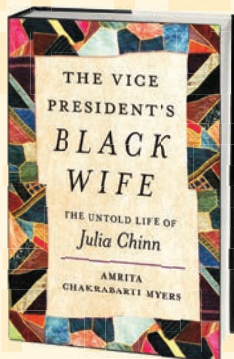
ZEL : I'll keep you from gettin' worked up if one of the officials says somethin' stupid at lunch. I'm with you 100 percent, Doc.

CAROLINA : Don't call me Doc. We're family now.

Our 11-YEAR-OLD SLAVE GIRL sits down beside CAROLINA, as close as possible, and dangles her feet in the water, as if to cool them after a long, dusty walk.

CURTAIN

Celebrating the Newest Releases from Ferris and Ferris Books

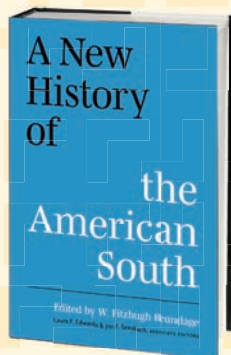


THE VICE PRESIDENT'S BLACK WIFE

The Untold Life of Julia Chinn
Amrita Chakrabarti Myers

"A meticulously researched biography . . . Myers shows how a Black woman and her kin contributed to state and national politics but, because of their race, status, and gender, have been purposely forgotten or misremembered by the general public and historians. A major intervention."

—Hilary Green, author of
Educational Reconstruction
304 pages \$30.00
A Ferris and Ferris Book

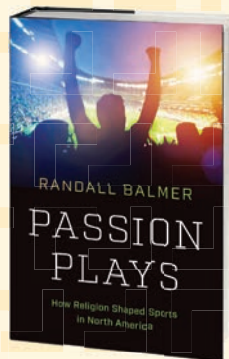


A NEW HISTORY OF THE AMERICAN SOUTH

Edited by W. Fitzhugh Brundage
Laura F. Edwards, and Jon F. Sensbach,
associate editors

"A multifaceted narrative of the Southern United States, from histories of the African diaspora and Indigenous Americans to cultural, economic and environmental trends."

—*New York Times Book Review*
608 pages \$45.00
A Ferris and Ferris Book



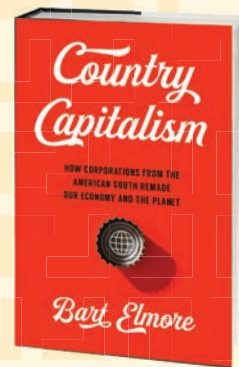
PASSION PLAYS

How Religion Shaped Sports in North America

Randall Balmer

"Compelling and absorbing . . . a lively introduction to the historical origins of the sports that we watch and play, while also inviting deeper reflection into the relationship between our religious practices, our sporting devotions, and the social worlds that we share with others . . . Balmer's posture is one of wonder and curiosity as he revels in the potential implications of his findings. It's that journeying spirit and the strength of Balmer's clear and accessible writing that make this book shine."

—*Christianity Today*
192 pages \$25.00
A Ferris and Ferris Book



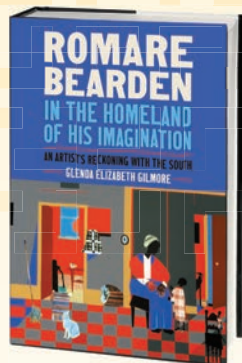
COUNTRY CAPITALISM

How Corporations from the American South Remade Our Economy and the Planet

Bart Elmore

"Bart Elmore shows us that many of the nation's most innovative corporations sprang from the soil of the rural South to transform global capitalism and the global environment in distinctive and troubling ways. This is a brilliant account of the region's surprisingly expansive—and destructive—reach."

—Paul S. Sutter, author of
Let Us Now Praise Famous Gullies
256 pages \$28.00
A Ferris and Ferris Book

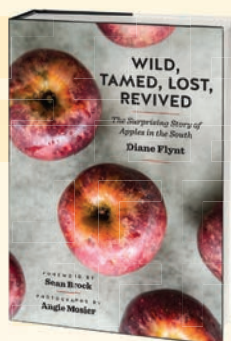


ROMARE BEARDEN IN THE HOMELAND OF HIS IMAGINATION

An Artist's Reckoning with the South
Glenda Elizabeth Gilmore

"To say that I was completely enchanted by Glenda Gilmore's new book on the late artist Romare Bearden is an understatement . . . [Gilmore] invites the reader to consider the ways in which we all construct our past by some strange alchemy of memory and creativity, filling in the gaps with stories we have heard or things we have dreamed or imagined. Does this make the past any less real? Does it make the people who inhabit it any less alive?"

—Wiley Cash, *The Assembly*
176 pages \$40.00
A Ferris and Ferris Book



WILD, TAMED, LOST, REVIVED

The Surprising Story of Apples in the South

Diane Flynt

Foreword by Sean Brock and Photographs
by Angie Mosier

"Diane Flynt says it herself: she's someone who loves nothing more than being at the top of a swing, because it lets her see the familiar with new eyes. Decades ago, she trained those eyes on—if you'll pardon me—the most boring, ubiquitous fruit: the apple. But now that we can see apples from her point of view—their stories, their botany, their place in creating, changing, and reflecting the landscape of the South and of our country—I have never been more fascinated by them. Diane's a brilliant mind, a passionate grower, and a generous writer; this book is a gift."

—Francis Lam, host, *The Splendid Table*
2023 304 pages, 62 color plates \$35.00
A Ferris and Ferris Book

ABOUT FERRIS AND FERRIS BOOKS



Bill and Marcie Ferris (photo: Donn Young)

The Marcie Cohen Ferris and William R. Ferris Imprint at the University of North Carolina Press publishes high-profile, general-interest books about the American South. Ferris & Ferris Books are supported by a multimillion-dollar endowment created by friends in honor of the Ferrises. Bill and Marcie Cohen Ferris, the namesakes of the new imprint, have a long-running connection with UNC Press. Their collective work and interests in the South are as expansive and diverse as the region itself.

Learn more about **Ferris and Ferris Books**
at uncpress.org/ferris-and-ferris-books



Shop our Holiday Gift Books Sale Save 30% off all UNC Press books.

Spend \$75 and the shipping is free!
Use promo code 01UNCPC30 at checkout.



A CENTURY OF PUBLISHING

THE UNIVERSITY OF NORTH CAROLINA PRESS

AT BOOKSTORES OR
800-848-6224
[UNC PRESS.ORG](https://uncpress.org)
[UNC PRESS BLOG.COM](https://uncpressblog.com)



The

In 1871, the choir of the struggling Fisk University engaged in a gambit to save the school: It decided to go on a singing tour of America. The choir achieved more than its members could have imagined.

Years of

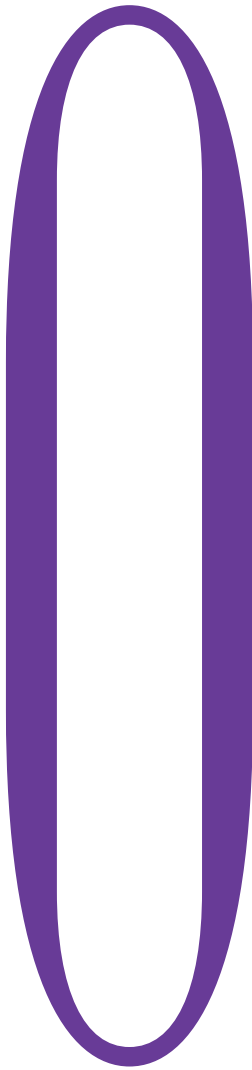
Jubilee

By
Vann R. Newkirk II



*Photo-illustrations by
Gabriela Pesqueira*

*The Fisk Jubilee Singers,
in a photograph from the 1870s*



One of the treasures of Black history is preserved in a plain gray box, stashed away in a quiet room. In Nashville one morning, as the Fisk University campus shimmered in the summer heat, I walked into the archives of the Franklin Library to see it: a collection of papers from just after the Civil War about the founding of the university and others like it. I put on a pair of white cloth gloves to handle the pages. The stories I read in the collection were real, but they also felt to me like cosmology, recounting the beginnings of Black institutions I love and the arduous labors and journeys of the people who made them. The world described in the archive seemed especially malleable: open to possibility, and open to being shaped according to the hopes of the Black people in it.

One story in particular stood out, from the diary of a young woman named Ella

Sheppard. In the summer of 1871, she was stuck waiting for a train home, in a hotel somewhere in the middle of Tennessee. She was traveling with a group of students, also Black, back to Nashville after singing at a concert in Memphis. Traveling in the South was dangerous for any Black person, let alone for a coed group of students making their way through the state where the Ku Klux Klan had recently been founded.

According to Sheppard's diary, the presence of the Black singers did indeed attract attention. A mob of local white men, engaged in what another source euphemistically described as "electioneering," began to threaten the students. As Sheppard recalled in her diary, the troupe left the hotel with the mob still in tow and walked to the railroad stop, where the choir began to sing a hymn. The mob melted away. As the train approached, Sheppard wrote, only the leader of the mob remained. He "begged us with tears falling to sing the hymn again."

The group did not yet have renown or even a name, but the encounter at the train stop was an omen. In time, the choir would become the world-famous Fisk Jubilee Singers, and the diary written by Sheppard, who served as the group's pianist and composer, preserves its origin story. Beyond that, the diary, and the other documents in that gray box, offer a founding story of the university itself. And they explain how the Negro spiritual went from being "slave music" to one of the most popular genres in America. Considered solely as cultural artifacts, the collection at Fisk—the delicate manuscripts, the brittle newspaper clippings, the photographs, the musical arrangements—is a marvel.

In my hands, I also held crucial insights into the radical possibilities of Reconstruction, a period of American history that has been purposefully warped and misunderstood for generations. In the process of revealing and restoring—and understanding—the actual truth about that era, we might also glimpse a new opportunity for ourselves. We might even again pick up the project of reshaping the world.

In his foundational work, *The Souls of Black Folk*, W. E. B. Du Bois devotes the last essay to "sorrow songs," or Negro spirituals. He describes spirituals as radical folk

music, their very existence a rebuttal to the notion that Black people were too primitive to hold political rights. Du Bois was himself a proud alumnus of Fisk University, and no stranger to the archive. In the essay, he provided a capsule history of "the pilgrimage of the Fisk Jubilee Singers." It began shortly after the train-stop incident.

THE YEAR 1871 was a crucible. Six years after Robert E. Lee's surrender at Appomattox, the true terms of peace were still being negotiated—especially insofar as freedpeople were concerned. By 1871, Republicans in Congress had managed to have the states ratify the Thirteenth, Fourteenth, and Fifteenth Amendments. The 11 rebel states had been readmitted to the Union. Buoyed by the votes of Black men, five Black representatives held congressional seats. Congress had created a Department of Justice and given it a mandate to destroy the Ku Klux Klan. Fisk and dozens of other institutions, many of them supported by the Freedmen's Bureau, had sprung up to educate Black students of all ages. They formed the nucleus of what we know today as historically Black colleges and universities. (My father recently served as the president of Fisk.)

But the revolution was faltering. Many northern white Republicans had grown weary of the constant federal oversight required to protect the rights of Black people in the former Confederate states. Their attention, and the nation's, had turned west, to the country's expansion and the bloody dispossession of the Indigenous people who lived there. The Freedmen's Bureau would come to a formal end in 1872, but its efforts were already effectively exhausted. Meanwhile, former Confederates tallied rolling successes in their "redemption" of southern governments—restoring themselves to power through violence and fraud.

It was in this environment that Fisk University's choir—10 students, ranging in age from 14 to their early 20s—took to the road. Several singers had been born into slavery; one, Benjamin Holmes, had read the Emancipation Proclamation aloud to those imprisoned with him in a slave pen in 1863.

They'd undertaken their journey in order to save their fledgling school. Fisk

University had been founded in 1866 with the support of the American Missionary Association, an abolitionist organization that turned its energies to educating freedpeople after the war. But, with the primary objective of abolition met, donations dwindled. Fisk was one of several normal schools and universities that the AMA was now struggling to support. Campus conditions were miserable. Sheppard recalled in her diary that, in cold weather, students shivered through the night in substandard housing, with barely any protection from the elements. They subsisted on food that was nearly inedible. The situation at Fisk was a microcosm of Black life in the South: unprecedented promise and potential oblivion living under the same crumbling roof.

George L. White, a white former Freedmen's Bureau official and Fisk's treasurer, was aware of the dire circumstances. The future of the institution was in peril—as was the entire project of educating freedpeople in the South. But White had an idea: He believed that the small choir he'd founded could help save Fisk. He and Sheppard had constantly drilled the singers, taking time to practice whenever the group's studies allowed. The concert in Memphis had showcased their talent, and perhaps the performance at the train stop had ordained their purpose.

White proposed a tour through the North, hoping to raise a sum of \$20,000—about \$500,000 today. Most of the prospective audiences for these benefit concerts would be white: The director hoped to astonish them with the choir's polish, and to rekindle the abolitionist fervor that had financially supported Fisk in its infancy.

Fisk's faculty, and the parents of its students, thought White's scheme was ridiculous. They called it a “wild-goose chase” and pointed to the real dangers that a group of young Black students would face on the road. The AMA actively discouraged the tour, worried that a poor showing might, in fact, impede fundraising efforts. In an act of disobedience, White drew funds from the school's meager treasury, and the singers set out for Ohio.

THE WORD RECONSTRUCTION first brings to mind the idea of reconstituting what was, exactly as it was. Buildings

may be reconstructed after disasters to the same specifications as before, defying the calamities that felled them. Ultimately the South was reconstructed in this way, with racial domination and labor exploitation as its foundation.

But *reconstruction* can mean something else, too. The word can connote taking the old and making it new, taking rupture and rubble as opportunities to fix fundamental faults, or to create new edifices altogether. For the span of just over a decade, America tried this definition on in starts and stops, attempting to fashion a truly new nation from the wreckage of the Civil War. The Fisk University singers were part of that effort, attesting to the truth that Reconstruction was not and never could be ended by the hand of the federal government.

As Du Bois wrote in *The Souls of Black Folk*, and as Sheppard recounted in her diary, the early going for the singers was miserable, and dangerous. Lynchings and wholesale pogroms of Black communities were so common as to be unremarkable in the South, and threats of violence did not stop once Black people arrived in the North. According to the Fisk history, the students also faced the ire of white people who “spelled negro with two g’s.” White crowds often ridiculed the singers, and the group was regularly denied accommodation in white establishments. As the Fisk history has it, “The world was as unfamiliar to these untraveled freed people as were the countries through which the Argonauts had to pass; the social prejudices that confronted them were as terrible to meet as fire-breathing bulls or the warriors that sprang from the land sown with dragons’ teeth.”

The singers tried to take things in stride. It was never lost on them that every tour stop was history made. When Sheppard was an infant, her own mother had been bound to the land, and was sold away from her like nothing more than livestock. The fact that, at 20, Sheppard could freely take a train to the North was at once ordinary and revolutionary.

For their early performances—in Nashville, Memphis, and Cincinnati—the singers mostly pulled from a repertoire of standard popular songs designed to showcase their equality with white choirs and to

“The world was as unfamiliar to these untraveled freed people as were the countries through which the Argonauts had to pass; the social prejudices that confronted them were as terrible to meet as fire-breathing bulls.”



Ella Sheppard, the pianist and composer for the Fisk Jubilee Singers

impress any sophisticates in the audience. This was no small thing. The belief in the intellectual, moral, cultural, and evolutionary inferiority of freedpeople was pervasive among even white liberals in 1871. Just three years earlier, the editors of the Philadelphia-based *Lippincott's Magazine* had argued against the proposition that “the negro, in his native state, knows what music is,” and ascribed any facility in music among Black people to clever mimicry or traces of white ancestry. According to Andrew Ward, the author of *Dark Midnight When I Rise*, a history of the Fisk University singers, the main interaction that most white northerners had with what they believed to be Black culture was the buffoonery of minstrelsy, mostly performed by white entertainers in blackface.

The choir found itself caught between white apathy and white hostility. At several venues, the singers barely sold enough tickets to cover their costs. In Chillicothe, Ohio, where George White used to teach, they drew enough of a crowd to instill hope of earning some money. But before they performed, they learned that the Great Fire, on October 8, had destroyed much of Chicago. They donated all of their proceeds

from that night—less than \$50—to victims of the fire.

The autumn stretched on. White prayed for deliverance. He declared that the singers should take the name Jubilee after the year in the biblical cycle whose arrival was celebrated by the manumission of slaves and the absolution of debts.

A new way forward for what was now the Fisk Jubilee Singers presented itself during a concert one night in Oberlin, Ohio. Mostly in private, the singers had been practicing a new repertoire, songs that the majority of white people had never heard. They cobbled together snatches of work songs and “sorrow songs” that many of the students, or their parents, had learned in the fields while enslaved. The minister and abolitionist Thomas Wentworth Higginson had written in the pages of this magazine about his experience of the Negro spirituals sung by Black soldiers during his time as a Union officer, calling them “a stimulus to courage and a tie to heaven.” But, for the songs they sang, there were no songbooks to work from. White, Sheppard, and the singers wrote much of the music down for the first time, helping formalize the genre as they went.

Sheppard noted in her diary that the singers harbored a deep ambivalence about even practicing spirituals in private. The songs “were associated with slavery and the dark past, and represented the things to be forgotten,” she wrote. Spirituals were imbued with the pain and the shame of bondage, which several of the Fisk singers knew firsthand. The songs were also considered sacred. To some, putting lyrics to paper or accompaniment meant stripping the spirit from the spirituals. Even in front of the small, mostly Black crowds that the choir had entertained before setting out on tour, the spirituals had been mixed in sparsely.

But that night in Oberlin, the Jubilee Singers did something different. As guests of a meeting of the National Council of Congregational Churches, they were given an opportunity to perform. Among the songs that they chose was “Steal Away,” one of the spirituals in their repertoire. The song begins with a plaintive call to “steal away,” which is then echoed by the choir. The song’s quiet opening lyrics eventually swell with force to deliver “the trumpet sounds in my soul.” The Jubilee Singers had announced themselves with thunder. As *The Cincinnati Daily Enquirer* wrote on November 17, “They sung with such effect that the scrip was as abundant as the applause, a market basket full of money being taken for the University.”

THE PRAISE FROM the choir’s Oberlin performance helped them earn the notice of Henry Ward Beecher, an immensely influential abolitionist and preacher who had once sent rifles to John Brown’s antislavery guerrillas in Kansas. Beecher invited the group to sing for his congregation in Brooklyn.

Traveling to the event, the singers knew that it would likely be their last chance to prove themselves and save the university. They expected Beecher’s congregation to be a friendly crowd. The same church had backed Beecher’s most extreme forays into abolition and had hosted escaped and former slaves before. But the singers also knew that even the expectations of friendly crowds could be misshapen by prejudice.

They chose to begin the Brooklyn concert with a dramatic innovation: singing

from the church balcony, obscured from the crowd by a curtain, their spectral voices filling the nave. And they chose to lead with “Steal Away,” the spiritual that had gotten them to Brooklyn in the first place. According to Fisk’s account of the Jubilee Singers, “So soft was their beginning that the vast audience looked around to see whence came this celestial music. Gradually louder and even louder the voices rose—to a glorious crescendo—and then back down to a mere whisper, ‘I ain’t got long to stay here.’” As they sang, the curtain was pulled back to reveal their faces. The audience’s reception was rapturous: “They clamored for more—would not let the singers cease.” Donations poured in. Beecher blessed the spirituals, though with an unfortunate image: “Only they can sing them who know how to keep time to a master’s whip.”

Ultimately, the Jubilee Singers became one of the most famous performing acts in the world. They toured through 1872, capturing the attention of both Black and white audiences. Their domestic success launched them abroad. They sang for Queen Victoria and for Kaiser Wilhelm I. In the end, George L. White’s “wild-goose chase” raised not \$20,000 but almost \$100,000.

The tour saved Fisk University. But more than that, it preserved an art form. Spirituals such as “Steal Away” became the core of the Jubilee Singers’ performances, and this expanding repertoire became the basis for the songbook of standards that still graces Black churches today. The spirituals captured the imagination of post-abolition literati. Mark Twain became something of a Jubilee Singers groupie, attending several shows to experience the music that he called “the perfectest flower of the ages.”

Some white listeners came just for the music; some came for the spectacle; some claimed that the Jubilee Singers’ spirituals had made them more sympathetic to “the plight of the Negro.” But their reactions were secondary to what the new prominence of the form meant for the people who’d made it. After one show in Washington, D.C., the Jubilee Singers were thrilled to have an audience with Frederick Douglass, then the most famous Black man in America. He told the singers: “You are doing more to remove the prejudice against

our race than ten thousand platforms could do.” He was so taken by the young people from Fisk that he sang for them “Run to Jesus,” a spiritual that he’d learned as a child. The singers transcribed his song on the spot, adding it to the songbook. In a playbill for a later concert, promoting the new song, the Jubilee singers wrote: “Thus, under the influence of this song, he at last gained his freedom, and the world gained Frederick Douglass.”

THE GOLDEN AGE of the Jubilee Singers was brief. Sheppard, the pianist and composer, had endured chronic illness even before the tour. Exhausted by the group’s barnstorming, White and several other members also took ill. As white supremacists in the South steadily destroyed Black civil rights, and as the North lost interest in protecting those rights, traveling as a Black coed group grew too dangerous. In 1877, when Congress officially ended Reconstruction—ratifying the deal that gave Rutherford B. Hayes the presidency and effectively withdrew federal troops from the South—the goings-on at Black universities were no longer considered by most liberal white people to be matters of their concern. With the coming of Jim Crow, institutions such as Fisk would form a network of care for Black folk—places where the true possibilities of Reconstruction could be preserved, even if neglected by the rest of America. The Jubilee Singers have been part of this effort; they still perform at concerts across the country.

But Negro spirituals went on to change the country as a whole. In America’s fragmented antebellum culture, before the advent of true mass media, the closest thing to “national music” had been the traveling farce of minstrel shows. Yet during Reconstruction, both the live performance and sheet music of Negro spirituals exploded in popularity. Spirituals prefigured the rise of the blues—a direct successor—as the first truly national popular music. The Black writer and activist James Weldon Johnson, writing in 1925, called spirituals “America’s only folk music and, up to this time, the finest distinctive contribution she has to offer the world.”

Through the efforts of the freedpeople themselves, the songs that had sustained

them in the fields became a national art form. This transformation was not without cost. It wouldn’t be long before Black music was co-opted by white musicians and consumers. The early radio recordings of spirituals were often performed by white singers, and marketed to white audiences. For much of white society, the spiritual was the music of the freedpeople—minus the freedpeople.

For this reason, many radical Black scholars later considered the preservation and proliferation of the spiritual to be the ultimate capitulation—a sacred piece of Black culture saved only by performing it for people who largely thought that Black culture was unworthy.

Maybe there is another conclusion. After all, the spiritual was always meant to be performed in public, in full view of the overseer’s watchful eyes. But beneath the surface, the lyrics and rhythms of spirituals carried messages among the enslaved about kinship, about love, about daily life, about the freedom of the “promised land,” and even about rebellion. Insubordinate messages persisted precisely because, like the editors of *Lippincott’s Magazine*, the overseers believed that Black culture was counterfeit, and that the people chopping cotton in the fields could not turn words into effective weapons. The insurgency of the spiritual always relied on white consumption. It was the poison in the master’s tea.

TODAY, THE LEGACY of Reconstruction most often surfaces in its legal consequences. The Fourteenth Amendment, in particular, has been the subject of major recent Supreme Court rulings on voting rights and abortion rights—the concept of equal protection under the law has never ceased being contentious. But the story of the Fisk Jubilee Singers shows that the Constitution was not the only aspect of America subject to renegotiation during Reconstruction. The singers had set out to perform popular white music, in the main, but they soon found purpose in remaking American music in their own image. The same was true of every other element of life into which freedpeople entered. Throughout Reconstruction, societal assumptions—about labor relations,

gender roles, the makeup of families, the means and ends of education, and much else—were in flux across the country, driven by the efforts of emancipated Black people in the South.

Experiments in new ways of living propagated wherever Black people pressed feet to earth. “Freedmen’s towns” flourished across the South, with all manner of governance. Would-be utopias winked in and out of existence. In coastal South Carolina, freedpeople soon became the majority of farm operators on the Sea Islands. There, they resisted guidance from the Freedmen’s Bureau (and the hopes of their former enslavers), rejecting the local market economy in favor of building spontaneous pastoral communes out of former plantations, and growing crops for subsistence instead of the market.

Across the South, freedpeople reconstituted families pulled apart on the auction block, but did so along much looser kinship lines than the nuclear family unit. In Savannah, Georgia, Black women amassed tracts of land in their own names to pass on to their children. Many freedpeople forsook the surnames of their enslavers, or even the first names they’d been given. Renaming was often an act of both radical purpose and plain descriptiveness: Freeman remains a common last name today.

In music and otherwise, it was clear that the main goal of Reconstruction—as it existed in the hearts and minds of the people being reconstructed—was not to leave the country as it was, but to shake the foundations of possibility. It was in this pliable reality that the Fisk Jubilee Singers began to make their mark.

The potency of spirituals and their insurgent history were clear to Du Bois. He tried to make his case, often writing in publications that endorsed the bigotry—sometimes clothed, sometimes naked—of his white contemporaries. In 1901, as a young scholar still relatively new to the white literary scene, Du Bois wrote for a series on Reconstruction in *The Atlantic*. Alongside skeptical essays from the historian William A. Dunning (who founded the school of American history that claimed the policy of making Black people citizens was a mistake) and Woodrow Wilson (who argued that freedpeople

had not been fit to vote), Du Bois wrote, “The granting of the ballot to the black man was a necessity, the very least a guilty nation could grant a wronged race.”

In his essay, Du Bois helped begin a slow reckoning with history that continues today. He did so not merely through his own insight and intellect, but through the revolutionary act of taking the freedpeople and their ambitions seriously—by describing what they wanted from Reconstruction.

For most of the past century, that history of possibility and Black self-determination during Reconstruction was considered too dangerous to teach. Du Bois’s own work on the topic was ignored by white historians as long as he lived, and textbooks inspired by Dunning littered classrooms in the South (and the North) even during my own childhood. To this day, the most famous and widely seen depiction of ostensible Black life during Reconstruction might be the racist 1915 film *The Birth of a Nation*, the D. W. Griffith epic that portrays Klansmen as heroes saving the South from Black savages and was endorsed by Wilson during his time as president. That fact suggests just how much the real story of Black Reconstruction has been obliterated from the public eye.

A growing movement on the right today again finds the history obscured by Wilson, Dunning, and the rest to be too inconvenient or perilous for schools and libraries. Agitation against depictions of Black history and agency is often grounded in the claim that it unfairly makes white people of the present feel guilty for the sins of the past. But that might just be cover for the real reason. Perhaps the true danger of Black history—especially of the era when the formerly enslaved seized and shaped their freedom—is that it shows us that there are more and better possibilities than the present.

That was the fundamental message of most spirituals, and of the sacred code of the promised land. That message is kept in a box of documents in a campus library. Even when salvation seems beyond reach, it may still be in our own hands.

IN LATE AUGUST 2022, I walked into a building full of people in Drew, Mississippi. Folding chairs had been crammed

everywhere they could be crammed, from the bathroom hallway to the front doors. We had all gathered there for a belated memorial service for Emmett Till, the boy brutally lynched in that very town by white men in 1955. Local citizens, dignitaries, schoolchildren, journalists—everyone was packed together.

After the processional, after the greetings and prayers, the Valley Singers of Mississippi Valley State University took the floor. They began a rendition of “Lift Ev’ry Voice and Sing,” written by James Weldon Johnson and set to music by his brother, J. Rosamond Johnson, in 1900. The first two verses of the song evoke the trials of Blackness in the past and present. The choir sang Johnson’s lyrics with triumph, their voices filling the space.

Johnson was born in Jacksonville, Florida, in 1871, the same year the Jubilee Singers set out on their tour. Their story inspired his own work cataloging and interpreting spirituals; he dedicated his first book on spirituals to “those through whose efforts these songs have been collected, preserved, and given to the world.” The history of the Jubilee Singers had been important to him. The lyrics and composition of his own anthem were inflected by the spirituals they rescued.

To Johnson, the revival of the spiritual “marked a change in the attitude of the Negro himself toward his own art material; the turning of his gaze inward upon his own cultural resources.” In his view, those cultural resources were themselves the power to build, and not just imitate—to shape a world. The song we all heard in that hot room in Mississippi was a tribute to a legacy that allowed us to be there in the first place.

Sweat dripped down my face as the singers brought the song home. The final verse slowed down to a quiet, piercing prayer. And then, a final, exulting march: “Shadowed beneath Thy hand / May we forever stand.” Even in that room, blanketed in Mississippi heat, I felt chills. *A*

Vann R. Newkirk II is a senior editor at The Atlantic and the host of the podcasts Floodlines and Holy Week.

GO AHEAD, WRITE ON THE WALLS.



NOW AVAILABLE IN GLASS

VisuGlass® WhiteWalls®
Magnetic Glass Whiteboard Walls



WhiteWalls® Magnetic Dry-Erase
Whiteboard Wall Panels



Made in
the USA

Magnatag®
Show What's Happening
WhiteWalls.com | 800-624-4154



You deserve a better cup.

From garden to cup, a fresh sip awaits. Taste the difference of high-quality loose leaf tea curated by experts.

Receive 10% OFF your first order!

Visit us today at www.uptontea.com or call us at (800) 234-8327



UPTON TEA IMPORTS

Experts of Loose Leaf Tea Since 1989



The Men Who Started the War

— By —
Drew Gilpin
Faust

ON RECONSTRUCTION

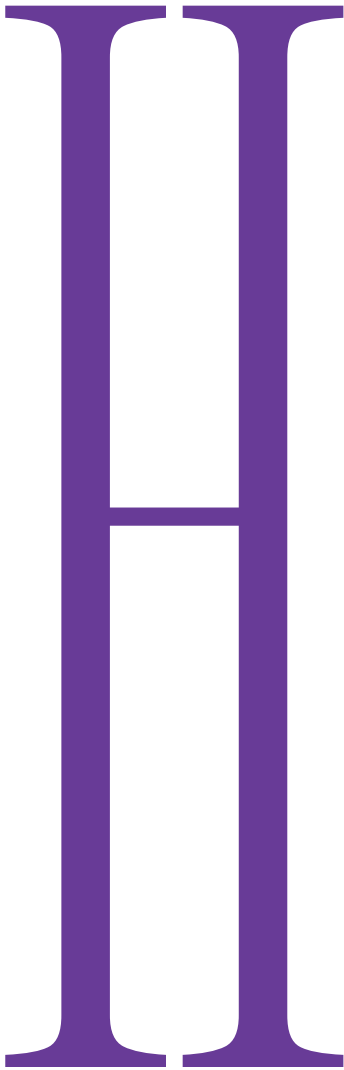


*John Brown and
the Secret Six—the
abolitionists who
funded the raid on
Harpers Ferry—
confronted a question
as old as America:
When is violence
justified?*



*Illustration
by
Matt Williams*





Harpers Ferry seemed almost a part of the neighborhood when I was growing up. Granted, it was across the state line, in West Virginia, and slightly more than a half-hour drive away from our Virginia farm. But it took us almost that long to get to the nearest supermarket. And I felt connected by more than roads. The placid, slow-moving Shenandoah River, which flowed past our bottom pasture, becomes raging white water by the time it joins the Potomac River at Harpers Ferry, 35 miles downstream.

Nature itself seems to have designed Harpers Ferry to be a violent place. Cliffs border the confluence of the two rivers, and the raw power generated by their angry convergence made the site ideal for the national armory established there around 1800. It manufactured some 600,000 firearms before Union troops burned it down in 1861 to keep it out of Confederate hands.

Five battles took place at Harpers Ferry, and the town changed hands 12 times.

But none of this is what Harpers Ferry is primarily remembered for. It is known instead for an event referred to at the time as an “insurrection,” a “rebellion,” or a “crusade,” but today most often called just a “raid.” On October 16, 1859, a year and a half before the attack on Fort Sumter, in South Carolina, the white abolitionist John Brown set out to seize the federal arsenal and distribute arms to enable the enslaved to claim their freedom. His effort ended quickly and ignominiously. Badly wounded, he was carted off to jail in nearby Charles Town to be tried and executed, as were a number of his followers. In a sense, though, his insurrection was never put down.

Brown, a brilliant publicist, made himself a martyr. He used the six weeks between his capture and his execution to define and defend his actions. He grounded them in a moral imperative to free the enslaved, invoked the nation’s revolutionary legacies, and warned of the conflagration to come. The “crimes of this guilty land,” he scrawled in a note he pressed on a guard shortly before his hanging, “will never be purged away; but with Blood.”

Within just a few years, Americans would look back at Brown across the gulf of the Civil War and identify him as a sign of what was ahead, imbuing his sacrifice with almost supernatural meaning. Showers of meteors had filled the skies in the weeks between Brown’s capture and his execution, reinforcing perceptions that his life and death had been a singular, numinous occurrence. In the words of a song improvised by a battalion of Union soldiers as they headed south to war not two years after his death, “John Brown’s body lies a-mouldering in the grave, but his soul goes marching on.” Even the attendees at his hanging seemed in retrospect to prefigure the future: Brevet Colonel Robert E. Lee was present as the commander of the U.S. troops who had captured Brown. Thomas J. (not yet “Stonewall”) Jackson led a unit of Virginia Military Institute cadets. John Wilkes Booth, President Abraham Lincoln’s future assassin, hurried from Richmond to Charles Town in a borrowed uniform to join a militia troop sent to police the hanging. He hated Brown’s cause but admired his audacity.

Many upstanding northern citizens—as well as much of the press—condemned Brown’s lawlessness. But others, Black and white, hailed his attack on slavery and mourned his death. On the day of his execution, 3,000 people gathered in Worcester, Massachusetts, to honor Brown; 1,400 attended a service in Cleveland. A gathering of Black Americans in Detroit honored the “martyr” who had “freely delivered up his life for the liberty of our race in this country.” The celebration of John Brown by Black Americans rested in the hope, and later the conviction, that his actions had set an irreversible course toward freedom—a second founding, its birth in violence as legitimate as the first one had been.

WHEN DOES WAR START? When does violence become justified? When does it shift from prohibited to permitted and even necessary? Those questions hang in the air at Harpers Ferry, compelling us to ask: When did the Civil War actually begin—and end?

Brown drew the admiring attention of almost every prominent American writer—Emerson, Thoreau, Whitman, Melville, Longfellow, Whittier. But some among the nation’s northern elite did more than praise and defend Brown. Thinking back in his autobiography to events half a century earlier, and relying on a diary he kept in the 1850s, the abolitionist and writer Thomas Wentworth Higginson reflected on what a duty to morality demands when “law and order” stand on “the wrong side” of right and justice.

For him, this was not a theoretical question. He was thinking about the role he’d played long before armies massed on battlefields. He was thinking about the process by which “honest American men” had evolved into “conscientious law-breakers,” until “good citizenship” became a “sin” and bad citizenship a “duty.” Higginson was one among a small group of prominent white men who had known about the Harpers Ferry raid in advance and provided the financial support that enabled Brown to buy weapons and equipment. They came to be known as the Secret Six.

During the 1850s, a succession of legislative and judicial measures had tightened slavery’s grip on the nation. The Fugitive

Slave Act of 1850 compelled the North to become complicit in returning those who had escaped slavery to southern bondage. The Kansas-Nebraska Act of 1854 overturned the Missouri Compromise of a generation earlier, which had restricted the expansion of slavery into the northern territories. The Supreme Court's *Dred Scott* decision, in 1857, established that no Black person could be considered a citizen or hold any "rights which the white man was bound to respect." The perpetuation of slavery and racial injustice appeared to have become enshrined as an enduring national commitment, with the federal government assuming the role of active enforcer. Faced with such developments, the Black abolitionist Frederick Douglass found himself losing hope of ending slavery through moral suasion or political action; he came to see violence as necessary if emancipation was ever to be accomplished. Slavery itself, he believed, represented an act of war. The justification for violence already existed; whether—and how—to use it became more a pragmatic decision than a moral one.

White abolitionists, too, became radicalized by the developments of the 1850s. The group that became the Secret Six included five Boston Brahmins and a lone New Yorker, all highly respectable citizens, well educated, of good families and heritage; all men of means and in several cases very substantial means. The path that the Six took toward violence began with the passage of the Fugitive Slave Act. The prospect and, soon, the reality of Black people being apprehended on the streets of Boston or New York and summarily shipped to the South brought the cruelty and arbitrariness of slavery directly before northerners' eyes. Three men who would later be part of the Six were early members of the Boston Vigilance Committee, established to prevent the enforcement of fugitive-slave legislation.

Samuel Gridley Howe was a graduate of Brown University and Harvard Medical School. He claimed descent from a participant in the Boston Tea Party, and had demonstrated his commitment to republican government by serving as a surgeon in the Greek Revolution in the 1820s.

Theodore Parker was a powerful preacher and Transcendentalist whose

radicalism so marginalized him within Unitarianism that he established his own independent congregation of some 2,000 members. His oratory attracted legions of followers, who shared his reformist and antislavery views.

Higginson, descended from one of the original settlers of the Massachusetts Bay Colony, was a graduate of Harvard College and Harvard Divinity School and held a pulpit with a fervently antislavery Worcester congregation. He suffered his first battle wound in the unsuccessful effort to free Anthony Burns, who had fled enslavement in Virginia and was seized in Boston in 1854 under the provisions of the new act. With the encouragement of the Boston Vigilance Committee, the city erupted. Parker incited a crowd with a fiery speech at Faneuil Hall, and Higginson distributed axes to those assembled outside the courthouse where Burns was being held. He himself led an assault on the building with a battering ram. In the ensuing melee, a courthouse guard was killed and Higginson suffered a saber wound on his chin, leaving a scar he proudly displayed for the rest of his life. Higginson viewed the effort to free Burns as the beginning of a "revolution"—the shift from words to action he had sought. The killing of the guard, he later reflected, was "proof that war had really begun." Violence had become both necessary and legitimate. (Burns was captured and returned to Virginia, but his freedom was eventually purchased by northern abolitionists. He attended Oberlin and became a minister.)

Higginson, Parker, and Howe soon turned their attention to Kansas, where a battle was escalating over whether the territory should become a slave state or a free state. In the spring of 1856, proslavery forces attacked a town founded by antislavery settlers from Massachusetts. John Brown, a longtime opponent of slavery who had joined his sons in Kansas with the intention of preventing its permanent establishment there, sought retribution; he and his allies killed five proslavery men in front of their families in a place called Pottawatomie. This murderous act hovered over Brown's reputation—and later his legacy—instilling doubts in some potential supporters and leading others simply to

deny that Brown had played a role in the killings, a stance that was aided by Brown's own misrepresentations.

But to many, Brown's extremism was a source of attraction, not revulsion. The newly created Massachusetts State Kansas Aid Committee channeled outside support. Higginson sent crates of rifles, revolvers, knives, and ammunition, as well as a cannon, to Kansas. He celebrated Kansas as the equivalent of Bunker Hill—a "rehearsal," he later called it, for the more extensive violence to come.

IT WAS BECAUSE OF KANSAS that the six men who would conspire to support the Harpers Ferry raid found one another and identified Brown as the instrument of what they had come to regard as necessary violence. Like Parker, Higginson, and Howe, Franklin Benjamin Sanborn and George Luther Stearns had become active supporters of the Massachusetts State Kansas Aid Committee. A Harvard graduate who was a schoolteacher in Concord, Sanborn had been deeply influenced by Parker's preaching while he was in college. Sanborn's Transcendentalist ideas, with their skepticism about existing social structures and institutions, were further reinforced by his Concord neighbors Ralph Waldo Emerson and Henry David Thoreau. Stearns was a wealthy manufacturer whose ancestors included some of the original settlers of the Massachusetts Bay Colony as well as an officer in the American Revolution. Long active in abolition, he had established a station of the Underground Railroad near his Medford home and drew on his considerable fortune to send weapons to Kansas free-state settlers.

The last of the Six was Gerrit Smith, said to be the wealthiest man in New York State. Smith, like Stearns, would supply significant financial support to Brown. He had long been active in politics, seeking the destruction of slavery through political means, but by 1856 he had come to believe that it was time, as he put it, to move beyond ballots and start "looking to bayonets." Parker, too, was preaching more forceful measures. "I used to think this terrible question of freedom or slavery in America would be settled without bloodshed," he wrote to Higginson. "I believe it no longer."



The attempted arrest, in April 1860, of the Secret Six member Franklin Benjamin Sanborn by federal authorities—which the citizens of Concord, Massachusetts, prevented.
A contemporaneous etching from *Harper's Weekly*.

By the end of 1856, under the leadership of a commanding new territorial governor, violence in Kansas had begun to subside, and a free-state electoral victory seemed all but assured. The following year, Brown began traveling throughout New England and New York to raise money for a fresh attack on human bondage—his new plan as yet unspecified. In Boston, he presented Sanborn with a letter of introduction from Smith. Sanborn in turn arranged for Stearns, Howe, and Parker to meet Brown. Uncertain what Brown intended, Higginson at first kept his distance, even though Sanborn pressed him, insisting that Brown could do “more to split the Union than any man alive.” The ideals of the once noble American experiment could be sustained only by separating from slavery or by destroying it.

In February 1858, Brown revealed his plan for the Harpers Ferry attack to Smith and Sanborn. Not long after, all of the Massachusetts conspirators met with Brown in his Boston hotel room and formally constituted themselves as the Secret Committee of Six to support Brown in planning and financing the raid. Stearns was to be the official chair, Sanborn the secretary. They would keep

careful records, with an elaborate ledger and a dues schedule. It was as if a clandestine organization of accountants had set to planning an uprising.

THE RAID'S ACTUAL occurrence surprised them—with both its timing and its swift and disastrous outcome. On October 16, 1859, Brown and a party of 21 seized the federal arsenal, eventually taking several dozen hostages. The uprising of the enslaved that Brown expected never materialized, and local militia soon cut off the bridges that were the only escape route. Brown and his men blockaded themselves in the armory's fire-engine house, where they exchanged intermittent gunfire with the troops surrounding them. On October 18, Colonel Lee and a regiment of U.S. Marines broke down the engine-house door. Wounded by a saber cut, Brown was taken prisoner and transported to the nearby Charles Town jail. Ten of Brown's men, including two of his sons, were killed; seven, including Brown, were captured and later executed. Four civilians were killed, as was one Marine. To the great dismay of the Secret Six, Brown's papers and correspondence were found at the farm where Brown had been living in Maryland.

The Six were stunned. In the press and in government offices, accusations flew. Many suspected that Frederick Douglass must have played a role. More than a decade before the raid, Douglass had met Brown and been moved by their conversations to question his own belief in the possibility of a peaceful end to slavery. “My utterances,” he later wrote, “became more and more tinged by the color of this man's strong impressions.” When Brown took up arms in Kansas, Douglass's appreciation for his boldness and conviction was only enhanced. Yet Douglass proved unwilling to join Brown when he revealed his Harpers Ferry plans. The scheme struck him as dangerously impractical and risky—“a steel-trap.”

In the aftermath of the raid, Douglass seemed almost embarrassed that he had not offered Brown more support, that he had permitted realism to trump daring. He could not conceal his admiration for the would-be liberator's courage, but concerns for his own survival won the day. Douglass fled north to Canada and then to England, where he remained for nearly half a year.

Although Douglass was all too aware of his vulnerability, the Six, protected by their social position, had been defying authority with seeming impunity for years. Their recognition of personal peril came as a shock. The Six had embraced violence out of both entitlement and desperation. In public and private communications, they frequently invoked their revolutionary heritage, their biological connections to the country's Founders—to those who had pitched tea into Boston Harbor and fought at Lexington and Bunker Hill. This was a legacy—and a responsibility—that required them to act with equivalent courage and decisiveness. They believed that in some sense, they owned the nation, and their sense of privilege fueled a confident assumption of immunity from serious consequence. But with Harpers Ferry, it seemed, they might have gone a step too far.

Letters from Smith, Stearns, Howe, and Sanborn were found among Brown's papers and featured in the press before the end of October. Five of the Six were quickly exposed and excoriated. (Parker, who had left the country before the raid in a futile search for a cure to his tuberculosis, was identified within a few months.) Smith

fell into a frenzy of worry about being indicted. After becoming, according to his physician, “quite deranged, intellectually as well as morally,” he was committed in early November to the Utica Lunatic Asylum. After consulting a Boston lawyer, Sanborn, Stearns, and Howe made their way to Canada (and Howe published an article disavowing Brown). All three returned to the U.S., but Canada remained a refuge. Howe and Sanborn went back and forth twice. Higginson, both at the time and later, was contemptuous of his fellow conspirators’ cowardice. John Brown deserved better from them. “We of the Six,” he maintained years later, “were not—are not—great men.” But Brown, he believed, was.

Higginson neither hid nor fled. He busied himself raising money for Brown’s defense and endeavoring to devise a scheme to facilitate Brown’s escape. But even for Higginson, who seems never to have contemplated a battle or a risk he didn’t relish, these plans seemed too far-fetched. Instead, with admiration, Higginson watched Brown’s display of undaunted courage throughout his trial as he refused to plead insanity or back down in his commitment to ending slavery through whatever means necessary. Brown would do far more from the grave than he could have ever imagined accomplishing in life. Higginson spent the day of his sentencing with Brown’s wife and the remaining members of his family on their bleak and remote upstate–New York farm.

The congressional committee appointed in December to investigate the origins and supporters of Brown’s raid proved only a feeble threat to the six conspirators. Higginson, to his disappointment, was never called to testify at all. Howe and Stearns dodged, equivocated, and at times outright lied. Smith was judged too unwell to attend. Parker died in Italy in May 1860 without ever returning to the United States. Sanborn’s fears were at last realized when the U.S. Marshals he had eluded for so long arrived at his house in Concord to compel his testimony. Citizens of the town rose up to prevent his removal while a judge sympathetic to Sanborn was located to issue a writ of habeas corpus. In the end, the congressional hearings were a tepid affair, likely because southern representatives came to

recognize that the less attention given to abolitionist voices, the better.

The next battle in the war that Brown had begun would not be long in coming. While he bided his time, Higginson published in February 1860 the first of a series of articles in *The Atlantic* that he referred to as his “Insurrection Papers.” After writing essays on “The Maroons of Jamaica” and “The Maroons of Surinam”—Black groups who had escaped enslavement to establish their own independent societies on the fringes of white settlement—he proceeded to publish admiring essays on Denmark Vesey, Nat Turner, and Gabriel, men who had embraced violence in their efforts to overturn American slavery. In addition to his writing, Higginson devoted the 16 months between Brown’s execution and the firing on Fort Sumter to reading about military strategy and drills, and to practicing shooting and swordplay. In 1862, this man of words returned to the world of action. He would fulfill “the dream of a lifetime” as the colonel commanding the First South Carolina Volunteers, a regiment of the formerly enslaved. This commission embodied what he had believed in for so long: the mobilization of force in the cause of Black freedom, as well as the arming of Black men in their own liberation.

Both during and after the war, the careers of the Secret Six fell along a spectrum. Stearns never went to war himself but recruited thousands of Black troops into what he referred to as “John Brown regiments”; when the war was over, he helped found the Freedmen’s Bureau, which provided land and other assistance to newly freed African Americans. Howe worked with the Sanitary Commission, a relief agency founded to support sick and wounded soldiers, and, like Stearns, was involved with the Freedmen’s Bureau after the war. Smith emerged from the Utica asylum fragile and averse to any conversation about Harpers Ferry. He gave a significant amount of money to Stearns’s Black regiments. And yet, in 1867, he was also among those who paid the bond that freed Jefferson Davis from prison. Sanborn appointed himself the custodian of Brown’s legacy, publishing four books and some 75 articles about him. (Many of the articles appeared in this magazine.) Sanborn cultivated the

In the years since 1859, John Brown and his raid have become a touchstone in America’s struggle to reconcile—or at least represent—the complex connections between force and freedom.

memory of a kinder, gentler Brown, downplaying the violence he had perpetrated. He did not know until the 1870s that Brown had lied to him about his central and murderous role at Pottawatomie.

Higginson was unapologetic. In 1879, when he remarried after the death of his first wife, Higginson chose Harpers Ferry as the site for their honeymoon, introducing his bride to prominent landmarks from the raid, the trial, and the hanging. Higginson never forgave himself for not doing more to support Brown and for failing to persuade him to adopt a plan that was more likely to succeed. To commemorate the 50th anniversary of the raid, in 1909, Higginson joined Sanborn, the only other surviving member of the Secret Six, and Howe's widow, Julia, in Concord, where they were interviewed by a journalist. (Julia Ward Howe had in 1862 published on the cover of *The Atlantic* different lyrics for the tune of "John Brown's Body": the immortal words of "Battle Hymn of the Republic.") As a writer and an activist, Higginson had remained deeply engaged in public life, notably on behalf of women's rights; his views on race and Black suffrage tended to shift with time and circumstance, and he was far from the radical of the prewar years. But in the Concord interview, he expressed no second thoughts about his commitment to violence on behalf of abolition—either at Harpers Ferry or within the legitimating framework of the Civil War.

I LEARNED THE STORY of John Brown at an early age. It might have been that my father told my siblings and me about the history of Harpers Ferry as we drove along Route 340, peering down the cliff-sides at the town and the rushing water below. Or Brown might have been one of those historical personages whose names we just knew, inhaled from the Virginia air around us. People like Stonewall Jackson and John Mosby and Turner Ashby, who had all likely ridden across the very fields surrounding our house. When I was growing up, I was always proud to live in a place associated with so many famous forebears. It was many years before I thought to question what their fame and vaunted heroism had been in service of.

Intransigent former Confederates turned from organized military force to beatings, burnings, whippings, shootings, and lynchings in the effort to suppress newly gained Black freedom.

But I knew from the outset that Brown's renown was different. He was, I was told, a madman, undertaking a scheme that was doomed to fail—a suicide mission. When I wrote about Brown for my first term paper in high school, that was the story I told.

From 1859 onward, many observers, reporters, and, later, historians adopted the view that Brown was insane, and by the mid-20th century, when I was in school, it had become a widely held assumption among white Americans. Rather than a "meteor" anticipating or inaugurating the larger war that would end slavery, Brown became no more than an aberration. Violence was reduced to a mental-health problem. The interpretation reassuringly diminished the moral force of Brown's actions and suggested that only madness could lead to dreams of overthrowing white dominance and Black subordination. This message was intended to emphasize the strength and immutability of the racial hierarchies that remained in place well after slavery's end, surviving Reconstruction and enshrined in Jim Crow. It minimized the threat Brown posed and by implication all but removed him—and his insistence on the moral evil of slavery—from any place in explanations of the Civil War's origins. The Lost Cause portrait of a conflict fought by two honorable opponents who differed primarily on constitutional views about states' rights could remain intact and unchallenged.

Even in the days just after the raid, though, there were those who insisted on acknowledging the historic import of Harpers Ferry as well as the sanity and determination of John Brown. Governor Henry Wise of Virginia came to Harpers Ferry to interview Brown after his capture and rejected the idea that Brown was a lunatic: "They are mistaken who take him to be a madman," he said. He left with an impression of him as "a man of clear head ... cool, collected, and indomitable." A sane Brown was far more dangerous. If his actions were rational, then the South must regard them as proof that the North was plotting the violent overthrow of slavery. The South, Wise insisted, needed to take active measures to defend itself and its way of life. One South Carolina politician described the raid as "fact coming to the aid of logic": the South's worst fears made

real. Harpers Ferry was the moment that changed everything. The rabidly proslavery Wise and the radical abolitionist Higginson agreed on little else, but this they regarded as self-evident.

To accept slavery as the cause of the Civil War dictates setting the conflict within a longer trajectory of violence, one that starts at least with John Brown rather than Fort Sumter. Higginson would perhaps have us date the war from his saber cut in 1854. Douglass might well argue that it began in 1619. And when did the Civil War end? Historians studying the era after Appomattox have in recent years emphasized the persistence of violence through and beyond Reconstruction, as intransigent former Confederates turned from organized military force to beatings, burnings, whippings, shootings, and lynchings in the effort to suppress newly gained Black freedom. The war, the historians argue, simply continued in other forms. It is as difficult and complicated to say when the Civil War ended as to determine when it began.

IN THE YEARS SINCE 1859, John Brown and his raid have become a touchstone in America's struggle to reconcile—or at least represent—the complex connections between force and freedom. The United States was founded in violent resistance and then guaranteed its survival as a nation eight decades later in a bloody Civil War. Violence is at the heart of our national mythology. The Secret Six drew explicitly on that mythology in their writing. It is central to our national creed. But violence has also, as Frederick Douglass reminds us, rested at the core of the social and legal order that mandated and sustained the oppression of millions of Americans from the early 17th century into our own time. Violence could enslave and violence could free. The purpose mattered. As Douglass declared, looking back on the Civil War in a Decoration Day speech honoring the Union dead in 1883, “Whatever else I may forget, I shall never forget the difference between those who fought for liberty and those who fought for slavery.”

The Black community did not forget that Brown had fought for liberty. After the war, his raid and his death continued to be commemorated across the North. In a

stirring address at Storer College, founded in Harpers Ferry in 1867 to educate African Americans, Douglass insisted that Brown had not failed, but had begun the “war that ended slavery.” W. E. B. Du Bois held Brown in similarly high esteem. In 1906, the second gathering of the Niagara Movement, the predecessor of the NAACP, was held at Harpers Ferry in acknowledgment of Brown's contributions to Black rights. Delegates from the NAACP met there in 1932 intending to dedicate a plaque in Brown's honor. In a speech at that meeting titled “The Use of Force in Reform,” Du Bois expressed few compunctions about the use of violence: Brown, he said, “took human lives . . . He took them in Kansas and he took them here. He meant to take them. He meant to use force to wipe out an evil he could no longer endure.”

Langston Hughes used poetry rather than oratory to address African American readers as he invoked the lingering memory of John Brown. Hughes, whose grandmother had been married to one of the Black conspirators killed in the raid, celebrated “John Brown / Who took his gun, / Took twenty-one companions / White and black, / Went to shoot your way to freedom.” Hughes recalled that his grandmother had preserved her husband's bullet-ridden shawl. As a small boy, he was sometimes wrapped in it. “You will remember / John Brown,” Hughes insisted.

But, fittingly, given his defining commitment to nonviolence, Martin Luther King Jr. remained silent on Brown. Even as the keynote speaker at a centennial observance of Brown's raid, King did not mention the man once. The place of violence in the centuries of struggle for Black freedom has been long contested, and by the mid-1960s, King faced growing demands from Black activists urging forceful resistance to white threats and assaults instead of the Gandhian passivity that underpinned his philosophy. Malcolm X regarded Brown as “the only good white the country's ever had.” The Black Power movement that challenged King's vision of a Beloved Community could claim deep roots.

Barack Obama reflected the long tradition of Black appreciation for Brown in his 2006 book, *The Audacity of Hope*. Brown's “willingness to spill blood,”

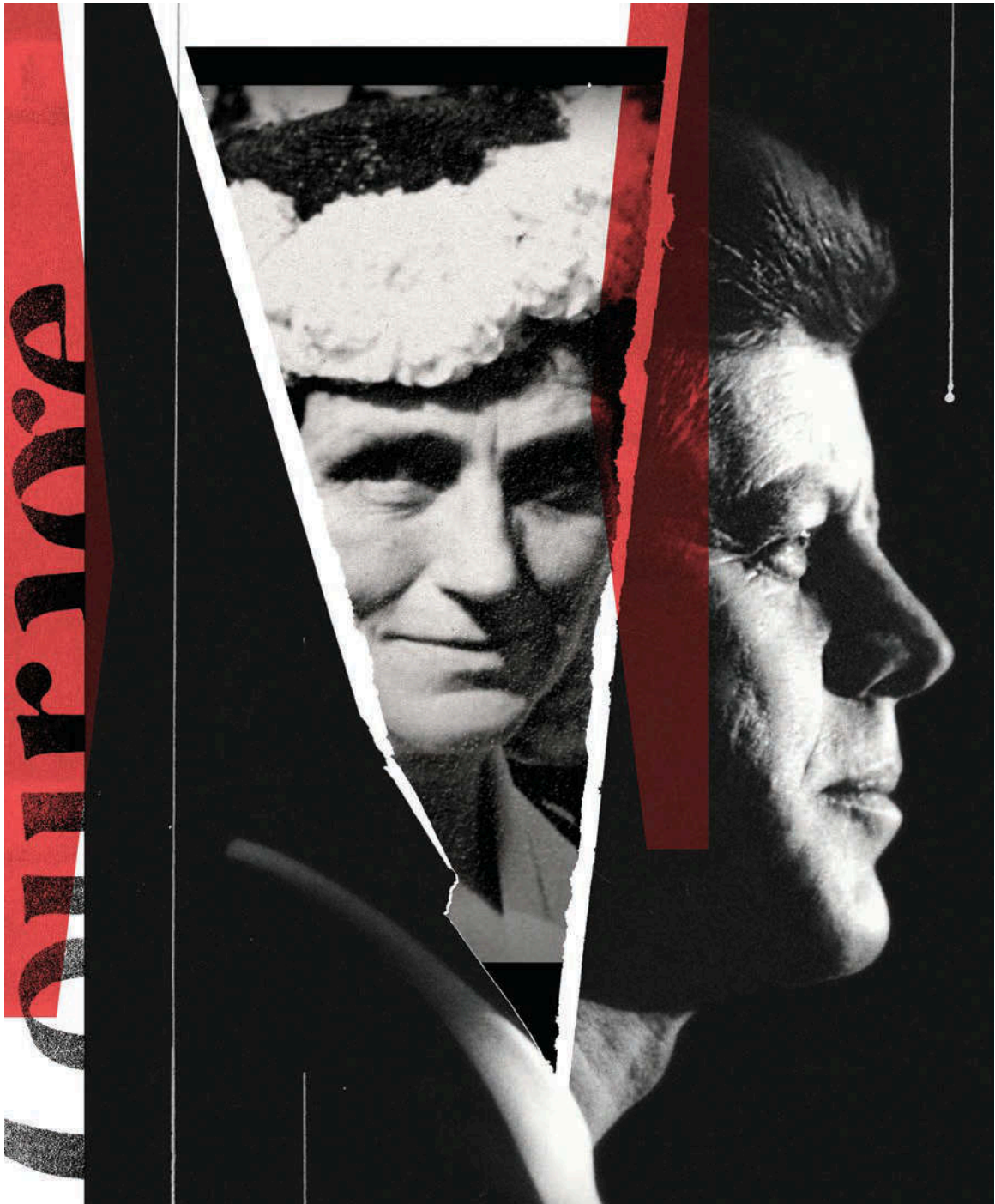
Obama said, demonstrated that “deliberation alone” would not suffice to end slavery. “Pragmatism,” he concluded, “can sometimes be moral cowardice.”

As a nation, we are unable to get over John Brown. And as a nation, we have not figured out what violence we will condemn and what we will celebrate. I found myself unspeakably moved as I stood before Nat Turner's Bible in the National Museum of African American History and Culture. At the same time, I am horrified by the violence of the January 6 rioters and by what I regard as widespread threats to the rule of law. We pride ourselves on being a country with a written Constitution that sets peaceful parameters for government. Yet the Supreme Court established by that Constitution has issued rulings providing that the citizenry may be armed not just for recreational hunting, but with weapons, including assault rifles, that are frequently purchased with an eye toward resisting that very government. Lawmakers walk the floors of the Capitol with pins shaped like AR-15s in their lapels. The rule of law seems historically and inextricably enmeshed in the tolerance—even the encouragement—of violence.

In the years leading up to the Civil War, antislavery Americans like the Secret Six turned to what Higginson—with a keen awareness of the oxymoron—called conscientious lawbreaking. Douglass came to embrace the legitimacy of violence, but recognized it as justified “only when all other means of progress and enlightenment have failed”—and only when there is a “thing worse than” violence that makes it necessary.

The existence and endurance of our nation has depended on that careful discernment, on that conscientiousness, in deciding when we truly face a “thing worse than.” It is not merely a historical question. A deep-seated ambivalence about violence defines us still. *A*

Drew Gilpin Faust is a contributing writer at The Atlantic, and the Arthur Kingsley Porter University Research Professor and president emerita at Harvard. She is the author of seven books, including This Republic of Suffering: Death and the American Civil War. Her most recent book is Necessary Trouble: Growing Up at Midcentury.



*Photo-illustration by
Mark Harris*

Kennedy and the Lost Cause

In his 1956 book, *Profiles in Courage*, the future president promoted the southern mythology of Reconstruction. One Massachusetts grandmother wasn't having it.

By Jordan Virtue

JOHN F. KENNEDY took George Plimpton by surprise after a dinner party one evening when he pulled his friend aside for a word in the Oval Office. The president had Reconstruction on his mind—really, though, he wanted to discuss Plimpton's grandmother.

Plimpton was lanky and lordly, famous for his patrician accent and his forays into professional sports. The *Paris Review* founder did everything and knew everyone. He might edit literary criticism one day and try his hand at football or boxing the next. Plimpton had known Jackie Kennedy for years, and he had been friends with Robert F. Kennedy since their Harvard days.

He also had another, and very different, Kennedy connection. Plimpton's great-grandfather Adelbert Ames, a New Englander, had been a Civil War general and Mississippi governor during Reconstruction. He was an ardent supporter of Black suffrage. Kennedy had soiled Ames's reputation in his best-selling 1956 book, *Profiles in Courage*, which had won the Pulitzer Prize for Biography the following year. The book ushered the junior senator from Massachusetts onto the national stage, effectively launching his bid for the presidency.

Kennedy's book presented a pantheon of past U.S. senators as models of courageous compromise and political pragmatism. One such man, Kennedy claimed, was Ames's racist Democratic rival, Lucius Quintus Cincinnatus Lamar II. A slaveholder, drafter of the Mississippi Ordinance of Secession, and Confederate colonel, Lamar later became the first ex-Confederate appointed to the Supreme Court after the Civil War.

Lamar and Ames were the preeminent politicians of Mississippi Reconstruction. They hated each other. (At one point, Lamar threatened to lynch Ames.) *Profiles in Courage* had relied heavily on the work of influential Dunning School

historians—disciples of the Columbia University professor William A. Dunning, who scorned Black suffrage and promoted the mythology of the Lost Cause. Kennedy may have been genuinely misled by these historians, but he also aspired to higher office and needed to appeal to white southern voters. His book denounced Reconstruction, casting Ames as a corrupt, carpetbagging villain and Lamar as a heroic southern statesman.

Ames's daughter Blanche—Plimpton's grandmother—was incensed. She sent meticulously researched letters to Kennedy, demanding that he correct his book. Some of the letters had footnotes. Some had appendixes. Blanche would not let up, chasing Kennedy from the Senate to the presidency.

In Plimpton's telling, as Kennedy took his guests on an informal tour of the White House that evening, he motioned to Plimpton for a word. "George," he said, as Plimpton would recall, "I'd like to talk to you about your grandmother." Kennedy begged him to persuade Blanche Ames to stop writing, complaining that her correspondence "was cutting into the work of government."

Plimpton promised to try, but he knew it would be no use. "My grandmother was a Massachusetts woman," he later explained, and when Kennedy refused to amend *Profiles*, Blanche "did what any sensible Massachusetts woman would do: she sat down and wrote her *own* book."

BLANCHE AMES was born in Massachusetts in 1878, the year after Reconstruction ended in a political deal that awarded Rutherford B. Hayes, a Republican, the disputed presidential election in exchange for withdrawing federal troops from the South. Blanche had the Civil War in her blood. Benjamin F. Butler, a Union general, was her maternal grandfather; he had commanded Fort Monroe, in Virginia, and had designated fugitive slaves as

“contraband of war,” using a legal loophole that allowed refugees to seek protection behind Union lines. He later became governor of Massachusetts. Adelbert Ames, her father, won the Medal of Honor at First Bull Run and fought at Antietam and Gettysburg. After serving as the military governor of Mississippi, Ames became the state’s senator and then its civilian governor. He was a champion of racial rights, embracing a personal “Mission with a large *M*” to support Black citizens.

Blanche, too, was a principled fighter, willing to risk her social privilege for the causes that she championed. Adelbert encouraged his daughters to attend college. Blanche went to Smith, where she became class president. At commencement, she delivered a forceful address promoting women’s suffrage, with President William McKinley in the audience. Blanche helped spearhead the Massachusetts women’s-suffrage movement, working as a political cartoonist for *Woman’s Journal*. She founded the Massachusetts Birth Control League. Once, Blanche sauntered onto Boston’s Commonwealth Avenue carrying a hand-carved wooden penis to demonstrate proper condom use; she was arrested, but police released her after realizing she was the daughter of one governor and the granddaughter of another. “If she was a man,” one historian has observed, “there would be five books” about her already.

Blanche Ames Ames acquired her distinctive, double-barreled name upon marrying the prominent Harvard botanist Oakes Ames, who came from an unrelated dynastic strand of Ameses. A talented painter, Blanche illustrated some of Oakes’s books about orchids. The Ames mansion at Borderland, their 1,200-acre estate outside Boston, was built entirely of stone to ensure that the library—the filming location for the 2019 movie *Knives Out*—would be fireproof. Adelbert Ames’s and Benjamin Butler’s Civil War-era swords can still be seen in the foyer. George Plimpton once used one to cut a cake at an anniversary party.

Profiles in Courage roused Blanche from her Borderland retirement. Eight decades had elapsed since the end of Reconstruction. The modern civil-rights movement was gaining momentum, with its promise

of a second Reconstruction. Kennedy was not only taking the wrong side, but he was doing so by maligning Blanche’s father:

No state suffered more from carpetbag rule than Mississippi. Adelbert Ames, first Senator and then Governor ... [admitted] that only his election to the Senate prompted him to take up his residence in Mississippi. He was chosen Governor by a majority composed of freed slaves and radical Republicans, sustained and nourished by Federal bayonets ... Taxes increased to a level fourteen times as high as normal in order to support the extravagances of the reconstruction government.

Lamar, meanwhile, was cast as a “statesman” for whom “no partisan, personal or sectional considerations could outweigh his devotion to the national interest and to the truth”—a selfless patriot who had helped reconcile the nation.

The truth of the matter was very different. Reconstruction-era Mississippi under Ames’s leadership arguably held more political promise for newly enfranchised Black people than any other southern state. Before the Civil War, Mississippi had contained some of the richest counties in the nation, but most Mississippians—some 55 percent—were enslaved. After the war, Mississippi was the poorest state in the Union. But the new state constitution worked to overturn the Black Codes—laws designed to limit the rights of newly freed African Americans—and Mississippi’s Hiram Revels and Blanche K. Bruce became the country’s first Black senators. Ames himself shared his gubernatorial ticket with three Black candidates.

Democrats swept the 1874 national midterm elections in what the historian Eric Foner has called a “repudiation of Reconstruction.” Mississippi Democrats saw an opportunity: By seizing control of the legislature in upcoming state elections, they could pass measures that would essentially end Black suffrage. The year 1875 became a struggle between Ames, the elected governor, and Lamar, who was then in Congress. Ames’s administration had the support of Black voters. Lamar, meanwhile, embraced the so-called

Mississippi Plan, which aimed to disrupt a legitimate election, by force if necessary. Lamar insisted that the Democrats had to win control of the state legislature to ensure the “supremacy of the unconquered and unconquerable Saxon race.” On Election Day, paramilitary terrorists called White Liners obstructed polling places, destroyed ballot boxes, and threatened to kill Black citizens who voted, as the journalist Nicholas Lemann has written in *Redemption: The Last Battle of the Civil War*. Counties that were once overwhelmingly Republican saw the Republican vote drop to single digits. “A revolution has taken place,” Ames wrote to his wife, prophesying a bleak future for Mississippi. “A race are disenfranchised—they are to be returned to ... an era of second slavery.”

Democrats, elected by terrorism and led by Lamar, now threatened Ames with impeachment. They accused him of financial impropriety—including the high taxes that *Profiles* decried—despite his administration’s relative frugality. To avoid impeachment, Ames resigned and fled the state. A U.S. Senate committee investigated the Mississippi elections and produced a 2,000-page document known as the “Boutwell Report.” It concluded that Ames was blameless and that his resignation had been forced “by measures unauthorized by law.” No matter: Ames’s reputation lay in tatters.

The following year, during the presidential deadlock, Lamar helped broker the Compromise of 1877, which gave Hayes the presidency over Samuel Tilden in exchange for the return of “home rule”—rule by white-supremacist Democrats—to the South, effectively destroying national Reconstruction.

PROFILES IN COURAGE evades easy categorization. It is a historical work, written by a political team, heavily assisted by historians, and published for political gain. The book features eight senators, strategically distributed across time, space, and party. Five of the profiles focus on questions of slavery, the Civil War, or Reconstruction, and none of the featured senators took a progressive approach to Black rights. Three, including Lamar, were slaveholders. Questions about authorship arose early: Kennedy’s

OPENING PAGE: ESTATE OF JACQUES LOME / GETTY; BCN PRODUCTIONS / BORDERLAND STATE PARK

speechwriter Theodore Sorensen was rumored to be the true author. (He did, in fact, write most of the book.) Archival drafts reveal that the Georgetown University history professor Jules Davids helped overhaul the Mississippi chapter. The book's historical vision, though, came from Kennedy.

Historians in recent years have acknowledged that the real problem with *Profiles* is not authorship but substance. As a critic, Blanche Ames got there first. Her personal copy of the book, a first edition, overflows with annotations. She drew arrows and corkscrew question marks around the paragraph about her father, her anger visible on the page. When Kennedy insisted that Lamar had written Mississippi's Ordinance of Secession only after losing hope that "the South could obtain justice in the Federal Union," Blanche thundered in the margins: "Lamar had sown the seed in 1861. He was sowing it again in 1874."

In June 1956, Blanche sent a nine-page letter to Senator Kennedy, introducing herself as his friend Plimpton's grandmother and urging "corrections of errata for your own sake as well as mine." She recognized diplomatically that, "in a work as ambitious as 'Profiles in Courage' ... there are bound to be some viewpoints to arouse controversy." Nevertheless, she argued, ambition did not excuse historical inaccuracy.

Kennedy replied the next month. He was cordial, admitting that Reconstruction was "one of the most difficult sections" to write, not because of lack of material, but because of an abundance of "emotion-packed and strongly partisan" readings. It was a politician's apology, suffused with qualifiers. He insisted that he had relied on "reputable authorities," but granted that "it is possible, of course, that in so doing a particular individual or incident is slighted or inadequately or inaccurately described." He added, "If such is the case in connection with my mention of your father ... I am indeed sorry." He assured Blanche that her message "succeeded in stimulating me to further research," but warned that he did not expect *Profiles* to be reprinted, so there would be no correction.

Kennedy did, in fact, do further research. According to Plimpton, during that Oval Office conversation after the

dinner party, Kennedy asked Plimpton what he knew about his great-grandfather, apparently eager to demonstrate his own knowledge. He reenacted how Ames would inspect his Civil War soldiers and shout "For God's sake, draw up your bowels!" causing White House personnel to burst in, worried by the uproar. The president had found this obscure detail in an equally obscure book, *The Twentieth Maine*, which was published a year after *Profiles*.

But between 1956 and 1963, *Profiles* was reprinted more than 30 times. Kennedy did not change his account of Adelbert Ames and L. Q. C. Lamar.

KENNEDY'S INTRANSIGENCE ONLY fueled Blanche's campaign. She forwarded her letters to Harper & Brothers, giving the publisher "the first opportunity" to rectify where *Profiles in Courage* "falls short of the Code of Historians." The publisher declined, claiming that too much time had elapsed for readers to be able to understand any corrections. Blanche combed through Kennedy's acknowledgments and wrote to the professors who assisted with drafting or editing *Profiles*, hoping that the historians might put pressure on him.

They did not. There is no evidence that Davids, architect of the Lamar chapter, ever bothered to reply. Allan Nevins, at Columbia, backpedaled, claiming that the introduction he had written for *Profiles* "carried no endorsement of all details ... I am sure the Senator will make correction where correction is proper." Arthur Holcombe, at Harvard, patronizingly suggested that Blanche had "misunderstood Senator Kennedy's meaning." Some of these academic historians may simply not have taken Blanche seriously: She was old, she was a woman, and she lacked scholarly credentials.

Blanche contacted a second circle of scholars, seeking a historian "free from bias" who might serve as an impartial biographer of Adelbert Ames. She steeped herself in the historiography of Reconstruction, coming to understand how closely *Profiles* followed the neo-Confederate historians Wirt Armistead Cate and Edward Mayes. "Cate copies Mayes and Kennedy copies Cate," she wrote to the eminent Harvard historian Samuel Eliot Morison. "Now, unless

Five of Kennedy's profiles focus on questions of slavery, the Civil War, or Reconstruction, and none of the featured senators took a progressive approach to Black rights.

corrected, modern and future historians may copy Kennedy! This method of writing history leads around in circles of quotations of half-truths. It is a false method.”

Morison suggested a few military scholars as potential Ames biographers, but mainly recommended “Negro historians” such as John Hope Franklin, Rayford Logan, and Alrutheus Ambush Taylor. “Adelbert Ames’ career as Governor was, I believe, more important than his military career,” Morison reasoned, “and he was the champion of the Negroes.” Blanche contacted a host of prominent academics, including C. Vann Woodward, whose books had criticized the Dunning School and challenged the myth that Reconstruction governments with Black elected officials were simply incompetent or ignorant. The *Profiles* team had paid no attention to this scholarship. Despite her efforts, no historian would commit to the project. So Blanche resolved to write a biography of Adelbert Ames herself.

Borderland became Blanche’s archive and fortress while she spent six years—1957 to 1963—researching and writing. When her granddaughter Olivia Hoblitzelle visited Borderland, she marveled at the piles of Civil War maps and books in the library. On one trip, Hoblitzelle recalled, her father asked, “How long is it now?” “Five hundred pages,” Blanche replied. When Hoblitzelle’s father asked, “Isn’t that enough,” Blanche “looked him straight in the eye, and said, ‘Well, if Tolstoy could do it, so can I.’” When she finished, she was 86 years old.

Blanche’s research drew significantly on the work of Black historians, who had been publishing trenchant studies of Reconstruction for decades. White historians had largely ignored this work, dismissing it as second-class scholarship. Blanche thought otherwise. Her bibliography cited W. E. B. Du Bois’s *Black Reconstruction in America*, Franklin’s *The Militant South*, John Lynch’s *The Facts of Reconstruction*, Merl Eppse’s *The Negro, Too, in American History*, and George Washington Williams’s *History of the Negro Race in America*. Kennedy, meanwhile, had not cited a single Black author on Mississippi Reconstruction.

The stakes, Blanche believed, included not only her father’s reputation but the very meaning of Reconstruction. Her final chapter, “Integrity and History,” is a scathing condemnation of the traditional Reconstruction historiography Kennedy had parroted. Throughout the book, she linked Adelbert Ames’s promotion of racial rights in the 1870s with the modern civil-rights movement—the second Reconstruction:

In this fateful year of 1963, our Congress has a unique opportunity with its overwhelming Democratic majorities ... Congress seems to hold the practical power to do away with the disgraceful suppression of Negro suffrage rights ... A hundred years has been too long to wait for application of these long-standing laws of equity.

BLANCHE AMES’S BOOK was published at the worst possible moment. In September 1963, she finished correcting page proofs for *Adelbert Ames, 1835–1933: General, Senator, Governor*. The book was lovingly bound in Sundour cloth and stamped in gold. It sold for \$12.50, about \$120 today—an old-fashioned, costly volume. Kennedy’s mass-produced paperback, meanwhile, sold for less than a dollar. On November 22, 1963, as Blanche’s book was going to press, Lee Harvey Oswald shot and killed Kennedy in Dallas.

With the president’s tragic death, *Profiles in Courage* got a second life, landing back on the *New York Times* best-seller list. As Americans evaluated Kennedy’s legacy, his prizewinning book seemed a natural place to start. A televised adaptation of *Profiles* had been in production at NBC before Kennedy’s death. At that time, Blanche had urged Kennedy to use television as an opportunity to “bring your views into accord with the trend of modern historical interpretation of the Reconstruction Period.” After the assassination, the network pressed ahead, framing the series as “one of the finest living memorials to President Kennedy.” But Blanche may have gotten through to Kennedy’s team in the end, at least as far as the television series: When it premiered, a year after Kennedy’s death, the planned segment on Lamar had been quietly dropped. It was

the only original profile not to be featured on television.

But there was still the book. Blanche wrote to Sorensen in early 1964, trying to strike a tone of mutual interest: “Must we not find a way of correcting these obvious misstatements inadvertently restated by President Kennedy? Otherwise they will be perpetuated with greater force than ever, and I do not believe that he would have wished this. Do you?” There is no record that Sorensen replied.

Blanche lived to see the passage of the Civil Rights Act of 1964 and the Voting Rights Act of 1965. Born a year after the end of the first Reconstruction, she was able to witness the start of the second. But when she died at Borderland, in 1969, a belittling *New York Times* headline read: “MRS. OAKES AMES, BOTANIST’S WIDOW; Illustrator of Her Husband’s Works on Orchids Dies.” Despite Blanche’s best efforts, her book sold only a few thousand copies.

In 2010, a few years before efforts to remove Confederate monuments gained traction across the country, a life-size statue of Lamar was erected outside his former home in Oxford, Mississippi. The L. Q. C. Lamar House Museum’s public-outreach efforts generally commemorate Lamar not as a white supremacist or an architect of the Mississippi Plan, but as the embodiment of Kennedy’s redemptive arc: “Southern secessionist to American statesman,” as the museum describes it. Ames is not mentioned at all; *Profiles* is highlighted throughout the museum.

In 1980, George Plimpton donated a copy of Blanche’s book to the John F. Kennedy Presidential Library and Museum, in Boston. “President Kennedy would know,” he said, “that a Massachusetts woman will eventually have her way.” But Blanche Ames Ames has not had her way quite yet. At the library’s gift shop, visitors can buy a 50th-anniversary edition of *Profiles in Courage*, published in 2006, with an introduction by Caroline Kennedy. The book has never been corrected. *A*

Jordan Virtue is a Ph.D. student in history at Stanford University. She is studying the legacy of the Civil War and Reconstruction.

Give One Bike, Get One Bike

Help grow a movement of generosity today!



GOGO is a **GIVE one, GET one** program.
For every GOGO bike you purchase, Can'd Aid
will GIVE another bike to a child in need.
Double the goodness!

Can'd Aid
20" Bike

\$225



Since 2013, Can'd Aid has donated
more than 10,000 bikes to children
in need across the country.



**FREE
SHIPPING**
WITHIN THE
CONTIGUOUS US

www.candaid.org

Remarkable Leather Goods From Maine



Moose Leather Front Pocket Wallet



Looking for a new wallet or leather bag?

Consider the Made in Maine Collection from Rogue Industries.
Our leather goods are thoughtfully designed, built to last, and fairly priced.
Call to request a catalog or visit us online today.



Bison Leather Crossbody

www.Rogue-Industries.com

1.800.786.1768



ON RECONSTRUCTION

The Black Roots of American Education

By
Adam Harris

*How freedpeople and their
advocates persuaded the nation to
embrace public schooling for all*

*Photograph by
Lenard Smith*



B

Before the Civil War, America had few institutions like Antioch College. Founded in Yellow Springs, Ohio, in 1850, Antioch was coed and unaffiliated with any religious sect; it was also the first college in the nation to hire a woman to serve on its faculty as an equal with her male colleagues. It was unquestionably progressive, and would not have been that way without its first president: Horace Mann.

Mann, the politician and education reformer from Massachusetts, sought to mold a certain kind of student: conscientious, zealous, inquisitive. For years, Mann had opposed slavery; he hoped his students would as well. He charged those

he taught at Antioch to dedicate themselves to eradicating injustice with sedulous care. “Be ashamed to die until you have won some victory for humanity,” Mann told the graduating class of 1859.

Mary D. Brice was one of Mann’s students at Antioch, and she was a true believer in Mann’s vision. In December 1858, alongside her husband, Brice traveled 900 miles to New Orleans, to teach.

Brice found a city that was like no other in the antebellum South. In New Orleans, a small class of free Black people lived and worked as citizens alongside white people; they owned businesses and, in some cases, plantations. And if they were wealthy enough to afford tuition, or light-skinned enough to pass for white, they could attend school.

Yet the free Black New Orleanians who were neither wealthy nor light enough had few options. In 1865, Benjamin Rush Plumly, a white abolitionist politician who’d joined the Union army at the outset of the war, and who would eventually lead the Board of Education for the Department of the Gulf, described the antebellum situation in the region bluntly: “For the poor, of the free colored people, there was no school.”

Brice, a deeply religious person, believed that God meant for her to create one. She opened “a school for colored children and adults” in September 1860, at the corner of Franklin and Perdido Streets, near present-day city hall. The effort was short-lived. In June 1861, two months after Confederate troops fired the first shots of the Civil War, Brice was forced to close the school.

But the war could not stop Mary Brice. By November of that year, she had moved to Magnolia Street and reopened her doors. Again she was shut down, this time more forcefully. Confederates began a terror campaign against the school, leaving signs outside her home: DEATH TO NIGGER TEACHERS, they declared. So Brice began teaching in secret, sneaking to her students’ homes under cover of darkness.

By the end of April 1862, Union troops had captured New Orleans. Brice was now able to conduct her work without the constant threat of violence. With funding from northern missionary associations, other

private teachers began to travel to New Orleans. The poor Black people of the city—including the formerly enslaved—wanted an education.

The educators’ efforts were slow and piecemeal at first, but eventually, with federal assistance, they helped create the infrastructure for public education in Louisiana. There, and across the South, education reformers and abolitionists like Brice carried out Mann’s vision for schools that were free and universal. The existence of public education today in the South—for all children—is largely their doing.

IN THE EARLY DAYS of the republic, the Founders often wrote and spoke about the need for an educated population. Yet schooling was typically reserved for the elite. Wealthy families hired private tutors, and those in the middle class sent their children to subscription schools (parents paid only for the period of time their students attended), where they learned the basics of reading, writing, and arithmetic. Higher education was rarer still: Even into the late 1860s, only about 1 percent of 18-to-24-year-olds were enrolled in post-secondary schools. Before the Civil War, many children were limited to learning whatever their parents were able to teach them at home.

The idea of public common schools—that is, schools funded and organized directly by communities and free to most children—had been slow to take off, though Mann had been proselytizing for them since the 1830s. In time, his approach took root in the Northeast and crept into the rest of the country, but such schools were more typically found in cities than rural areas. White southerners, in particular, were skeptical of Mann’s ideas. The contours of a slave society were fundamentally incompatible with widespread free education—public goods of many kinds were eyed with suspicion as potential tools of insurrection.

New Orleans, however, had a rich history of parochial schools. In 1841, the state legislature hoped to extend this tradition when it first approved funds for a public-school system in New Orleans, one of the oldest in the South. The schools

there thrived—but they were available only to white students.

Education in the rest of Louisiana and the South was still rudimentary, even as the rest of the country made strides. In the years preceding the Civil War, Justin Morrill, a shopkeeper turned congressman from Vermont, tried to create a nationwide system for training workers by introducing a bill to give states land they could sell to fund colleges. The bill was opposed by southern congressmen wary of federal intervention in their states, and was ultimately vetoed by President James Buchanan.

After the war began, however, Morrill saw an opportunity. Southern lawmakers had been expelled from Congress for treason, and the nation was in need of skilled military minds. He reintroduced the bill in December 1861; the Morrill Act was signed by President Abraham Lincoln the following July. States in the North quickly began building land-grant universities.

Under the law, all southern states were barred from the program while in rebellion against the Union. But because New Orleans fell so early, the war presented an opportunity for the city. Major General Nathaniel Banks, the Union commander of the Department of the Gulf, issued General Order No. 38, which established a “Board of Education for Freedmen.”

The smattering of schools that had been established for Black students by missionary associations and individual citizens, including Brice’s, were quickly subsumed by this newly created board. The student rolls grew from an average of 1,422 in April 1864 to 9,571 by the end of the year. The board had established a foundation for education through a “unity of purpose and concert of action,” Plumly, the chair of the board, wrote. “In nine months we have succeeded, against the grave obstacles incident to the beginning of so great an enterprise, in gathering under instruction half of the colored juvenile population in the State.”

IN 1865, Plumly released a report on the state of education in New Orleans, trumpeting his board’s success in expanding schooling through the example of Brice, whose school “continued

to thrive” under his board, where she was known as “an efficient and honored principal.” Plumly’s report quickly spread across the nation, and after Confederate General Robert E. Lee’s surrender in April 1865, it served as a model for those who hoped to establish public education in the South. The reunification of the country would be an enormous task, and no one knew what would become of the millions of Black Americans who were now free citizens—not to mention the masses of white southerners who would need to be reintegrated into the nation. Perhaps, the thought went, education could help make citizens of both the white and Black poor.

On April 3, 1865, the *Chicago Tribune*, opining about the New Orleans project, noted that although many of the teachers struggled “with every manner of difficulty—insufficient accommodations—leaky sheds with ground floors,” they were heartened by the fact that the school system had grown at such a rapid pace. The editors thought that the project might serve as a model for children, both white and Black, across the entire South.

“This is ... but the beginning of a work which must spread over the entire Southern States, until both freed blacks, and the almost equally ignorant and even more degraded and vicious ‘poor whites’ have been brought within its christianizing and civilizing influences,” the *Tribune* article read. The work of expanding the nation’s schools no longer had to be “slow or tedious,” it said, “but can be accomplished rapidly and encouragingly.”

Outside New Orleans, however, there was less infrastructure for this kind of rapid transformation. Southern states were in the early process of being readmitted into the union, which required the states to disavow secession, repudiate war debts, and write new constitutions, and they could not yet access funds from the Morrill Act. If there was any hope for the sort of mass education that the *Tribune* editors believed was necessary, it would require private associations to step into the void. Groups such as the African Methodist Episcopal Church and the American Baptist Home Missionary Society began establishing

“Be ashamed to die until you have won some victory for humanity,” Horace Mann told his students. Mary Brice was a true believer in Mann’s vision.

primary schools and colleges, as well as schools to train teachers.

Major General Oliver Otis Howard, who became the commissioner of the Freedmen's Bureau, was unsure that his agency had the authority or money to set up such institutions on its own. Yet he found the schools operated by military governments, such as Louisiana's under Major General Banks, to be a good model. "More than 200,000 people, old and young, in the insurrectionary states, have learned to read in the last three years," Howard wrote in a letter to the American Institute of Instruction. The letter was read aloud to the nearly 1,000 people who had gathered in New Haven, Connecticut, for a meeting of the group on August 9, 1865.

Howard worked to establish a network similar to Banks's, on a larger scale. Among the institutions founded in this effort were the Fisk Free Colored School, now Fisk University, and the Hampton Normal and Agricultural Institute in Virginia, Booker T. Washington's alma mater. Howard also personally helped create Howard University, named in his honor, and later served as its president.

Because of its small budget, the bureau primarily operated in a supervisory role. Howard appointed superintendents to oversee the logistics of the schools, which included training and hiring teachers, ensuring that they had military protection to conduct their work safely, and providing schoolmasters with fuel and provisions.

Most of this work was conducted out of the public eye, with missionary organizations in leadership roles. Even so, the bureau's efforts ran the risk of vexing white southerners, many of whom simply opposed the idea of educating Black people at all. White objections to the involvement of the Freedmen's Bureau in southern affairs often mentioned reports of ineptitude, poor administration, or outright fraud in its operations. Certainly, the administration of these new public schools left much to be desired. As Plumly wrote in his report about local schools, 1864 was a year "of great financial delays and embarrassments in this Department." Teachers would routinely go months without pay—and although Plumly noted that the

educators rarely complained, conditions wore on their morale.

But, in the main, the white objection to the bureau was still, simply, its existence. "Even the most friendly studies of the Bureau have exaggerated its weaknesses and minimized its strengths," the Reconstruction historians John and LaWanda Cox wrote in 1953. "At the vital core of the Bureau's activities was the explosive and still unresolved problem of the nature of race relationships that should follow the forcible destruction of slavery." And as prominent physical reminders of the bureau's presence, schools became a target.

Mobs routinely burned buildings and churches where classes were held. In some cases, teachers and agents of the bureau were murdered. According to James D. Anderson, professor emeritus of education at the University of Illinois at Urbana-Champaign, at least 126 public schools in Louisiana overseen by the bureau faced closure from the combination of white terrorism, financial woes, and incompetence.

Still, the bureau's work improved the educational outlook for millions of people who'd previously had no access to formal schooling. According to records gathered by Kamilah Stinnett, a specialist with the Smithsonian's Freedmen's Bureau Project, many Black people felt empowered to shape their education themselves. On March 17, 1866, a school official in Louisiana wrote to the bureau that Black residents were requesting Black instructors because they "object to paying [white] persons who continually insult them." In 1868, the board of a "colored" school in Henderson, North Carolina, asked the bureau for \$300 "for assistance in finishing our school house."

Soon the number of people in the South entitled to common education was expanded even further. In 1867, Louisiana held an election for its constitutional convention; ultimately, aided by votes from freedmen and the disenfranchisement of former Confederates, 49 white delegates and 49 Black delegates were chosen. The constitution they produced guaranteed integrated public schools.

Across the South, state conventions established similar constitutional

provisions, and states were subsequently readmitted to the union, which also allowed for the expansion of college access through federal programs such as the Morrill Act. By 1870, five years after the bureau was established, roughly 78 percent of children of all races between the ages of 5 and 14 were enrolled in public schools.

THAT WOULD PROVE to be the high-water mark for most of the next century. When the bureau was dissolved by Congress in 1872, a large share of the federal government's oversight of common schools disappeared. Over the next decades, the educational foundation built by the Freedmen's Bureau endured a concerted assault from white supremacists. The so-called Redeemers, who sought to reclaim political power through coercion and violence, had objected to the Reconstruction constitutions from the beginning and fought to overthrow them. They also objected to integrated education. Faculty at the University of Mississippi revolted, arguing that they would rather resign and the university close its doors than educate a single Black student. State legislators in North Carolina went even further, stripping UNC of its funding and forcing it to close in 1871. When the university finally reopened in 1875, several avowed white supremacists sat on its new board of trustees, including one former leader of the state Ku Klux Klan.

That same year, members of Congress introduced legislation that would endow common schools via land grants, and expand Morrill's funding for land-grant colleges. Southern lawmakers helped kill the legislation, fearing that introducing additional federal money also meant introducing federal oversight of their activities. Such oversight of the public schools in New Orleans, for example, would have revealed that, in 1877, the state legislature reduced school-tax rates by 80 percent, dramatically cutting back resources for education.

Meanwhile, violent campaigns raged across the South. School buildings were once again burned. Educators were threatened. The network of common

schools established by the Freedmen's Bureau remained, although diminished. Some struggled until they fell apart; others hobbled along, underfunded but resolved to continue the work of educating those who were being shut out of other institutions.

By 1890, Morrill had untethered his new bill to endow land-grant colleges from the common-school bill, and it passed—with a caveat. Colleges could not make a distinction of race in the admission of students; states could, however, operate separate colleges for Black students. They used a portion of the funds to endow schools born of necessity—Black colleges such as Tuskegee University, North Carolina A&T State University, and Langston University.

Six years later, after the mixed-race activist Homer Plessy sued for the right to ride Louisiana railway cars reserved for white people, the United States Supreme Court decided that state-mandated segregation laws did not violate the equal-protection clause of the Fourteenth Amendment. *Plessy v. Ferguson* ushered in the era of formalized segregation in the South, but America's higher-education infrastructure had already taken to the idea. Soon, its common schools formally did so as well.

WHEN MARY BRICE moved from Ohio, she hoped that she might be able to bring education to Black New Orleanians—and, in the spirit of Horace Mann, win a victory for humanity. The Freedmen's Bureau helped expand Brice's vision to the entire South through federal intervention, providing what became the political and administrative scaffolding for all public education. But as remarkable as that achievement was, it could not withstand the extraordinary efforts by Redeemers to claim the benefits of such an education for white Americans and deny them to Black Americans.

On February 8, 1898, a group of white Louisiana Democrats gathered in Tulane Hall, in New Orleans, for a constitutional convention. The primary agenda item: to settle the question of whether Black men in the state should be

allowed to vote. There was little question of what the convention's result would be.

The convention could not explicitly circumvent the Fourteenth and Fifteenth Amendments, but Democrats got as close as they could. They established a poll tax and literacy tests, and required voters to own property. Ernest B. Kruttschnitt, the president of the convention, bluntly admitted the purpose of these laws. "What care I whether it be more or less ridiculous or not?" he said to applause. "Doesn't it meet the case? Doesn't it let the white man vote, and doesn't it stop the negro from voting, and isn't that what we came here for?"

This Jim Crow constitution worked as intended. There were 127,923 Black voters on Louisiana's rolls in 1888; by 1910, that number had dropped to 730. From 1896 to 1900 alone, there was a 96 percent decline in registered Black voters. When the convention ended, Kruttschnitt returned to his day job—leading the New Orleans school board.

With the *Plessy* decision propping him up, Kruttschnitt launched what Donald E. DeVore and Joseph Logsdon, the authors of *Crescent City Schools*, called a "massive cutback in educational opportunities for black children." Under his leadership, the district cut public schooling for Black students down to grades one through five, and the board announced, as DeVore and Logsdon put it, "that they were giving up all pretense of creating separate schools 'identical with that of white schools.'" By 1920, there were about four times as many schools for white students as there were for Black students in New Orleans. The city's idea of a universal, free public-education system, established in large part to serve Black students, now only feigned doing so.

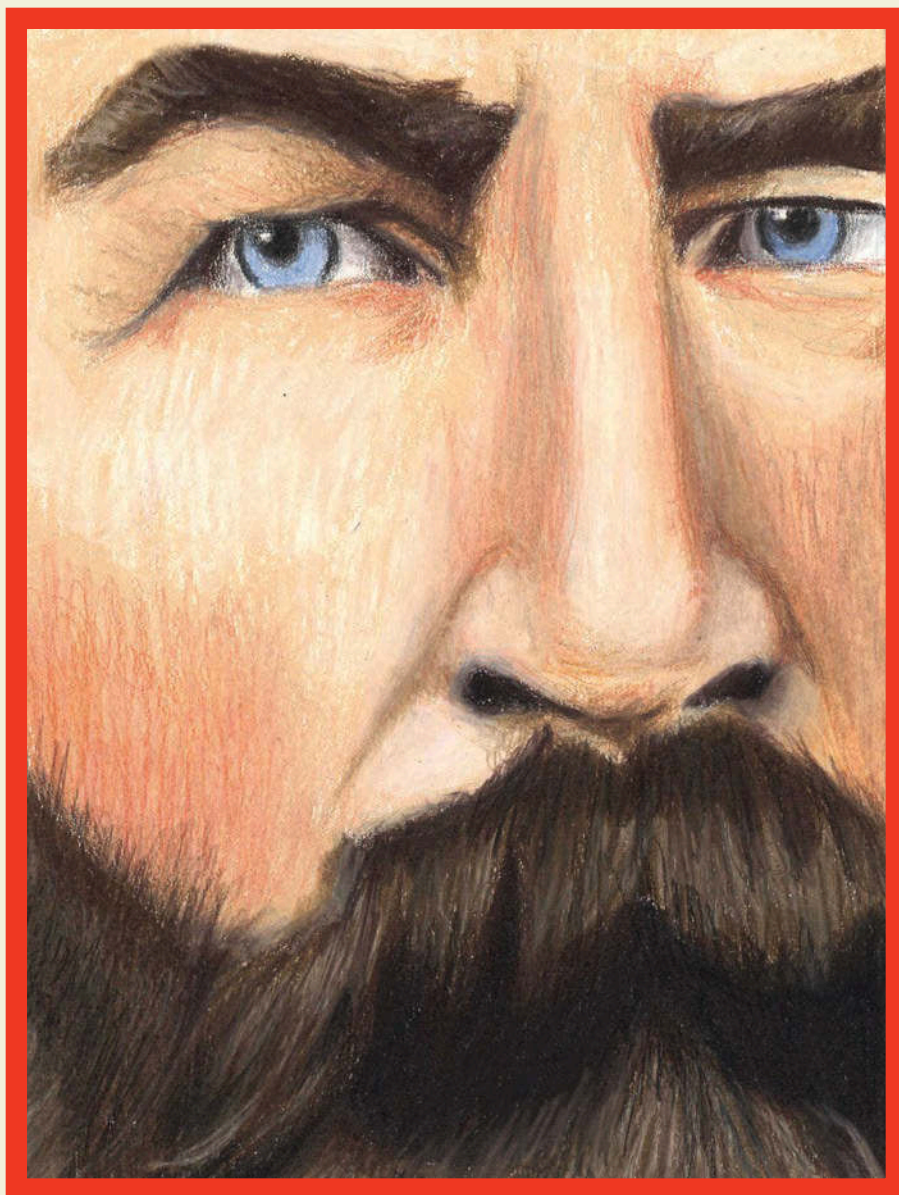
It would take 40 more years, another federal intervention, and the protection of U.S. Marshals before Ruby Bridges and the McDonogh Three would reintegrate public schools in New Orleans—schools that likely never would have existed in the first place if not for the work of the federal government and the Freedmen's Bureau.

For Black people who'd been emancipated, the full experience of citizenship

that the Founders believed comes with education was short-lived. The country has been shaped in many ways by their subsequent exclusion. Even after court-mandated desegregation, educational opportunity has been highly stratified by race, and both educational attainment and quality in America as a whole have lagged relative to other wealthy countries. In 2023, the Supreme Court struck down affirmative action, the most serious effort to date at realizing Brice's dream nationally. The history of the South illustrates that efforts to splinter or deny education on the basis of race will inevitably diminish even those who lead those efforts. "Create a serf caste and debar them from education, and you necessarily debar a great portion of the privileged class from education also," Mann once argued. But the history also demonstrates the inverse: Making public education truly public and equal for all is the cornerstone of a nation. *A*

Adam Harris is a staff writer at The Atlantic.

STATEMENT OF OWNERSHIP, MANAGEMENT, AND CIRCULATION			
1. Publication Title: The Atlantic. 2. Publication No.: ISSN 1072-7825.			
3. Filing Date: 9/29/2023. 4. Issue Frequency: Monthly, except combined issues in Jan/Feb and July/Aug. 5. No. of Issues Published Annually: 10.			
6. Annual Subscription Price: \$89.99. 7. Complete Mailing Address of Known Office of Publication: 610 Water St. SW, 5th Floor, Washington, DC 20024. Contact Person: Eliné Concepcion. Telephone: 202-265-7779. 8. Complete Mailing Address of Headquarters or General Business Office of Publisher: The Atlantic Monthly, 610 Water St. SW, 5th Floor, Washington, DC 20024. 9. Full Names and Complete Mailing Addresses of Publisher, Editor, and Managing Editor: Publisher: Alice McKown, 130 Prince St., 3rd Floor, New York, NY 10012. Editor: Jeffrey Goldberg, 610 Water St. SW, 5th Floor, Washington, DC 20024. Managing Editor: John Swansburg, 130 Prince St., 3rd Floor, New York, NY 10012.			
10. Owner: Emerson Collective Investments, LLC (majority owner, beneficially owned by Laurene Powell Jobs), 555 Bryant St., #259, Palo Alto, CA 94301; Bradley Media Holdings Inc. (minority owner, beneficially owned by David G. Bradley), 600 New Hampshire Ave. NW, Ste. 900, Washington, DC 20037.			
11. Known Bondholders, Mortgagees, and Other Security Holders Owning or Holding 1% or More of Total Amount of Bonds, Mortgages, or Other Securities: None. 12. Tax Status: Has not changed during preceding 12 months.			
13. Publication Title: The Atlantic. 14. Issue Date for Circulation Data Below: October 2023.			
	Average No. Copies Each Issue During Preceding 12 Months	No. Copies of Single Issue Published Nearest to Filing Date	
15. Extent and Nature of Circulation			
a. Total Number of Copies (Net Press Run):	480,685	477,695	
b. Paid Circulation (by Mail and Outside Mail)			
1) Mailed Outside-County Paid Subscriptions Stated on Form 3541:	394,712	400,102	
2) Mailed In-County Paid Subscriptions Stated on Form 3541:	0	0	
3) Sales Through Dealers and Carriers, Street Vendors, Counter Sales, and Other Non-USPS Paid Distribution:	41,625	42,964	
4) Other Classes Mailed Through the USPS:	0	0	
c. Total Paid Distribution (sum of 15b. 1), 2), 3), and 4):	436,337	443,066	
d. Free or Nominal Rate Distribution (by Mail and Outside Mail):			
1) Outside-County as Stated on Form 3541:	6,220	6,211	
2) In-County as Stated on Form 3541:	0	0	
3) Other Classes Mailed Through the USPS:	0	0	
4) Outside the Mail:	6,243	8,169	
e. Total Free or Nominal Rate Distribution (sum of 15d. 1), 2), 3), and 4):	12,463	14,380	
f. Total Distribution (sum of 15c. and e.):	448,800	457,446	
g. Copies not Distributed:	31,885	20,249	
h. Total (sum of 15f. and g.):	480,685	477,695	
i. Percent Paid (15c. divided by 15f. times 100):	97.22%	96.86%	
16. Electronic Copy Circulation			
a. Paid Electronic Copies	473,707	485,367	
b. Total Paid Print Copies (15c) + Paid Electronic Copies (16a)	910,044	928,433	
c. Total Print Distribution (15f) + Paid Electronic Copies (16a)	922,507	942,813	
d. Percent Paid (Both Print + Electronic Copies) (16b divided by 16c x 100)	98.65%	98.47%	
18. I certify that all information furnished on this form is true and complete. I understand that anyone who furnishes false or misleading information on this form or who omits material or information requested on the form may be subject to criminal sanctions (including fines and imprisonment) and/or civil sanctions (including civil penalties). (signature) Jeffrey Goldberg, Editor in Chief 9/29/23			



A Traitor to the Traitors

*The Confederate general
James Longstreet
became a champion of
Reconstruction. Why?*

By Eric Foner

During the summer of 1997, my wife and I picked up our 9-year-old daughter from a ballet camp in Carlisle, Pennsylvania, and drove to the nearby Gettysburg National Military Park, which they had never seen and I barely remembered from a boyhood visit. The park's presentation of history left much to be desired. The visitor center's small museum and the numerous monuments scattered across the battlefield conveyed a great deal about how the battle had been fought in July 1863, while offering almost no explanation of why the combatants were fighting. The park commemorated the Union's greatest military victory, but its emotional centerpiece was the disastrous southern assault known as Pickett's Charge, identified, in the romantic glow of nostalgia, as the "high-water mark" of the Confederacy. In labels accompanying the display of historic artifacts and images, the words *valor* and *glory* were almost always applied to soldiers who fought for the South, not for the Union.

That the place where the Civil War reached its turning point had become a shrine to the courage of those who fought to destroy the nation and preserve slavery should not have been a surprise. It has long been a commonplace that the South lost the Civil War but won the battle over historical memory. For decades, almost from the moment of surrender, the ideology of the Lost Cause shaped both popular and scholarly understanding of the conflict.

As Elizabeth R. Varon observes in *Longstreet: The Confederate General Who Defied the South*, her compelling new biography of James Longstreet, Robert E. Lee's second in command, the Lost Cause was far more than a military narrative. It provided a comprehensive account of the war's origins, conduct, and consequences. The conflict, in this telling, had little to do with slavery, but instead was caused, depending on which book you read, by the protective tariff, arguments over states' rights, or white southerners' desire for individual liberty. Confederate soldiers were defeated not by superior generalship or greater fighting spirit but by the Union's advantages in manpower, resources, and industrial technology. And the nation's victory was marred by what followed: the era of Reconstruction, portrayed as a time of corruption and misgovernment, when the southern white population was subjected to the humiliation of "Negro domination." This account of history was easily understandable and, like all ideologies, most convincing to those who benefited from it—proponents of white supremacy.

Just how widely and publicly memorialized the Lost Cause narrative remained more than 150 years later became glaringly clear in the fallout from tragic events such as the Charleston, South Carolina, church massacre in 2015; the deadly altercation in Charlottesville, Virginia, in 2017; and the murder of George Floyd by Minneapolis police officers in 2020. The legacy of slavery was propelled to center stage in today's culture wars. With unexpected rapidity, the Confederate battle flag came down from many public buildings. And dozens of monuments to southern military leaders—most of them erected in the late 19th and early 20th centuries to help provide historical legitimacy for the Jim Crow system of racial inequality, then being codified into law—were removed from their pedestals.

Of course, omission, not simply falsehood, can be a form of lying (as Alessandra Lorini, an Italian historian, noted earlier this

year in an excellent survey of debates about historical monuments, titled *Le Statue Bugiarde*, or, roughly, “Statues That Lie”). For many years, the Civil War was remembered as a family quarrel among white Americans in which their Black countrymen played no significant role—a fiction reflected in the paucity of memorials indicating that enslaved men and women had been active agents in shaping the course of events. Lately, some historical erasures have begun to be remedied. For example, a memorial honoring Robert Smalls, the enslaved Civil War hero who famously sailed a Confederate vessel out of Charleston Harbor and turned it over to the Union navy, and later served five terms in the U.S. House of Representatives, is now on display in Charleston’s Waterfront Park.

Back when we visited, the Gettysburg battlefield was beginning to be swept up in changing views of history. The site is strewn with monuments, memorials, markers, and plaques—1,328 of them, according to the National Park Service, approximately a quarter of which memorialize Confederate officers and regiments. (Visitors sometimes ask guides whether all these monuments “got in the way of the battle.”) The Park Service and the Gettysburg Foundation, which jointly administer the site, were raising funds to build a new museum and visitor center. And in 1998, an equestrian statue was installed of James Longstreet, one of the Confederacy’s most successful generals, present at the battle but never before memorialized at Gettysburg. Longstreet had warned Lee in vain that Pickett’s Charge courted disaster. (To Lee’s credit, after the attack, which left about half of the 12,500 Confederate troops dead or wounded, he declared, “All this has been my fault.”)

But the defeat at Gettysburg was not what explained Longstreet’s exclusion from the pantheon of southern heroes. Rather, his conduct during Reconstruction was the problem—an assessment that was endorsed by the branch of the Sons of Confederate Veterans that commissioned his statue. The general, the group explained, was being honored for his “war service,” not his “postwar activities.” What were those activities? After the war, Longstreet had emerged as a singular figure: the most prominent white southerner to join the Republican

Party and proclaim his support for Black male suffrage and officeholding. Leading the biracial Louisiana militia and the New Orleans Metropolitan Police, he also battled violent believers in white supremacy.

AMONG THE CHALLENGES of writing the history of the Reconstruction period is avoiding the language devised by the era’s contemporary opponents as terms of vilification. One such word is *scalawag*, applied to a white southerner who supported Reconstruction. White-supremacist Democrats viewed scalawags, who could be found in many parts of the South, as traitors to their race and region. The largest number were small farmers in up-country counties where slavery had not been a major presence before the Civil War—places such as the mountainous areas of western North Carolina and northern Alabama and Georgia. There, many white residents had opposed secession and more than a few had enlisted in the Union army. Even though supporting Reconstruction required them to overcome long-standing prejudices and forge a political alliance with Black voters, up-country scalawags saw Black male suffrage as the only way to prevent pro-Confederate plantation owners from regaining political power in the South. All scalawags were excoriated in the white southern press, but none as viciously as Longstreet.

Longstreet’s life (1821–1904) spanned the era of sectional conflict, Civil War, and Reconstruction. Although unique in many ways, his postwar career illuminates both the hopes inspired by the end of slavery and the powerful obstacles to change. To write his biography requires a command of numerous strands of the era’s complex history. Varon, a history professor at the University of Virginia, is the author of a general account of the conflict. She has also written books about the coming of the war and Lee’s surrender at Appomattox, and is as adept at guiding the reader through the intricacies of Civil War military campaigns as she is at explaining the byzantine factional politics of Reconstruction Louisiana. Her knowledge of the historical context is matched by her balanced appraisal of Longstreet’s attitudes, personal and political.

Longstreet’s unusual postwar political career, Varon insists, did not arise from

lack of enthusiasm for slavery or doubts about southern independence. The owner of several slaves, he was a true believer in the Confederate cause. His grandfather was a plantation owner in Edgefield District, South Carolina, widely known as a center of cotton production, proslavery ideology, and secessionism. He was brought up by his uncle Augustus Longstreet, a prominent jurist who made very clear his belief in Black inferiority. Educated at West Point, Longstreet resigned from the U.S. Army in 1861 to join the Confederate war effort. Varon points out that unlike Lee, who on occasion recklessly risked casualties that his army could not afford by attacking Union forces, Longstreet preferred to fight on the defensive. This is why he advised Lee not to send Major General George E. Pickett’s troops to assault the well-fortified Union lines at Gettysburg. But defenders of the Lost Cause—especially those who could never forgive Longstreet’s strong embrace of political rights for former slaves—would blame him retroactively for the defeat at Gettysburg, accusing him of sabotaging Pickett’s Charge by deliberately arriving late on the battlefield with his troops.

Longstreet was at Lee’s side in the tiny village of Appomattox Court House in April 1865 when a note arrived from Ulysses S. Grant demanding the surrender of Lee’s army to avert further bloodshed. Longstreet, who had known Grant since their West Point days, was impressed by the leniency of his old friend’s terms of surrender, which allowed Confederate soldiers to return home on “parole.” They would remain unpunished, and even keep their personal weapons, so long as they did not take up arms against the nation or violate local laws.

In her earlier work on the Appomattox surrender, Varon offered a provocative interpretation of the long-term consequences of Grant’s generosity, making a case that Lee’s officers and many ordinary soldiers saw it as a kind of homage to Confederate bravery. Indeed, a substantial number, she now writes, expected to receive another call to go to war for southern independence. They later argued that the radical expansion of Black rights forced on them during Reconstruction violated the terms of surrender. Those terms, they claimed,

did not empower the Union to impose its will on the white South. Thus, resistance to Reconstruction did not violate the promise that paroled soldiers would obey the law.

Longstreet rejected any such interpretation of Lee's surrender, seeing in it "the flaw of hubris." He understood that Grant's terms were an effort to facilitate reconciliation (among white citizens) in the reunited nation and in no way justified political violence. In urging the white South to accept the reality of defeat, Longstreet made the obvious point that the losing party should not expect to impose its perspective on the victor. The white South, Longstreet declared in 1867, had "appealed to the arbitrament of the sword," and had a moral obligation to accept the outcome: "The decision," he wrote, "was in favor of the North, so her construction becomes the law." He believed Confederates should accept that the Union's victory demonstrated the superiority of a society based on free labor over one based on slavery, and seize the opportunity presented by Reconstruction to modernize the South. Longstreet's understanding of the lessons and consequences of Confederate defeat, Varon writes, helps explain the

mystery of how a man who went to war to destroy the nation and protect slavery decided to join the Republican Party and work closely with Black political leaders during Reconstruction.

Soon after the surrender, Longstreet moved his family to New Orleans, where he established a cotton brokerage and became the president of an insurance company. Then, as now, New Orleans was a city with a distinctive history and an unusually diverse population. Occupied by Union forces early in the war, it harbored a large anti-secession white population. Its well-educated, economically successful free Black community was positioned to take a leading role in the Reconstruction project of revamping southern society, eliminating the vestiges of slavery, and establishing the principle of equal citizenship across racial lines. Many Black men—both those recently liberated and those already free before the war—were elected to public office after Congress, in 1867, ordered the creation of new governments in most of the former Confederate states. New Orleans, and by extension Louisiana, seemed to be a place where Reconstruction could succeed.

But the newly created Republican Party was beset by factionalism as various groups jockeyed for political influence. The city was also home to a belligerent population of former Confederates willing to resort to violence to restore their dominion over Black residents.

Very quickly, Longstreet plunged into Louisiana politics, having applied for a pardon from President Andrew Johnson, Abraham Lincoln's successor. This would enable him to hold public office and retain his property, except for slaves. Johnson refused, but in 1868, as provided in the Fourteenth Amendment, Longstreet received amnesty from the Republican Congress. Lee, who had appealed to Grant personally for immunity from charges of treason but declined to condemn the violence of the Ku Klux Klan, chastised Longstreet for recognizing the legitimacy of Congress's Reconstruction policy.

But Longstreet, as Varon relates, was adamant that he was anything but a traitor to the white South. The first requirement of reconciliation, he wrote, was to accept frankly that "the political questions of the war" had been settled and should be "buried



upon the fields that marked their end.” There was no avoiding Black suffrage and the participation of Black men in southern government. In 1868, Governor Henry Clay Warmoth, a former Union-army officer, created the biracial Metropolitan Police Force, where Longstreet went on to play a leading role. The sight of armed Black men patrolling the streets of New Orleans outraged much of the local white population. Longstreet was also appointed adjutant general of the state militia, which was racially segregated but had Black and white officers.

Over the course of eight years, Longstreet was active on a remarkable number of fronts in Reconstruction New Orleans. Grant appointed him to the lucrative position of customs surveyor. He sat on the New Orleans school board, which began operating the city’s public-education system on a racially integrated basis. Meanwhile, the legislature enacted a pioneering civil-rights law, barring racial discrimination by transport companies and in some public accommodations. Louisiana Republicans split over this measure, with many white leaders—including Governor Warmoth, who vetoed it—opposing it as too radical, while Black officials embraced it. Realizing that Black voters constituted, to use a modern term, the Republican Party’s “base,” Longstreet aligned himself with the state’s activist Black leaders, including P. B. S. Pinchback, who served briefly as the country’s first Black governor after Warmoth was impeached. Uniquely among prominent ex-Confederates, Longstreet frequently spoke out in favor of Black voting rights, further eroding his reputation among white Democrats. Being condemned as a Judas only bolstered his support for Reconstruction.

Violence was endemic in Reconstruction Louisiana, and Longstreet played a major role in trying to suppress it. Terrorist groups such as the White League and the Knights of the White Camellia flourished. In 1874, after a series of disputed elections in Louisiana, the White League launched an armed assault on the state’s

Reconstruction government. In charge of defending the city, Longstreet took part in the fighting. But the militia and police were overwhelmed, and only the intervention of federal soldiers restored order. The event exposed a reality that recent scholars such as Gregory Downs have strongly emphasized: The presence of Union troops was essential to Reconstruction’s survival. In 1891, anti-Reconstruction Democrats erected a stone obelisk paying tribute to what they called the Battle of Liberty Place. The accompanying text, added in 1932, celebrated the insurrection as an attempt to restore “white supremacy.” The memorial was removed in 2017, two years after then-Mayor Mitch Landrieu had approved a city-council resolution to do so.

BY 1875, the persistent violence had convinced Longstreet that Reconstruction should proceed more slowly and try not to “exasperate the Southern people”—by whom he meant white people. Meanwhile, in response to what Varon calls a giant “misinformation campaign” by southern newspapers and Democratic politicians that depicted the South as mired in government corruption, northern support was on the wane, an ominous sign for the future of Reconstruction. Longstreet essentially abandoned participation in Louisiana politics and moved his family to Georgia, where he soon became a leader of that state’s Republican Party.

With Reconstruction ending, southern Republicans searched for ways to stabilize their party and maintain a presence in southern government. In Georgia, Longstreet pursued a strategy different from the course he had embraced in New Orleans. Instead of cultivating alliances with Black leaders, he now worked more closely with white Republicans, many of them scalawags, who urged northern Republicans to help “southernize” the party by boosting the

power of its white members and limiting that of Black politicians. The “colored man,” Longstreet wrote to Thomas P. Ochiltree, a politician from Texas, had been “put in the hands of strangers who have not understood him or his characteristics.” By “strangers,” he was alluding to carpetbaggers (another of those tainted terms), northerners who took part in Reconstruction in the South and were derided by Democrats as merely seeking the spoils of office. Varon calls this letter “a blatantly racist piece of paternalist pandering.” Despite Longstreet’s efforts to reduce the political power of Black Republicans, white Democrats accused

him of trying to “Africanize the South.” He remained popular, however, with Black Americans after Reconstruction ended, even winning praise from Frederick Douglass for his continued endorsement of Black suffrage and his condemnation of lynching. Longstreet also spent much of his time setting the record straight, as he saw it, regarding his wartime accomplishments. In 1896, he published a 690-page memoir, roundly denounced by adherents of the Lost Cause.

VARON OFFERS a mixed verdict on Longstreet’s career. He could be arrogant and opportunistic, eager to bolster his own reputation. He benefited personally from the numerous positions to which he was appointed (in particular the patronage posts he enjoyed after the end of Reconstruction, including ambassador to the Ottoman empire and federal marshal for northern Georgia). But he also demonstrated remarkable courage, refusing to abandon the Republican Party, as many scalawags eventually did, or to change his mind about Black citizens’ political and civil rights.

Longstreet seems to have thought of himself, Varon writes, as “a herald of reunion.” And yet, she notes, his life exemplified the “elusiveness” of various kinds of postwar reconciliation—between

LONGSTREET:
THE
CONFEDERATE
GENERAL
WHO DEFIED
THE SOUTH

Elizabeth R.
Varon

SIMON & SCHUSTER

white northerners and white southerners, between white and Black Americans, between upholders of the Lost Cause and advocates of a “New South.” His willingness to work closely with Black Americans, speak out in favor of their rights, and even lead them into battle in the streets of New Orleans overshadowed his military contributions to the Confederacy in the eyes of most white southerners. As a letter to a Georgia newspaper declared, when “it became a question of [the] negro or white man,” Longstreet chose the former and could never be forgiven. No statues of Longstreet graced the southern landscape.

Varon closes with a brief look at memorialization, focusing on the efforts of Longstreet’s second wife in the 1930s and ’40s to raise money to build a statue at Gettysburg. A formidable woman 42 years his junior, Helen Longstreet at age 80 worked as a riveter in a factory building bombers during World War II. The service of Black soldiers inspired her to defend Black voting rights, a stance much praised in the African American press. She died in 1962 at the age of 99. One wonders what she would have thought of the descendants of Confederate veterans who finally installed her husband on horseback at Gettysburg yet felt obliged as late as 1998 to dissociate themselves from his efforts to secure the equal rights of all Americans.

Longstreet believed that peaceful and just reunion would be possible only when the white South moved beyond the myth of the Lost Cause. The end of his erasure from historical memory highlights what a long and complicated evolution that has proved to be. Perhaps his restoration is also a sign that the time has come to shift attention from taking down old monuments to erecting new ones, including some to the Black and white leaders of Reconstruction, who braved white-supremacist violence in an effort to bring into being the “new birth of freedom” that Abraham Lincoln envisioned at Gettysburg. *A*

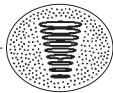
Eric Foner, the DeWitt Clinton Professor Emeritus of History at Columbia University, is the author, most recently, of The Second Founding: How the Civil War and Reconstruction Remade the Constitution.

Sitcom By Jericho Brown

A rabbit tried to kill Louise
Once when I was a kid.
I’m saying Louise now
But I’d have said Miss
Louise then, as she appeared
On our screens once a week
Wearing blues I haven’t seen
Since, her long hair curled,
Combed out, and pushed up
Into a volume so thick, you felt
Both the power of an Afro and
The requirement of a relaxer
On a woman rounder than most
Of her penthouse neighbors,
Hair that wouldn’t move
No matter how much she
Shook when she yelled
At her husband or when
Trapped by a man
Dressed as a rabbit who
Wielded a snub-nose .38 Special
We thought scary before
We knew what an AR-15
Could do. Miss Louise
Never sang, but she had a voice
That left you wondering
How singing might sound
On her. She was that beautiful.
And dark. They had a grown son.
She wasn’t a young woman.
By the time I saw the Halloween
Rerun, the youngest men
In my hometown had organized
Themselves into colors, red and
Blue. They were patriots. Like
Patriots, they’d shoot. And
They’d shoot each other too.
They’d shoot you if you

Accidentally scuffed their shoes
At a club or a concert. They’d
Shoot driving by from their cars
Into houses and parks. They’d
Sell you something so good,
You’d sell our TV to get more
Of it. And I cannot say I didn’t
Love them. They killed my first
Girlfriend—a stray bullet meant
For her brother—and I loved
Them. They killed my cousin,
But some of them were my
Other cousins, and I still loved
Us in all my fear of our gold
Teeth and oversize Dickies.
They’d kill me today, yet remain
A problem I mean to solve.
I’m grown now. I know Louise
Was the star of the show,
The leading lady. No writer
Would kill her off on a sitcom.
Murder is meant for real life.
Anybody can get a gun, but
Nobody kills Louise Jefferson.
There is a place where
Black people don’t die,
A deluxe apartment in the sky.
All week, I worried about the next
Episode. Mornings, I’d dress
Myself and my little sister,
Making sure we wore nothing
That looked like the flag, and
When the appointed night fell,
The jokes were still funny,
The rabbit apprehended.
The white rabbit didn’t murder
The Black lady, no, not on TV.

Jericho Brown won the Pulitzer Prize for his most recent book, The Tradition. He is the editor of How We Do It: Black Writers on Craft, Practice, and Skill.



CALEB'S INFERNO

By Caleb
Madison

Warning: This crossword puzzle starts easy, but gets devilishly hard as you descend into its depths. See which circle you can reach before you abandon all hope.

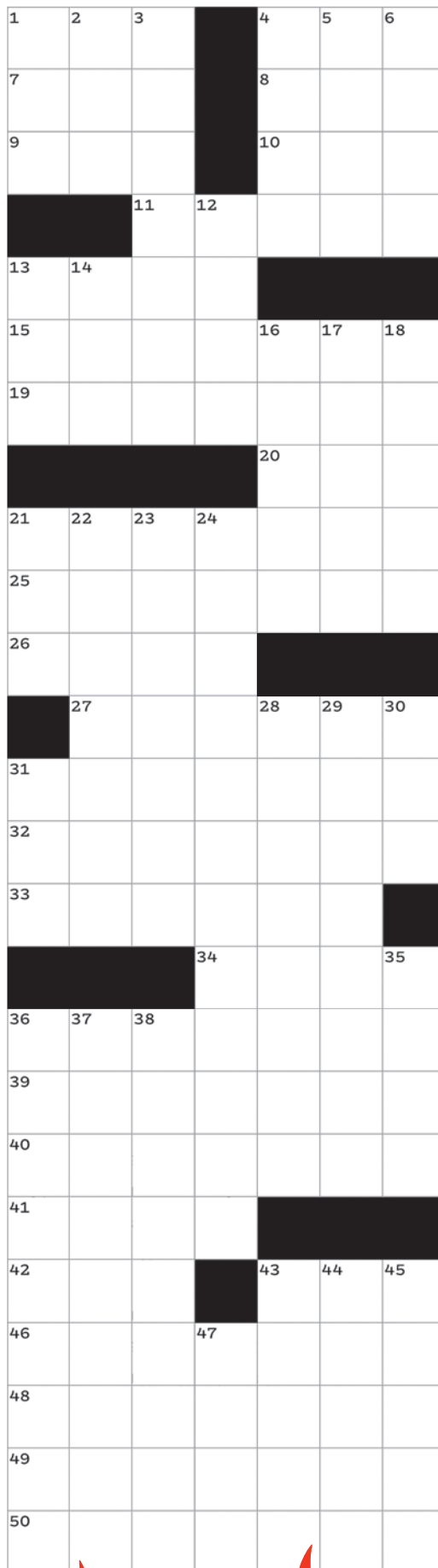
ACROSS

- 1 Column opposite "pro," in weighing options
- 4 Avid follower of a sports team or musical artist
- 7 Artist Yoko who was married to John Lennon
- 8 One of three components in the Freudian psyche
- 9 Place to sit in church
- 10 Go bad, as produce
- 11 Rely (on)
- 13 Caustic cleaning solutions
- 15 Headphones that may come in a chargeable case
- 19 Water far from land
- 20 Its first delivery vehicle was a Ford Model T in 1913
- 21 Apple server options that can come as towers or rack mounts
- 25 Woebegone
- 26 A quick buck, perhaps?
- 27 "Small," in 36-Across
- 31 Drink named for its supposed heart benefits
- 32 Prepares with oil
- 33 Stretching muscle
- 34 Where the original Hollywood sign was sold for \$450,400
- 36 Dolphin Square neighborhood
- 39 For whom Wild Bill Hagy led "the roar from 34"
- 40 Be made up
- 41 [*Writes down on to-do list*]
- 42 "Odi et ____" (Latin poem also known as "Catullus 85")
- 43 *People*, e.g., informally

- 46 Subject of a ban lifted in 1976 after a live demonstration for the New York City council proved that it took skill
- 48 New York's "City of the Hills"
- 49 Citations, e.g.
- 50 Jennies

DOWN

- 1 Authority in a precinct
- 2 Number on the upper-left-hand corner of almost every crossword
- 3 The middle of ____ (remote area)
- 4 Fronded plant that shows up in the fossil record millions of years before dinosaurs
- 5 Bursting with excitement
- 6 "____ to self ..."
- 12 ID on a dust jacket
- 13 Obama, astrologically
- 14 Bark from a toy
- 16 Seize by force
- 17 Peer-to-peer fashion app where you can buy and sell used clothing
- 18 Like responding "I'll alert the media!" to "I've been doing really well"
- 21 Material for some masks
- 22 Buttercup cousin
- 23 Root for
- 24 Work whence came the line "Better to reign in Hell than serve in Heaven"
- 28 Argentinian athlete who popularized the Euro step
- 29 Grinds
- 30 Tracks above?
- 31 Creature that kneads
- 35 Ned who managed the 2015 World Series winners
- 36 Gradually
- 37 Worker who uses 50-Across
- 38 Cinematic conlang in which *poopaye* means "goodbye"
- 43 Chuck from the sky?
- 44 Offering structure?
- 45 It sets a clear boundary?
- 47 Poaching target, perhaps



FOR HINTS AND
SOLUTIONS, VISIT:



TheAtlantic.com/inferno





**Smokey Bear is
within us all.**

For wildfire prevention tips, visit
[SmokeyBear.com](https://www.smokeybear.com)





THE OUTER SEYCHELLES



AZORES ARCHIPELAGO, PORTUGAL



FLORIDA GULF COASTLINE, UNITED STATES



SYLVIA EARLE EXPLORES
COCOS ISLAND, COSTA RICA



THERE ARE OVER 130
HOPE SPOTS GLOBALLY



SYLVIA EARLE WITH VOLUNTEERS,
THE OUTER SEYCHELLES



GREAT BARRIER REEF, AUSTRALIA



MOBULA RAYS, AZORES
ARCHIPELAGO, PORTUGAL



SEA LION,
GALÁPAGOS,
ECUADOR

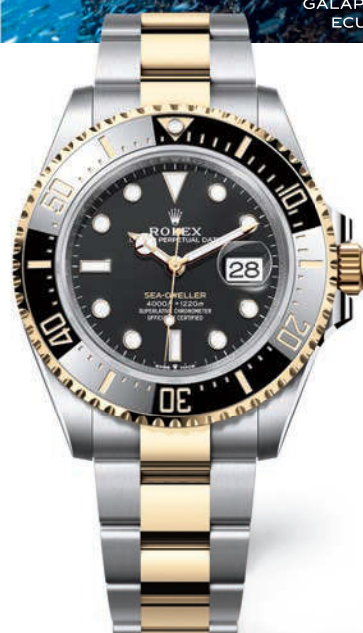


ON OUR WATCH

Hope can now be spotted across all our planet's seas and oceans. Sites are made into aquatic havens by local communities, to safeguard the richness and diversity of the ecosystems they depend on. Sylvia Earle's invaluable experience as an explorer and marine biologist continues to help further their goal, through her organization, Mission Blue. Together, they have created over 130 Hope Spots and counting. Carrying a message of hope for generations to come. It is that vision, that dedication to a perpetual planet, which we are proud to stand by. **For as long as it is needed.**

Rolex supports Mission Blue in its commitment to protecting 30% of the oceans by 2030.

#Perpetual



OYSTER PERPETUAL SEA-DWELLER

